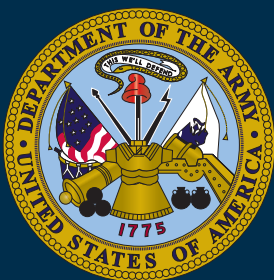


Joint Publication 3-28



Defense Support of Civil Authorities



29 October 2018



PREFACE

1. Scope

This publication provides joint doctrine to plan, conduct, and assess defense support of civil authorities.

2. Purpose

This publication has been prepared under the direction of the Chairman of the Joint Chiefs of Staff (CJCS). It sets forth joint doctrine to govern the activities and performance of the Armed Forces of the United States in joint operations, and it provides considerations for military interaction with governmental and nongovernmental agencies, multinational forces, and other interorganizational partners. It provides military guidance for the exercise of authority by combatant commanders and other joint force commanders (JFCs), and prescribes joint doctrine for operations and training. It provides military guidance for use by the Armed Forces of the United States in preparing and executing their plans and orders. It is not the intent of this publication to restrict the authority of the JFC from organizing the force and executing the mission in a manner the JFC deems most appropriate to ensure unity of effort in the accomplishment of objectives.

3. Application

a. Joint doctrine established in this publication applies to the Joint Staff, commanders of combatant commands, subordinate unified commands, joint task forces, subordinate components of these commands, the Services, and combat support agencies.

b. The guidance in this publication is authoritative; as such, this doctrine will be followed except when, in the judgment of the commander, exceptional circumstances dictate otherwise. If conflicts arise between the contents of this publication and the contents of Service publications, this publication will take precedence unless the CJCS, normally in coordination with the other members of the Joint Chiefs of Staff, has provided more current and specific guidance. Commanders of forces operating as part of a multinational (alliance or coalition) military command should follow multinational doctrine and procedures ratified by the United States. For doctrine and procedures not ratified by the US, commanders should evaluate and follow the multinational command's doctrine and procedures, where applicable and consistent with US law, regulations, and doctrine.

For the Chairman of the Joint Chiefs of Staff:



DANIEL J. O'DONOHUE
Lieutenant General, USMC
Director, Joint Force Development

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SUMMARY OF CHANGES
REVISION OF JOINT PUBLICATION 3-28
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- Chapter I contains updated language to describe the National Response Framework and National Incident Management System aligned with Department of Homeland Security revisions.
- Chapter II removes the traditional Department of Defense (DOD) phasing construct. A Federal Emergency Management Agency phasing example is placed in Appendix J to emphasize DOD's supporting role and the need to synchronize with the lead federal agency; also added a more robust assessment section with defense support of civil authorities (DSCA) specific metrics in this chapter.
- Chapter IV provides a more accurate and thorough description of incident awareness and assessment and added descriptions of defense support to cyberspace incident response and cyber support.
- Chapter V adds clarification and updated language in the intelligence support section specifically for the use of unmanned aircraft systems and imagery. Made public affairs section language consistent with changes in joint publication (JP) 3-61, *Public Affairs*, and JP 3.13-2, *Military Information Support Operations*. Provided updated policy and doctrinal language on health services for DSCA.
- Appendix B was added to outline the emergency support functions.
- Appendices H and J were added for sample planning and phasing formats for DSCA operations, respectively.

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TABLE OF CONTENTS

EXECUTIVE SUMMARY	ix
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CHAPTER I OVERVIEW

• Introduction.....	I-1
• Defense Support of Civil Authorities	I-2
• Homeland Security, Homeland Defense, and Defense Support of Civil Authorities.....	I-4
• Fundamentals of Response	I-7
• All Hazards Scope of Defense Support of Civil Authorities	I-11
• Legal and Policy Considerations	I-11

CHAPTER II SUPPORTING A COMPREHENSIVE ALL HAZARDS RESPONSE

• State, Local, Territory, and Tribal Government Roles	II-1
• Federal Role	II-4
• Department of Defense Immediate Response and Emergency Authority	II-5
• Emergency Support Functions.....	II-7
• Catastrophic Incident Support.....	II-7
• Interorganizational Coordination.....	II-8
• Unity of Effort.....	II-11
• Department of Defense and Emergencies in the Homeland	II-12
• Command and Control in United States Northern Command and United States Pacific Command Areas of Responsibility.....	II-14
• Planning Considerations for Defense Support of Civil Authorities.....	II-16
• Phases of Defense Support of Civil Authorities	II-18
• Assessing Defense Support of Civil Authorities	II-18
• Multinational Forces Integration.....	II-21

CHAPTER III SUPPORTING CIVILIAN LAW ENFORCEMENT AGENCIES

• General.....	III-1
• The Posse Comitatus Act.....	III-1
• Direct Assistance to Civilian Law Enforcement Agencies.....	III-2
• Other Permissible Types of Military Support to Law Enforcement Agencies.....	III-4
• Law Enforcement Considerations.....	III-8

CHAPTER IV OTHER DOMESTIC ACTIVITIES AND SPECIAL EVENTS

• General.....	IV-1
----------------	------

• National Special Security Events.....	IV-1
• Community Support Activities	IV-1
• Sensitive Support Operations.....	IV-1
• Military Training Exchanges	IV-2
• Specialized Support	IV-2
• Support Provided to the United States Secret Service	IV-2
• Civil Air Patrol/Air Force Auxiliary Support	IV-3
• Incident Awareness and Assessment	IV-3
• Civilian Critical Infrastructure Protection	IV-3
• Postal Services	IV-4
• Explosive Ordnance Disposal Considerations	IV-4
• Urban Search and Rescue Program.....	IV-6
• Defense Support to Cyberspace Incident Response.....	IV-6
• Other Defense Support of Civil Authorities Missions.....	IV-7

CHAPTER V

SUPPORTING AND SUSTAINING ACTIVITIES

• General.....	V-1
• Personnel Services	V-1
• Intelligence Support.....	V-3
• Meteorological Support	V-6
• Logistics.....	V-7
• Public Affairs	V-11
• Health Services	V-12
• Mortuary Affairs	V-15
• Cyberspace Support	V-15
• Space Operations Support.....	V-16
• Other Support and Sustainment Considerations	V-16

APPENDIX

A	National Incident Management System Overview.....	A-1
B	Emergency Support Functions	B-1
C	Standing Rules for the Use of Force for United States Armed Forces	C-1
D	Department of Defense Dual-Status Commander	D-1
E	Key Legal and Policy Documents	E-1
F	Reimbursement for Defense Support of Civil Authorities.....	F-1
G	Department of Defense Installations Supporting Defense Support of Civil Authorities.....	G-1
H	Defense Support of Civil Authorities Planning Format (Notional)	H-1
J	Example Phasing of Defense Support of Civil Authorities.....	J-1
K	Points of Contact	K-1
L	References	L-1
M	Administrative Instructions	M-1

GLOSSARY

Part I	Abbreviations, Acronyms, and Initialisms	GL-1
Part II	Terms and Definitions	GL-6

FIGURE

I-1	Relationships Between Homeland Defense, Defense Support of Civil Authorities, and Homeland Security Missions	I-5
I-2	Layers of Redundant Capabilities	I-7
II-1	Map of the Ten Federal Emergency Management Agency Regions	II-15
II-2	Example Defense Support of Civil Authorities Objective to Standard Assignment (Combatant Command)	II-20
II-3	Example Defense Support of Civil Authorities Objective with Effect, Measure, and Standards	II-21
B-1	National Guard Core Capabilities and the National Response Framework Emergency Support Functions	B-2
D-1	Dual-Status Commander Command and Control Relationship	D-2

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EXECUTIVE SUMMARY COMMANDER'S OVERVIEW

- Provides an overview of defense support of civil authorities.
- Describes the fundamentals of response.
- Discusses the all hazards scope of defense support of civil authorities.
- Describes the federal role in supporting a comprehensive all hazards response.
- Discusses when and how federal forces may provide support to federal, state, territory, tribal, insular areas, and local law enforcement organizations reacting to civil disturbances, conducting border security and counterdrug missions, preparing for antiterrorism operations, and participating in other related law enforcement activities.
- Describes Department of Defense support to national special security events, community support activities, sensitive support operations, military training exchanges, and other specialized support.
- Discusses planning to support and sustain defense support of civil authorities, to include personnel services, intelligence support, meteorological support, logistics, public affairs, health services, mortuary affairs, cyberspace support, and other support and sustainment considerations.

Overview

Defense Support of Civil Authorities

Defense support of civil authorities (DSCA) is support provided by federal military forces; Department of Defense (DOD) civilians; DOD contract personnel; and DOD component assets, to include National Guard (NG) forces (when the Secretary of Defense [SecDef], in coordination with the governors of the affected states, elects and requests to use and fund those forces in Title 32, United States Code [USC], status), in response to a request for assistance (RFA) from civil authorities for domestic emergencies, cyberspace incident response, law enforcement support, and other domestic activities or from qualifying entities for special events. DSCA includes support to prepare, prevent, protect, respond, and recover from domestic incidents. DSCA is provided in response to requests from civil authorities and upon approval from

***Homeland Security,
Homeland Defense, and
Defense Support of Civil
Authorities***

appropriate authorities. DSCA is conducted only in the US homeland.

Homeland security (HS), homeland defense (HD), and DSCA are distinct operations.

HS is a concerted national effort to prevent terrorist attacks within the US; reduce America's vulnerability to terrorism, major disasters, and other emergencies; and minimize the damage and recover from attacks, major disasters, and other emergencies that occur.

HD is the protection of US sovereignty, territory, domestic population, and critical infrastructure against external threats and aggression or other threats, as directed by the President. DOD is responsible for HD.

DOD plays a vital role in all three missions involving the homeland—HD, HS, and DSCA. The key difference between the three missions is that DOD is responsible for the federal response to HD; DOD is in support of other federal agencies' HS responsibilities; and DOD conducts DSCA operations in support of another primary agency supporting a state, local, territorial, or tribal response. DOD works with the Department of Homeland Security (DHS) and other United States Government (USG) departments and agencies to accomplish these missions.

***Fundamentals of
Response***

State and local officials are responsible for preparing for and coordinating the provision of assistance to their populace for domestic emergencies and disasters. Governors have the authority to deploy and employ NG forces under their control in response to domestic incidents. NG forces in most situations will be employed under their control prior to requesting federal assistance; however, a governor may request federal assistance in parallel.

The USG maintains a wide array of capabilities and resources that can be made available upon request of the governor of a state or local civil authorities for immediate response or under mutual aid agreements. When an incident occurs that exceeds or is anticipated to exceed state, local, or tribal resources, both neighboring states and the USG may provide resources and capabilities to support the response.

***All Hazards Scope of
Defense Support of Civil
Authorities***

The homeland is confronted by a full spectrum of threats and hazards. Some can be difficult to categorize as either a traditional military threat requiring only a DOD response capability or a purely law enforcement threat requiring a nonmilitary response from DHS, the Department of Justice, or other civilian agency. The characterization of a particular threat may ultimately rest with the President. Other threats (e.g., civil disorder) may be characterized by individual governors.

Supporting a Comprehensive All Hazards Response

***State, Local, Territory,
and Tribal Government
Roles***

Response begins at the local level with public officials and responders at the county, city, municipality, or town affected by the incident. Local leaders and emergency responders prepare their communities to manage incidents locally. The National Response Framework (NRF) response guidance describes coordinating resources within jurisdictions, among adjacent jurisdictions, and with the private sector and nongovernmental organizations (NGOs) such as the American Red Cross.

Federal Role

The USG maintains a wide range of capabilities and resources that may be required to deal with domestic incidents to save lives and protect property and the environment while ensuring the protection of privacy, civil rights, and civil liberties. All USG departments and agencies must cooperate with one another and with state, local, tribal, and territorial governments, community members, and the private sector to the maximum extent possible.

The USG becomes involved with a response when federal interests are involved; if state, local, tribal, or territorial resources are overwhelmed; and federal assistance is requested or as authorized or required by statute, regulation, or policy. Accordingly, in some instances, the USG may play a supporting role to state and local civil authorities by providing federal assistance to the affected parties.

***Department of Defense
Immediate Response and
Emergency Authority***

As authorized by Title 42, USC, Chapter 68, Section 5121, The Robert T. Stafford Disaster Relief and Emergency Assistance Act) (commonly referred to as the (Stafford Act) and prescribed by Department of Defense Directive (DODD) 3025.18, *Defense Support of Civil Authorities*

(DSCA), federal military commanders, heads of DOD components, and responsible DOD civilian officials have immediate response authority. In response to an RFA from a civil authority, under imminently serious conditions and if time does not permit approval from higher authority, DOD officials may provide an immediate response by temporarily employing the resources under their control, subject to any supplemental direction provided by higher headquarters, to save lives, prevent human suffering, or mitigate great property damage within the US.

Emergency Support Functions

The USG and many state governments organize their response resources and capabilities under the emergency support function (ESF) construct. ESFs have proven to be an effective way to organize and manage resources to deliver core capabilities. The federal ESFs are the primary, but not exclusive, federal coordinating structures to build, sustain, and deliver the response core capabilities. The federal ESFs bring together the capabilities of USG departments and agencies and other national-level assets.

ESFs are not based on the capabilities of a single department or agency, and the functions for which they are responsible cannot be accomplished by any single department or agency. Instead, federal ESFs are groups of organizations that work together to deliver core capabilities and support an effective response.

Catastrophic Incident Support

A catastrophic event could result in significant nationwide impacts over a prolonged period of time. It almost immediately exceeds resources normally available to state, local, territory, tribal, and private-sector authorities in the impacted area, and it significantly interrupts governmental operations and emergency services to such an extent that national security could be threatened.

Recognizing that federal or national resources are required to augment overwhelmed state, local, territory, and tribal response efforts, the NRF Catastrophic Incident Annex establishes protocols to pre-identify and rapidly deploy key essential resources (e.g., medical teams, search and rescue teams, transportable shelters, medical and equipment caches, and emergency communications) required to save lives and contain incidents.

***Interorganizational
Coordination***

When the overall coordination of federal response activities is required, it is implemented through the Secretary of Homeland Security, consistent with Homeland Security Presidential Directive-5, *Management of Domestic Incidents*. Other USG departments and agencies carry out their response authorities and responsibilities within this overarching construct.

Unity of Effort

Incidents are managed at the lowest level possible. Federal support is provided in response to requests from state or local officials through the state coordinating officer to the federal coordinating officer. The federal coordinating officer coordinates for DOD support through the defense coordinating officer (DCO) in the joint field office. DOD may provide support to the lead federal agency, which has the lead in managing the federal response to a domestic incident. DHS is responsible for domestic incident management and the framework for federal interaction with state, local, territorial, and tribal governments; the private sector; and NGOs in the context of incident preparedness, response, and recovery activities. DOD support to this response will be initiated through a formal RFA or mission assignment process or provided as directed by the President or SecDef.

***Department of Defense
and Emergencies in the
Homeland***

DSCA is initiated by a request for DOD assistance from civil authorities or is authorized by the President or SecDef.

Title 32, USC, Section 317, states dual-status commander-led joint task forces should be the usual and customary command and control arrangement established in response to an emergency or major disaster within the US when both federal and state military forces are supporting the response.

Requests for DSCA should be written and include a commitment to reimburse DOD in accordance with (IAW) the Stafford Act; Title 31, USC, Section 1535 (also known as the Economy Act of 1932); or other authorities, except requests for support for immediate response, and mutual or automatic aid, IAW DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*. Unless approval authority is otherwise delegated by SecDef, all DSCA requests shall be submitted to the office of the Executive Secretary of DOD.

Command and Control in United States Northern Command and United States Pacific Command Areas of Responsibility

For DSCA operations, SecDef designates a supported combatant commander. Ordinarily, this will be Commander, US Northern Command, for the continental US, Alaska, Puerto Rico, and the US Virgin Islands and Commander, US Pacific Command, for Hawaii, Guam, American Samoa, and the Northern Mariana Islands. The Chairman of the Joint Chiefs of Staff (CJCS) may publish, if required, a SecDef-approved execute order (EXORD) to further delineate support relationships, available forces, end state, purpose, and SecDef-approved scope of actions.

Planning Considerations for Defense Support of Civil Authorities

To expedite planning and operational response during crisis situations, the CJCS publishes a DSCA EXORD and a chemical, biological, radiological, and nuclear response EXORD to allow prompt force deployment in support of domestic incidents. DOD planners work hand-in-hand with NG and civilian planners to develop tailored regional civil-military plans for DSCA. These plans inform local, territorial, tribal, state, and national planning efforts.

Supporting Civilian Law Enforcement Agencies

When requested, federal forces may provide support to federal, state, territory, tribal, insular areas, and local law enforcement organizations reacting to civil disturbances, conducting border security and counterdrug missions, preparing for antiterrorism operations, and participating in other related law enforcement activities. The requested support must be consistent with the limits Congress placed on military support to law enforcement through the Posse Comitatus Act (PCA) and other laws.

The Posse Comitatus Act

The primary restriction on DOD participation in civilian law enforcement activities is the PCA. IAW DOD policy, unless specifically authorized by law, no DOD personnel in a Title 10, USC, status will become involved in direct civilian law enforcement activities, including, but not limited to, search, seizure, arrest, apprehension, stop and frisk, surveillance, pursuit, interrogation, investigation, evidence collection, security functions, traffic or crowd control, or similar activities, except in cases and under circumstances expressly authorized by the President, Constitution, or act of Congress.

***Direct Assistance to
Civilian Law Enforcement
Agencies***

There are several forms of direct assistance to civilian law enforcement by military personnel that are permitted under the Military Purpose Doctrine. The Military Purpose Doctrine provides that law enforcement actions that are performed primarily for a military purpose, even when incidentally assisting civil authorities, will not violate the PCA. The Military Purpose Doctrine requires a legitimate, independent military purpose for participating in law enforcement activities against civilians.

***Other Permissible Types
of Military Support to Law
Enforcement Agencies***

DOD Instruction 3025.21, *Defense Support of Civilian Law Enforcement Agencies*, allows the Military Departments and DOD agencies to provide training that is not “large scale or elaborate” and does not permit a direct or regular involvement of military personnel in activities that are traditionally civilian law enforcement operations.

***Law Enforcement
Considerations***

Domestic law enforcement support requires expert legal advice to military leaders at every level. The command staff judge advocate should review plans and orders carefully. To avoid delays, proper preplanning is critical to mission support. Plans and orders should identify measures that require legal consultation, command approval, or both.

Other Domestic Activities and Special Events

There is a range of activities that do not fall into the category of response to a natural or man-made disaster or support to law enforcement, but still leverage DOD resources. Examples include the following activities:

- National special security events,
- Community support activities,
- Sensitive support operations,
- Military training exchanges,
- Specialized support,
- Support provided to the US Secret Service,
- Civil Air Patrol/Air Force auxiliary support,
- Incident awareness and assessment,
- Civilian critical infrastructure protection,
- Postal services,
- Explosive ordnance disposal,

- Urban Search and Rescue Program, and
- Defense support to cyberspace incident response.

Other DSCA missions include wildland firefighting, oil and hazardous material response, nuclear and radiological incident support, animal and plant disease response, medical countermeasures distribution, pandemic influenza and infectious disease response, mass migration, and civil disturbance operations.

Supporting and Sustaining Activities

Personnel Services

The core functional responsibilities of a manpower and personnel directorate of a joint staff (J-1) are accomplished during DSCA operations.

Personnel Support. The authorities and responsibilities for personnel support to DSCA operations are largely the same as those for any other DOD mission set.

Personnel Accountability. Personnel accountability, strength reporting, and manpower management are the focal points for a joint force J-1 during DSCA operations. Service personnel elements supporting home station deployments should accomplish all processing and reporting requirements before unit deployment. The employing joint task force will normally establish a joint personnel reception center to conduct personnel accountability and to ensure that arriving units are ready for employment.

Intelligence Support

Commanders should expect force protection to be integrated into domestic and domestic support operations due to a heightened awareness of threats. These needs and expectations pose unique issues in meeting the commander's need for information to support DSCA operations. DOD intelligence components and any unit performing an intelligence function are governed by DODD 5240.01, *DOD Intelligence Activities*; DOD Manual 5240.01, *Procedures Governing the Conduct of DOD Intelligence Activities*; DODD 5148, *Intelligence Oversight*; and DOD 5240.1-R, *Procedures Governing the Activities of DOD Intelligence Components that Affect United States Persons*. Other DOD personnel are subject to DODD 5200.27, *Acquisition of Information Concerning Persons and Organizations Not Affiliated with the Department of Defense*. IAW Executive Order

12333, *United States Intelligence Activities* (as amended), and DOD policy, the only authorized mission sets for DOD intelligence components are defense-related foreign intelligence and counterintelligence. For these reasons, DOD intelligence component personnel are limited to the performance of only these mission sets. Any use of traditional DOD intelligence assets or capabilities for nontraditional uses must be expressly approved by SecDef.

Logistics

During times of crisis, DOD may provide vital logistics support to civil authorities.

The authorities and responsibilities for logistics operations in support of DSCA are largely the same as logistics operations for any other DOD mission set. Some notable exceptions apply to DSCA operations within the land, airspace, and territorial waters of the US.

When multiple logistics capabilities from many participating agencies, multinational partners, international organizations, NGOs, and private-sector entities are involved in DSCA operations, each is ultimately responsible for providing logistics support for their own forces. However, the geographic combatant commander (GCC) should strive to integrate efforts through the use of acquisition and cross-servicing agreements and associated implementing arrangements and any other vehicle necessary to provide logistics support. Optimizing the capabilities should result in greater flexibility, more options, and more effective logistics support.

Public Affairs

During DSCA operations, military public affairs (PA) activities, military civil authority information support (CAIS) element activities, public information actions, and news media access to the DSCA operational area are subject to approval by the primary agency.

The primary agency may establish a joint information center (JIC) to coordinate PA, CAIS, and public information actions.

The DOD forces should coordinate PA activities and comply with PA guidance from the JIC, and if one is not set up, from the joint field office.

Health Services

As a supporting agency to the Department of Health and Human Services, DOD will coordinate mission assignments involving health services through the DCO. DOD may receive RFAs submitted to the Office of the Secretary of Defense Executive Secretary prior to establishing a DCO. These RFAs are approved by SecDef and will be coordinated with the DCO once established. Additionally, the department of Health and Human Services may request assistance from DOD without going through the Federal Emergency Management Agency and the multiagency contract process IAW the Economy Act of 1932. DOD employs and integrates the medical response through the following joint medical capabilities: first responder care, forward resuscitative care, en route care, theater hospitalization, and definitive care. The focus of DOD medical support is to save lives and support restoration of essential health services in collaboration with the state and local health authorities. The scope of the medical response will vary with the type and scale of emergency. A clear focus must remain on transition to other medical support organizations.

Mortuary Affairs

While the GCCs coordinate DOD mortuary affairs operations within their area of responsibility, the local, state, tribal, or territorial medical examiner or coroner will most likely maintain jurisdiction over both military and civilian fatalities, including mass casualty events. In the domestic environment, the individual with jurisdiction has authority to order and perform an investigation, to include an autopsy or an appropriate medicolegal death examination on human remains. Jurisdiction varies depending on geographical area and is dependent upon federal, state, county, or local laws. When there is a death of a Service member, jurisdiction will almost always be concurrent. Concurrent jurisdiction means that a local medical examiner or coroner has the authority to conduct the medicolegal death investigation, including autopsy, but may waive jurisdiction to the military or request Armed Forces Medical Examiner assistance.

Cyberspace Support

DSCA operations can include employment of DOD cyberspace forces, including NG or reserve forces, to assist the lead federal agency in support of state, local, territorial, and tribal civil authorities during a significant cybersecurity incident. DOD cyberspace forces may also be requested to support a larger DSCA effort that requires responses in throughout the operational area, through the

creation of critical emergency telecommunication networks or other critical infrastructure, including the security and defense of these infrastructures.

Conclusion

This publication provides joint doctrine to plan, conduct, and assess DSCA.

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CHAPTER I OVERVIEW

“This government will learn the lessons of Hurricane Katrina. We are going to review every action and make necessary changes so that we are better prepared for any challenge of nature, or act of evil men, that could threaten our people.”

**President George W. Bush
Jackson Square, New Orleans, Louisiana
September 15, 2005**

1. Introduction

a. The Armed Forces of the United States and Department of Defense (DOD) agencies may be called upon for defense support of civil authorities (DSCA) to support a whole-of-government response. The Armed Forces of the United States have a historic and enduring role in supporting civil authorities during times of emergency, and this role is described in national defense strategy as a primary mission of DOD.

b. The nature of DSCA in the US presents a unique challenge based on the history of the country and the interaction of the federal, state, local, territorial, and tribal governments and private and nonprofit organizations. These organizations establish the multiple layers and mutually reinforcing structures throughout the state, local, and tribal governments for interaction based on the US Constitution, as well as congressional legislation and established policy.

c. The multitude of challenges across the strategic environment place a strong commitment on globally integrated operations and the need for DOD to partner with other nations and organizations for all types of missions. The DSCA mission is no different. DOD priorities, in order, are homeland defense (HD), force protection (FP), mission assurance, and DSCA response. It is imperative the DSCA mission is coordinated with potential lead federal agencies to ensure response capabilities are available in the event of a catastrophic disaster. Recent efforts, such as integrated planning between DOD and Federal Emergency Management Agency (FEMA), are key to ensuring capabilities are available for all DOD missions. Interagency planning has advanced over the past decade. Integrated planning improves the analytical rigor to make plans more operationally effective and executable for DSCA.

d. Federal law, as codified in Title 10 and Title 32, United States Code (USC), creates distinct mechanisms for the Secretary of Defense (SecDef) and state authorities to call upon National Guard (NG) forces for resources. Federal forces, both active and reserve, may also be requested under Title 10, USC, authority. The National Guard Bureau (NGB) is a joint activity of DOD and provides a communication channel for NG to DOD to support unified action. NG forces operate under state active duty, Title 32, USC, or federal active duty, Title 10, USC, depending on activation status. NG forces perform DSCA missions only in a Title 32, USC, or Title 10, USC, duty status.

In accordance with Department of Defense Manual 5200.01, Volume 3, *Department of Defense Information Security Program: Protection of Classified Information*, the homeland is “the physical region that includes the continental United States, Alaska, Hawaii, United States possessions and territories, and surrounding territorial waters and airspace.” Furthermore, Department of Defense Directive (DODD), 3025.18, *Defense Support of Civil Authorities (DSCA)*, specifies defense support of civil authorities is executed “within the United States, including the District of Columbia, the Commonwealth of Puerto Rico, the United States Virgin Islands, Guam, American Samoa, the Commonwealth of the Northern Mariana Islands, and any territory or possession of the United States or any political subdivision thereof.” Additionally, the National Cyber Incident Response Plan; Presidential Policy Directive-41, *US Cyber Incident Coordination Policy*; and Directive Type Memorandum 17-007, *Interim Policy and Guidance for Defense Support to Cyber Incident Response*, includes cyberspace.

Various Sources

e. The United States Coast Guard (USCG) performs national defense, maritime safety, security, and stewardship roles and missions. USCG forces normally integrate into the National Response Framework (NRF) and remain under the operational control (OPCON) and administrative control (ADCON) of the USCG to execute its statutory missions. The USCG, when performing statutory roles and missions, may be supported by DOD conducting DSCA.

For additional information, see Department of Defense Directive (DODD) 3025.18, Defense Support of Civil Authorities (DSCA); FEMA Publication, Integrated Planning Refinement and Implementation Guidance; Army Techniques Publication (ATP) 3-28.1/Marine Corps Reference Publication (MCRP) 3-30.6/Navy Tactics, Techniques, and Procedures (NTTP) 3-57.2/Air Force Tactics, Techniques, and Procedures (AFTTP) 3-2.67, Multi-Service Tactics, Techniques, and Procedures for Defense Support of Civil Authorities (DSCA); Department of Defense Instruction (DODI) 3025.22, The Use of the National Guard for Defense Support of Civil Authorities; and Coast Guard Publication 3-28, Incident Management and Crisis Response.

2. Defense Support of Civil Authorities

a. DSCA is support provided by federal military forces; DOD civilians; DOD contract personnel; and DOD component assets, to include NG forces (when SecDef, in coordination with the governors of the affected states, elects and requests to use and fund those forces in Title 32, USC, status), in response to a request for assistance (RFA) from civil authorities for domestic emergencies, cyberspace incident response, law enforcement support, and other domestic activities or from qualifying entities for special events. DSCA includes support to prepare, prevent, protect, respond, and recover from domestic incidents. DSCA is provided in response to requests from civil authorities and upon approval from appropriate authorities. DSCA is only conducted in the US homeland.

See DODD 3025.18, Defense Support of Civil Authorities (DSCA); DODI 3025.22, The Use of the National Guard for Defense Support of Civil Authorities; and Department of Defense Manual (DODM) 3025.01, Department of Defense Manual, Defense Support of Civil Authorities, Volumes 1-3, for more information.

b. DSCA is DOD support rendered only in the homeland, which relies on the ability of the military commander to integrate DOD capabilities with other resources and capabilities to achieve objectives identified by the requesting civil authorities. Military forces are required to coordinate, integrate, and synchronize their support with other government and nongovernment agencies and organizations. A range of domestic responses is provided by the Active Component (AC) and Reserve Component (RC), which includes the NG.

c. The NG conducts domestic operations as support provided by the NG of the states while in state active duty status or Title 32, USC, duty status to civil authorities for domestic emergencies and designated law enforcement and other activities. Commanders should be aware that NG support provided in a state active duty or in a Title 32, USC, status differs from federal military support and its associated command and control (C2) of assigned forces.

d. It is DOD policy that defense support to cyberspace incident response applies to all DOD components. It also applies to the NG personnel when SecDef determines, with the concurrence of the governors of the affected states, that it is appropriate to employ NG personnel in Title 32, USC, status to fulfill a request for defense support of civil authorities.

For additional information on interorganizational issues, see Joint Publication (JP) 3-08, Interorganizational Cooperation. For more information on NG domestic operations, see ATP 3-28.1/MCRP 3-30.6/NTTP 3-57.2/AFTTP 3-2.67, Multi-Service Tactics, Techniques, and Procedures for Defense Support of Civil Authorities (DSCA). For more information on defense support to cyberspace incident response, see Directive-Type Memorandum (DTM) 17-007, Interim Policy and Guidance for Defense Support to Cyber Incident Response.

e. DSCA capabilities are generally derived from DOD warfighting capabilities that may be applied to domestic assistance. In the case of the NG, Congress authorizes National Guard and Reserve Equipment Appropriation funds to purchase commercial off-the-shelf capabilities that also perform as DSCA-related necessary equipment, personnel, and training for response to domestic emergencies. Unlike DSCA operations, foreign humanitarian assistance operations are conducted by DOD outside of the US homeland. Foreign humanitarian assistance operations are DOD activities, normally in support of the United States Agency for International Development (USAID) or Department of State (DOS), conducted outside the US and its territories to relieve or reduce human suffering, disease, hunger, or privation.

For additional information, see JP 3-29, Foreign Humanitarian Assistance.

DSCA [Defense Support of Civil Authorities]. Support provided by US federal military forces, DOD [Department of Defense] civilians, DOD contract personnel, DOD component assets, and National Guard forces (when the Secretary of Defense, in coordination with the Governors of the affected States, elects and requests to use those forces in Title 32, US Code, status) in response to requests for assistance from civil authorities for domestic emergencies, law enforcement support, and other domestic activities, or from qualifying entities for special events.

Emergency authority. A federal military commander's authority, in extraordinary emergency circumstances where prior authorization by the President is impossible and duly constituted local authorities are unable to control the situation, to engage temporarily in activities that are necessary to quell large-scale, unexpected civil disturbances because (1) such activities are necessary to prevent significant loss of life or wanton destruction of property and are necessary to restore governmental function and public order or (2) duly constituted federal, state, or local authorities are unable or decline to provide adequate protection for federal property or Federal governmental functions.

Immediate response authority. A federal military commander's, DOD component head's, and/or responsible DOD civilian official's authority temporarily to employ resources under their control, subject to any supplemental direction provided by higher headquarters, and provide those resources to save lives, prevent human suffering, or mitigate great property damage in response to a request for assistance from a civil authority, under imminently serious conditions when time does not permit approval from a higher authority within the United States. Immediate response authority does not permit actions that would subject civilians to the use of military power that is regulatory, prescriptive, proscriptive, or compulsory.

Source: Adopted from Department of Defense Directive 3025.18, Defense Support of Civil Authorities (DSCA)

3. Homeland Security, Homeland Defense, and Defense Support of Civil Authorities

The terms homeland security (HS), HD, and DSCA are distinct operations.

a. **HS** is a concerted national effort to prevent terrorist attacks within the US; reduce America's vulnerability to terrorism, major disasters, and other emergencies; and minimize the damage and recover from attacks, major disasters, and other emergencies that occur. HS is an integral element of a broader US national security and domestic policy. Protecting the US from terrorism is the cornerstone of HS.

(1) HS describes the intersection of evolving threats and hazards with traditional governmental and civic responsibilities for civil defense, emergency response, law enforcement, customs, border control, and immigration (see Figure I-1).

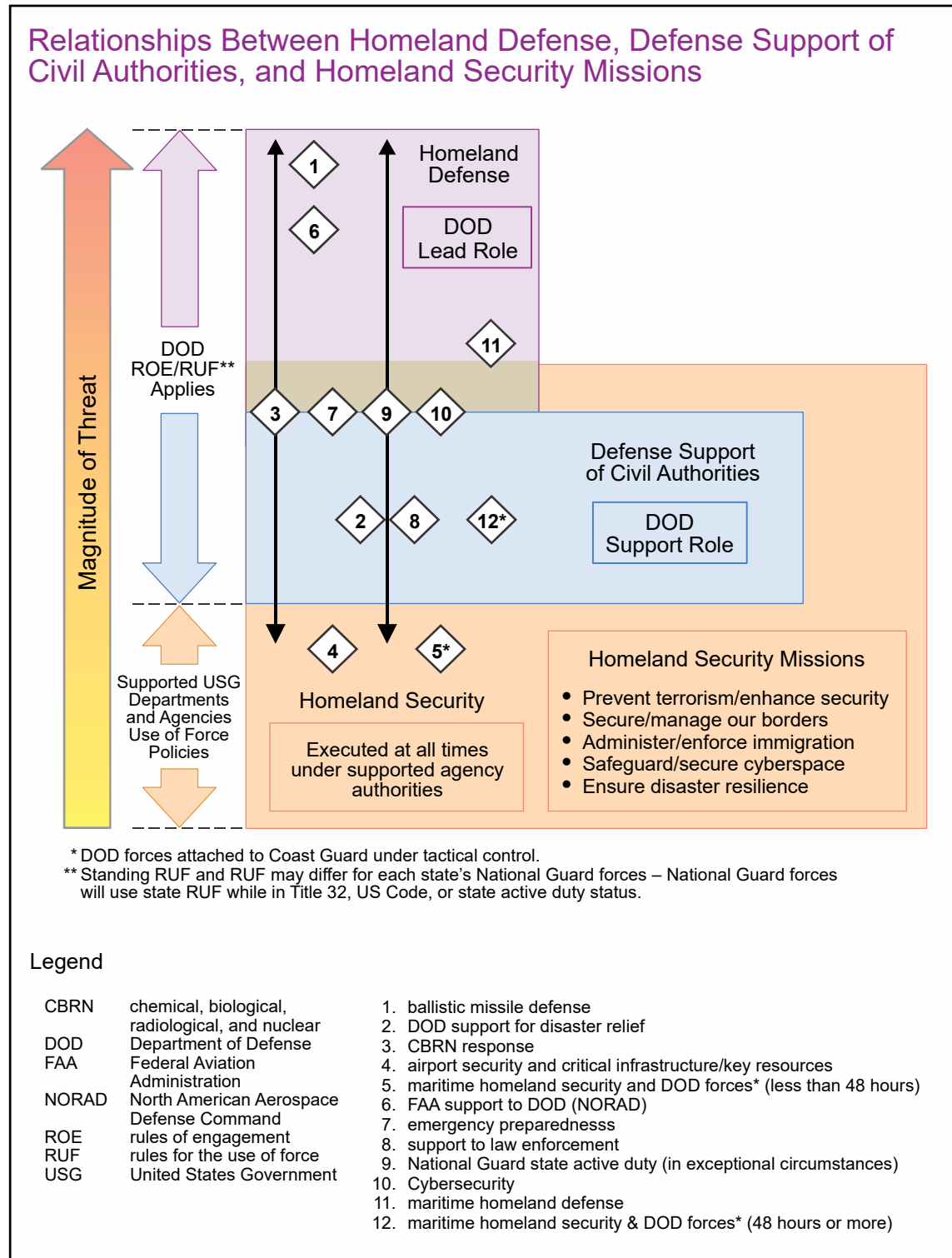


Figure I-1. Relationships Between Homeland Defense, Defense Support of Civil Authorities, and Homeland Security Missions

(2) *The National Strategy for Homeland Security (NSHS)* complements the *National Security Strategy*. The purpose of the NSHS is to guide, organize, and unify the

nation's HS efforts. While the Department of Homeland Security (DHS) is the lead federal agency (LFA) for mitigating vulnerabilities, threats, and incidents related to terrorism, its responsibilities also include preparing for, responding to, and recovering from natural disasters; stemming illegal drug flows; thwarting illegal immigration; strengthening border security; promoting the free flow of commerce; conducting critical infrastructure protection (CIP); and safeguarding and securing cyberspace.

(3) The President of the United States is uniquely responsible for the safety and security of the nation. The President leads the overall HS policy direction and coordination. United States Government (USG) departments and agencies, in turn, are empowered by law and policy to fulfill various aspects of the HS mission. DHS has the mission to:

- (a) Prevent terrorism and enhance security,
- (b) Secure and manage US borders,
- (c) Enforce and administer immigration laws,
- (d) Safeguard and secure cyberspace,
- (e) Ensure resilience to disasters, and
- (f) Mature and strengthen the HS enterprise.

(4) However, as a distributed system, no single entity has the mission to directly manage all aspects of HS.

(5) Three key concepts form the foundation for a comprehensive approach to HS:

- (a) Security: protect the US and its people, vital interests, and way of life;
- (b) Resilience: foster individual, community, and system robustness, adaptability, and capacity for rapid recovery; and
- (c) Customs and exchange: expedite and enforce lawful trade, travel, and immigration.

b. **HD** is the protection of US sovereignty, territory, domestic population, and critical infrastructure against external threats and aggression or other threats, as directed by the President. DOD is responsible for HD.

For additional information on HD, see JP 3-27, Homeland Defense, and DODD 3160.01, Homeland Defense Activities Conducted by the National Guard.

c. DOD plays a vital role in all three missions involving the homeland—HD, HS, and DSCA. The key difference between the three missions is that DOD is responsible for the federal response to HD; DOD is in support of other federal agencies' HS responsibilities;

and DOD conducts DSCA operations in support of another primary agency supporting a state, local, territorial, or tribal response. DOD works with DHS and other USG departments and agencies to accomplish these missions.

4. Fundamentals of Response

a. State and local officials are responsible for preparing for and coordinating the provision of assistance to their populace for domestic emergencies and disasters. Governors have the authority to deploy and employ NG forces under their control in response to domestic incidents. NG forces in most situations will be employed under their control prior to requesting federal assistance; however, a governor may request federal assistance in parallel.

b. The USG maintains a wide array of capabilities and resources that can be made available upon request of the governor of a state or local civil authorities for immediate response or under mutual aid agreements. When an incident occurs that exceeds or is anticipated to exceed state, local, or tribal resources, both neighboring states and the USG may provide resources and capabilities to support the response (see Figure I-2). Interstate mutual aid and assistance is provided through prearranged agreements such as the emergency management assistance compact (EMAC). The EMAC is a federal statute, nationally accepted by all states, to allow interstate mutual-aid agreement that enables states to share resources and certifications during times of disaster. For incidents involving

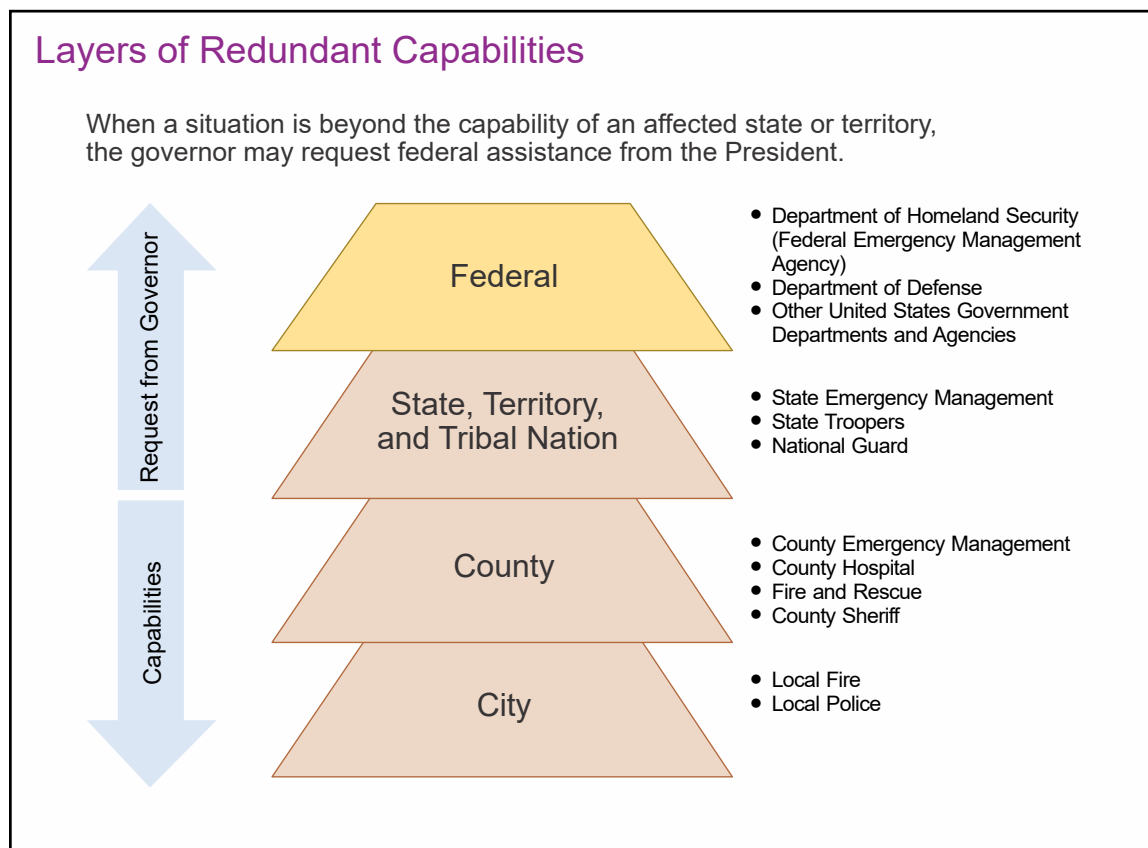


Figure I-2. Layers of Redundant Capabilities

primary federal jurisdiction or authorities (e.g., on a military base or a federal facility or lands), USG departments or agencies may be the first responders and first line of defense, coordinating activities with state, territorial, tribal, and local partners. The USG, states, and local governments also maintain working relationships with the private sector and nongovernmental organizations (NGOs) and will integrate as necessary when responding to domestic incidents.

c. Pursuant to the Homeland Security Act of 2002 and Homeland Security Presidential Directive (HSPD)-5, *Management of Domestic Incidents*, the Secretary of Homeland Security is the principal federal official for domestic incident management (unless it occurs on a DOD installation). Domestic incident management refers to how incidents are managed across five mission areas in accordance with (IAW) Presidential Policy Directive (PPD)-8, *National Preparedness*: prevention, protection, mitigation, response, and recovery. An incident is an occurrence, caused by either human action or a natural phenomenon, that requires action to prevent or minimize loss of life or damage to property and/or natural resources. The National Incident Management System (NIMS) is a requirement in all five mission areas of domestic incidents.

d. **PPD-8, *National Preparedness***, describes the nation's approach to prepare for the threats and hazards that pose the greatest risk to the security of the US. National preparedness is the shared responsibility of our whole community. The national preparedness goal describes what it means for the whole community to prevent, protect against, mitigate, respond to, and recover from the threats, hazards, disasters, and emergencies. These threats and risks include events such as natural disasters, disease pandemics, chemical spills and other man-made hazards, terrorist attacks, and cyberspace attacks. In addition to stating the goal, the national preparedness goal describes 32 activities, called core capabilities, that address the greatest risks to the nation.

e. The national preparedness system includes planning frameworks for all five mission areas. The national planning frameworks outline the strategy and doctrine for building, sustaining, and delivering core capabilities and set whole community roles and responsibilities.

f. **Federal Interagency Operational Plan (FIOP).** The FIOPs, one for each mission area, serve as a concept of operations (CONOPS)—focusing on how the federal government will execute in the delivery and support of the core capabilities within each of the five mission areas. The FIOPs describe the CONOPS to integrate and synchronize existing national-level federal capabilities to support state, local, territorial, tribal, and federal plans and are supported by federal, department-level operational plans, where appropriate. In addition to the NRF, the Response FIOP serves as a federal-level CONOPS, which focuses on how the USG will execute the delivery and support of the core capabilities for response to a domestic incident.

g. **NRF.** The NRF provides a comprehensive approach to domestic incident management utilizing the NIMS. DHS is the executive agent for NRF coordination, management, and maintenance. The NRF is coordinated and managed by the FEMA, an operational component of DHS. The NRF is an essential component of the National

Preparedness System and is not a plan but a framework that sets the doctrine for how the nation builds, sustains, and delivers the response core capabilities and objectives the nation must accomplish across all five mission areas to be secure and resilient. The NRF is a guide for how the nation responds to all types of disasters and emergencies. It is aligned with concepts identified in NIMS to synchronize key roles and responsibilities across the nation. The NRF provides common doctrine and purpose to foster unity of effort for emergency operations planning and response activities by providing common doctrine and purpose.

(1) The NRF is built upon scalable, flexible, and adaptable coordinating structures to align key roles and responsibilities across the nation, linking all levels of government, NGOs, and the private sector. The NRF is not based on a one-size-fits-all organizational construct but instead acknowledges the concept of a tiered response, which emphasizes that responses to incidents should be handled at the lowest jurisdictional level capable of handling the mission. It captures specific authorities and best practices for managing incidents that range from the serious but purely local to large-scale terrorist attacks or catastrophic natural disasters. The term “response,” as used in the NRF, includes capabilities necessary to save lives, protect property and the environment, and meet basic human needs after an incident has occurred. Response also includes the execution of emergency plans and actions to support short-term recovery. The NRF is always in effect, and elements can be implemented as needed on a flexible, scalable basis to improve response.

(2) Actions range in scope from ongoing situational reporting and analysis through the DHS National Operations Center, to the implementation of NRF incident annexes and other supplemental federal contingency plans, and full implementation of all relevant NRF coordination mechanisms outlined in the base plan.

(3) DOD has a large role in supporting the NRF. The NRF applies to all incidents requiring a coordinated federal response as part of an appropriate combination of federal, state, local, tribal, territorial, private sector, and nongovernmental entity efforts. DSCA may occur in response to, or in anticipation of, a presidential declaration of a major disaster or an emergency, in coordination with the primary agency.

(4) DSCA operations are consistent with the NRF in that they supplement the efforts and resources of other USG departments and agencies in support of state, local, and tribal governments, and voluntary organizations. When executing DSCA, the US military is most often in support of the lead USG department or agency coordinating the federal response. The President can direct DOD to be the lead for the federal response; however, this would only happen in extraordinary situations and would involve other DOD core mission areas. US federal and NG forces may also be conducting support at the state, local, or tribal levels.

h. NIMS

(1) NIMS provides a common, nationwide approach to enable the whole community to work together to manage all threats and hazards. NIMS applies to all

incidents, regardless of cause, size, location, or complexity. It includes a core set of concepts, principles, terminology, and technologies covering the incident command system (ICS); multiagency coordination systems; unified command; training; identification and management of resources (including systems for classifying types of resources); qualifications and certification; and the collection, tracking, and reporting of incident information and incident resources. The components of the NIMS include resource management, command and coordination, and communications and information management support response.

(2) The ICS, multiagency coordination systems, and public information systems are the fundamental elements of the NIMS that direct incident operations; acquire, coordinate, and deliver resources to incident sites; and share information about the incident with the public.

(3) When both local and state resources and capabilities are overwhelmed, governors may request interstate and federal assistance; however, NIMS is designed to allow local jurisdictional authorities to retain command, control, and authority over the response. Adhering to NIMS allows all agencies to better utilize limited resources.

i. The NRF and NIMS are designed to improve the nation's incident management capabilities and overall efficiency. During incidents requiring significant federal support, the NRF and NIMS integrate the capabilities and resources of various governmental jurisdictions, incident management and emergency response disciplines, NGOs, and the private sector into a cohesive, coordinated, and seamless national response. A basic premise of both the NIMS and the NRF is that incidents are generally handled at the lowest jurisdictional level possible. In the vast majority of incidents, local resources and local mutual aid provides the first line of emergency response and incident management.

A detailed discussion of the NRF and NIMS is contained in Appendix A, "National Incident Management System Overview."

j. **Emergency Support Functions (ESFs).** ESFs provide the structure to coordinate federal interagency support for a federal response to an incident. They are resources and capabilities grouped to provide federal support to states and federal-to-federal support, both for declared disasters and emergencies under Title 42, USC, Chapter 68, Section 5121, The Robert T. Stafford Disaster Relief and Emergency Assistance Act (commonly referred to as the Stafford Act), where the President has declared a federal disaster or emergency and for non-Stafford Act incidents (non-Stafford Act events are defined as events that have recovery requirements exceeding the capability of individuals and the local community, but do not exceed the capabilities of the state). ESFs are not based on the capabilities of a single USG department or agency, and the functions for which they are responsible cannot be accomplished by any single department or agency. Appendix B, "Emergency Support Functions," describes the roles and responsibilities of federal departments and agencies as ESF primary agencies.

5. All Hazards Scope of Defense Support of Civil Authorities

The homeland is confronted by a full spectrum of threats and hazards. Some can be difficult to categorize as either a traditional military threat requiring only a DOD response capability or a purely law enforcement threat requiring a nonmilitary response from DHS, the Department of Justice (DOJ), or other civilian agency. The characterization of a particular threat may ultimately rest with the President. Other threats (e.g., civil disorder) may be characterized by individual governors.

6. Legal and Policy Considerations

a. **Legal Considerations.** The legal authorities governing the employment of US military forces in DSCA operations include federal and affected state laws and several directives, making a comprehensive legal review of DSCA plans essential.

(1) Commanders should allow for the application of military capabilities and resources within the constraints of the law. Accordingly, commanders should seek legal advice regarding DSCA plans, policies, and operations from their staff judge advocates to ensure compliance with legal requirements. This may require prior education and training of assigned staff judge advocate personnel in operational functions and processes.

(2) The NG provides requested military response to domestic emergencies. The early employment of the NG is often in state active duty status at the direction of the governor and the command of the adjutant general (TAG). The NG could also be employed in Title 32, USC, status or Title 10, USC, status, both of which require SecDef approval.

(3) There are advantages associated with employment of the NG in either state active duty or Title 32, USC, status. Most notable is the ability to assist law enforcement as the Posse Comitatus Act (PCA) does not apply to Title 32, USC, or state active duty forces. To support operational continuity, most, if not all, NG forces supporting a response will remain in state active duty or Title 32, USC, status throughout an event. The military response to events that require DSCA will be a coordinated effort between the NG in state active duty or Title 32, USC, status and Titles 10 and 14, USC, USCG forces. When federal military forces and the NG are employed simultaneously in support of civil authorities in the US, appointment of a commissioned officer as a dual-status commander (DSC) serving as commander of federal forces by federal authorities and as commander of state NG forces by state authorities should be the usual and customary C2 arrangement.

b. **Policy Considerations.** Military commanders, executing validated missions, should use DOD resources judiciously while conducting DSCA operations by adhering to the validation criteria of cost, appropriateness, risk, readiness, legality and lethality as discussed in DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*. Some supporting principles include:

(1) DOD resources are provided only when response or recovery requirements are beyond the capabilities of local, state, and federal civil authorities and when they are requested by an LFA and approved by SecDef. An exception to this is in the case of immediate response authority. When requested by civil authorities, and when time does

not permit approval from higher authority, commanders can respond to save lives, prevent human suffering, or mitigate great property damage under imminently serious conditions within the US. Refer to DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*, for a full explanation of the requirements and constraints of immediate response authority. The commander exercising immediate response authority reports all activities using DOD protocols, not lead agency or local authority mechanisms.

(2) DOD components do not perform any function of civil government unless authorized. Refer to DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*, for DOD policy on providing military support, including personnel and equipment, to law enforcement agencies (LEAs). Additionally, DOD resources may also respond to search and rescue (SAR) cases on an “ask not task” basis with a federal mission number from either the Air Force Rescue Coordination Center (AFRCC) or the Alaska Rescue Coordination Center (AKRCC).

c. DOD Intelligence Component Support to Civil Authorities and LEAs and Intelligence Oversight. Commanders and staffs must carefully consider the legal and policy limits imposed on intelligence activities in support of LEAs and on intelligence activities involving US citizens and entities by intelligence oversight regulations, policies, and executive orders (EOs). This oversight includes incident awareness and assessment (IAA) activities and products. No intelligence activities should take place while conducting DSCA unless authorized by appropriate authorities IAW EO 12333, *United States Intelligence Activities*; DODD 5240.01, *Defense Intelligence Activities*; DODM 5240.01, *Procedures Governing the Conduct of DOD Intelligence Activities*; DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*; and DOD 5240.1-R, *Procedures Governing the Activities of DOD Intelligence Components that Affect United States Persons*.

For more information, see Appendix E, “Key Legal and Policy Documents.”

CHAPTER II

SUPPORTING A COMPREHENSIVE ALL HAZARDS RESPONSE

1. State, Local, Territory, and Tribal Government Roles

a. **Response begins at the local level with public officials and responders at the county, city, municipality, or town affected by the incident.** Local leaders and emergency responders prepare their communities to manage incidents locally. The NRF response guidance describes coordinating resources within jurisdictions, among adjacent jurisdictions, and with the private sector and NGOs such as the American Red Cross.

(1) **Chief Elected or Appointed Official.** A mayor, city manager, or county manager, as a jurisdiction's chief executive officer, ensures the public safety and welfare of the people of that jurisdiction. Specifically, this official provides strategic guidance and resources during preparedness, response, and recovery efforts. At times, these roles require providing direction and guidance to constituents during an incident, as the officials' day-to-day activities do not focus on emergency management and response.

(2) **Emergency Manager.** The local emergency manager oversees daily emergency management programs and activities. The emergency manager establishes and/or directs functions of an emergency operations center (EOC). The EOC is the physical location where multiagency coordination occurs. The emergency manager ensures the EOC is staffed to support the incident command and arranges needed resources. The emergency manager coordinates all components of the local emergency management program, to include assessing the availability and readiness of local resources most likely required during an incident and identifying and correcting any shortfalls.

(3) **Incident Commander.** The incident commander is the person responsible for all aspects of an emergency response, including quickly developing incident objectives, managing all incident operations and application of resources, as well as responsibility for all persons involved. The incident commander sets priorities and defines the organization of the incident response teams and the overall incident action plan. The role of incident commander may be assumed by senior or higher-qualified officers upon their arrival or as the situation dictates. Even if subordinate positions are not assigned, the incident commander position will always be designated or assumed. The incident commander may, at his or her own discretion, assign individuals, who may be from the same agency or from assisting agencies, to subordinate or specific positions for the duration of the emergency. Military forces always remain under the control of the military chain of command and are subject to redirection or recall at any time. Military forces do not operate under the command of the incident commander or under the unified command structure, but they do coordinate with response partners and work toward a unity of effort while maintaining their internal chain of command.

b. A primary responsibility of state government is to supplement and facilitate local efforts before, during, and after domestic emergencies. The state provides direct and routine assistance to its local jurisdictions through emergency management program development and by routinely coordinating these efforts with federal officials. The

Stafford Act provides the authority for the USG to respond to a presidential-declared major disaster or emergency. The act gives the President the authority to establish a program or disaster preparedness and response support, which is delegated to DHS. Under the Stafford Act, states are also responsible for requesting federal emergency assistance for communities within their jurisdiction. In response to an incident, the state helps coordinate and integrate resources and applies them to local needs.

(1) **Governor.** Public safety and welfare of a state's citizens are fundamental responsibilities of every governor. For the purposes of the NRF, any reference to a state governor also references the chief executive of a US territory. The governor:

(a) Coordinates state resources and provides the strategic guidance needed to prevent, mitigate, prepare for, respond to, and recover from incidents of all types.

(b) IAW state law, may make, amend, or suspend certain orders or regulations associated with response.

(c) Communicates to the public and helps people, businesses, and organizations cope with the consequences of any type of incident.

(d) Commands the state military forces (NG personnel not in Title 10, USC, status and state defense forces).

(e) Coordinates assistance from other states through interstate mutual-aid and assistance compacts, such as memoranda of agreement (MOAs), memoranda of understanding (MOUs), or via an EMAC. EMACs work in synergy with the federal disaster response system by providing timely resources to states requesting assistance from assisting member states. MOAs, MOUs, or EMACs can be used either in lieu of federal assistance or in conjunction with federal assistance, thus providing a seamless flow of needed goods and services to an impacted state. These mutual-aid agreements further provide another avenue for mitigating limited resources to help ensure maximum use of those limited resources within member states' inventories.

(f) Requests federal assistance including, if appropriate, a Stafford Act presidential declaration of an emergency or major disaster, when it becomes clear that state capabilities will be insufficient or have been exceeded.

(g) Coordinates with impacted tribal governments within the state and initiates requests for a Stafford Act presidential declaration of an emergency or major disaster on behalf of an impacted tribe when appropriate.

(h) Establishes a DSC upon the mutual agreement with SecDef for the unity of effort and unity of command of federal and state military forces.

For additional information on the DSC, see Appendix D, "Department of Defense Dual-Status Commander."

(2) **State HS Advisor.** The state HS advisor serves as counsel to the governor on HS issues and may serve as a liaison between the governor's office, the state HS structure, DHS, and other organizations both inside and outside of the state. Depending on the state, TAG and the state HS advisor may be the same individual. The director of a state's emergency management agency often chairs a committee composed of representatives of relevant state agencies, including public safety; the NG; emergency management; public health; and others charged with developing prevent, protect, respond, and recover from services and support.

(3) **Director, State Emergency Management Agency.** All states have laws mandating establishment of a state emergency management agency and emergency plans coordinated by that state. The director of the state emergency management agency coordinates the state response in any incident and ensures the state is prepared to deal with large-scale emergencies and coordinates the statewide response to any such incident. This includes support to local governments as requested and coordinating assistance with other states and the USG. The state emergency management agency may dispatch personnel to the scene to assist in the response and recovery effort. If a jurisdiction requires resources beyond those available within the state, local agencies may request federal assistance through the state. As stated in paragraph 1.b.(2), "State HS Advisor," TAG; the state HS advisor; and the director, state emergency management, may also be the same individual.

(4) State TAGs advise their governors on military affairs and are the senior military officials in their respective state or territory. They provide C2 of state NG forces (Title 32, USC, or state active duty). State department and agency heads and their staffs develop, plan, and train to internal policies and procedures to meet response and recovery needs safely. They should also participate in interagency training and exercises to develop and maintain the necessary capabilities. They are vital to the state's overall emergency management and HS programs, as they bring expertise and serve as core members of the state EOC.

(5) A National Guard joint force headquarters-state (NG JFHQ-State) provides C2 of all NG forces in the state for the governor and can act as a joint headquarters for national-level response efforts during operations. The NG JFHQ-State is staffed with liaison officers (LNOs) from the active duty Services.

For additional information on NG JFHQ-State, see JP 3-08, Interorganizational Cooperation, and DODD 5105.83, National Guard Joint Force Headquarters-State (NG JFHQs-State).

c. **Tribal Governments.** Tribal governments coordinate resources to address actual or potential incidents. When local resources are not adequate, tribal leaders can seek assistance from states or the USG.

(1) The chief executives of tribal nations can elect to work with the state or to deal directly with the USG for disaster assistance.

(2) The tribal leader is responsible for the public safety and welfare of the people of that tribe. As authorized by tribal government, the tribal leader:

(a) Coordinates tribal resources needed to prevent, protect against, respond to, and recover from incidents of all types. This also includes preparedness and mitigation activities.

(b) May have powers to amend or suspend certain tribal laws or ordinances associated with response.

(c) Communicates with the tribal community and helps people, businesses, and organizations cope with the consequences of any type of incident.

(d) Negotiates mutual-aid and assistance agreements with other tribes or jurisdictions.

(e) Requests federal assistance under the Stafford Act when it becomes clear that the tribe's capabilities are insufficient.

See JP 3-08, Interorganizational Cooperation, for additional information on insular governments related to the US.

d. Insular Area Governments. Insular areas covered under DSCA include the Commonwealth of Puerto Rico, American Samoa, Guam, the US Virgin Islands, the Commonwealth of the Northern Mariana Islands, the Federated States of Micronesia, the Republic of the Marshall Islands, and the Republic of Palau. USG support under DSCA is coordinated through the existing insular government structure, regardless of the type and robustness of the government. See Title 48, USC.

2. Federal Role

a. The USG maintains a wide range of capabilities and resources that may be required to deal with domestic incidents to save lives and protect property and the environment while ensuring the protection of privacy, civil rights, and civil liberties. All USG departments and agencies must cooperate with one another and with state, local, tribal, and territorial governments, community members, and the private sector to the maximum extent possible.

b. The USG becomes involved with a response when federal interests are involved; if state, local, tribal, or territorial resources are overwhelmed; and federal assistance is requested or as authorized or required by statute, regulation, or policy. Accordingly, in some instances, the USG may play a supporting role to state and local civil authorities by providing federal assistance to the affected parties. For example, the USG provides assistance to state, local, tribal, and territorial authorities when the President declares a major disaster or emergency under the Stafford Act. In other instances, the USG may play a leading role in the response where the USG has primary jurisdiction or when incidents occur on federal property (e.g., national parks, military bases).

c. Regardless of the type of incident, the President leads the USG response effort to ensure the necessary resources are applied quickly and efficiently to large-scale and catastrophic incidents. Different USG departments or agencies lead coordination of the USG's response, depending on the type and magnitude of the incident, and are also supported by other agencies that bring their relevant capabilities to bear in responding to the incident. For example, FEMA leads and coordinates federal response and assistance when the President declares a major disaster or emergency under the Stafford Act. Similarly, the Department of Health and Human Services leads all federal public health and medical response to public health emergencies and incidents covered by the NRF.

d. The response to a catastrophic incident, and any cascading effects, requires a coordinated effort involving local, state, tribal, territorial, and federal governments; NGOs; and private sector partners. All response partners, organized in support of an ESF, utilize NIMS to facilitate usage of a common terminology, including the establishment of plain language (clear text) communications standards, accessible and actionable effective communication for whole community access, integrated communications, unified command structure, and comprehensive resource management to ensure effective coordination between all stakeholders.

3. Department of Defense Immediate Response and Emergency Authority

a. **Immediate Response.** As authorized by the Stafford Act, and prescribed by DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*, federal military commanders, heads of DOD components, and responsible DOD civilian officials have immediate response authority. In response to an RFA from a civil authority, under imminently serious conditions and if time does not permit approval from higher authority, DOD officials may provide an immediate response by temporarily employing the resources under their control, subject to any supplemental direction provided by higher headquarters, to save lives, prevent human suffering, or mitigate great property damage within the US. Immediate response authority is not an exception to the PCA nor does it permit actions that would subject civilians to the use of military power that is regulatory, prescriptive, proscriptive, or compulsory.

(1) A DOD official directing immediate response authority shall immediately notify, through the chain of command, the National Joint Operations and Intelligence Center (NJOIC). The NJOIC will inform United States Northern Command (USNORTHCOM) and/or United States Indo-Pacific Command (USINDOPACOM) and the appropriate DOD components.

(2) Immediate response ends when DOD assistance is no longer necessary (e.g., when there are sufficient resources and capabilities available from state, local, and other federal agencies to respond adequately) or when a DOD authority directs an end to the response. The DOD official directing a response under immediate response authority makes an assessment, no later than 72 hours after receipt of request for DOD assistance, as to whether there remains a need for the continued DOD support. Under Title 42, USC, DOD response may not exceed 10 days without presidential approval.

(3) Support provided under immediate response authority should be provided on an incremental, cost-reimbursable basis, where appropriate or legally required, but decisions to use DOD resources will not be delayed or denied based on the inability or unwillingness of the requester to make a commitment to reimburse DOD. DOD officials who authorize the expenditure of funds without first having satisfied all of the conditions necessary to properly exercise immediate response authority risk violating the Antideficiency Act, Title 31, USC, Section 1341. See Appendix F, “Reimbursement for Defense Support of Civil Authorities,” for additional guidance on reimbursement for DSCA.

(4) State officials have the authority to direct state-level or local-level immediate response authority using NG personnel serving in state active duty or Title 32, USC, status if this is IAW the laws of that state. As not all state officials have immediate response authority, there may be delays in obtaining approval from the governor.

(5) The distance from the incident to the DOD office or installation is not a limiting factor for the provision of support under immediate response authority. However, DOD officials should use the distance and the travel time to provide support as a factor in determining DOD’s ability to support the request for immediate response.

(6) The scale of the event should also be a deciding factor for whether to provide support to incidents several miles or hundreds of miles away from the installation under immediate response authority. In some cases of a catastrophic incident, the demands for life-saving and life-sustaining capabilities may exceed both the state’s and USG’s ability to mobilize sufficient resources to meet the demand. In these circumstances, installations and facilities not directly impacted should be prepared to provide immediate response support if they are able to save lives, prevent human suffering, or prevent great property damage.

For more information on immediate response authority, see DODD 3025.18, Defense Support of Civil Authorities (DSCA).

b. Emergency Authority. Emergency authority is a federal military commander’s authority, in extraordinary emergency circumstances where prior authorization by the President is impossible and duly constituted local authorities are unable to control the situation, to engage temporarily in activities that are necessary to quell large-scale, unexpected civil disturbances because such activities are necessary to prevent significant loss of life or wanton destruction of property and are necessary to restore governmental function and public order or duly constituted federal, state, local, territorial, or tribal authorities are unable or decline to provide adequate protection for federal property or federal governmental functions. Responsible DOD officials and commanders will use all available means to seek presidential authorization through the chain of command while applying their emergency authority. Emergency authority should not be confused with immediate response authority. Federal forces acting under immediate response authority are still bound by the PCA and may not participate directly in law enforcement; whereas, emergency authority and actions taken under the Insurrection Act are exceptions to the PCA.

For more information on emergency authority, see DODI 3025.21, Defense Support of Civilian Law Enforcement Agencies, and DODD 3025.18, Defense Support of Civil Authorities (DSCA).

4. Emergency Support Functions

a. The USG and many state governments organize their response resources and capabilities under the ESF construct. ESFs have proven to be an effective way to organize and manage resources to deliver core capabilities. The federal ESFs are the primary, but not exclusive, federal coordinating structures to build, sustain, and deliver the response core capabilities. The federal ESFs bring together the capabilities of USG departments and agencies and other national-level assets. ESFs are not based on the capabilities of a single department or agency, and the functions for which they are responsible cannot be accomplished by any single department or agency. Instead, federal ESFs are groups of organizations that work together to deliver core capabilities and support an effective response.

b. Many state and local jurisdictions have adopted and tailored the ESF construct. State and local jurisdictions establish ESFs based on their specific risks and requirements, and there is no mandatory or direct linkage to the federal ESFs. However, many are similar to the ESF construct outlined in the NRF. ESFs align categories of resources and provide strategic objectives for their use. ESFs utilize standardized resource management concepts such as typing, inventorying, and tracking to facilitate the dispatch, deployment, and recovery of resources before, during, and after an incident. ESF coordinators and primary agencies are identified on the basis of authorities and resources. Support agencies are assigned based on the availability of resources in a given functional area. ESFs provide the greatest possible access to USG department and agency resources regardless of which organization has those resources.

For a more detailed description of each of the 14 ESFs, see Appendix B, “Emergency Support Functions,” and DHS’s National Response Framework.

5. Catastrophic Incident Support

a. The NRF states a catastrophic incident is “any natural or man-made incident, including terrorism, that results in extraordinary levels of mass casualties, damage, or disruption severely affecting the population, infrastructure, environment, economy, national morale, or government functions.” Catastrophic incident is the same as catastrophic event in DOD. A catastrophic event could result in significant nationwide impacts over a prolonged period of time. It almost immediately exceeds resources normally available to state, local, territory, tribal, and private-sector authorities in the impacted area, and it significantly interrupts governmental operations and emergency services to such an extent that national security could be threatened. These factors drive the urgency for coordinated national planning to allow for accelerated federal or national assistance.

b. The catastrophic event becomes complex (complex catastrophe) when it severely affects the population, environment, economy, public health, national morale, response efforts, or government functions resulting from cascading failures of multiple, interdependent, critical life-sustaining infrastructure, in which disruption of one infrastructure component (such as the electric power grid) disrupts other infrastructure components (such as transportation and communications). Cascading infrastructure failures could magnify requirements for DSCA in the immediately impacted zone and outside affected areas in the region and complicate the operational environment that DOD would be asked to provide with assistance.

c. Recognizing that federal or national resources are required to augment overwhelmed state, local, territory, and tribal response efforts, the NRF Catastrophic Incident Annex establishes protocols to pre-identify and rapidly deploy key essential resources (e.g., medical teams, SAR teams, transportable shelters, medical and equipment caches, and emergency communications) required to save lives and contain incidents.

d. When a situation is beyond the capability of an affected state or territory, the governor may request federal assistance from the President. The President also has the authority to proactively direct the USG to provide supplemental assistance to state, local, territorial, or tribal governments to alleviate the suffering and damage resulting from disasters or emergencies.

e. In the event of a major catastrophe, SecDef, using the Chairman of the Joint Chiefs of Staff (CJCS) Emergency Action Plan process, convenes a consultative assessment process attended by SecDef, the CJCS, relevant combatant commanders (CCDRs), and other senior DOD leadership. SecDef determines whether DOD should treat an incident as a complex catastrophe based upon the magnitude of the catastrophe. SecDef approves and orders the level of support to the response, including forces and exceptions to policy, as necessary. SecDef notifies the President of worldwide risk and readiness issues to provide the level of support required.

See DODM 3025.01, Volume 2, Defense Support of Civil Authorities: DOD Incident Response, for information on the SecDef decision matrix and a listing of potential DOD support requirements by ESF.

6. Interorganizational Coordination

When the overall coordination of federal response activities is required, it is implemented through the Secretary of Homeland Security, consistent with HSPD-5, *Management of Domestic Incidents*. Other USG departments and agencies carry out their response authorities and responsibilities within this overarching construct. Nothing in the NRF alters or impedes the ability of federal, state, territory, tribal, or local departments and agencies to carry out their specific authorities or perform their responsibilities under all applicable laws, EOs, and directives. Additionally, nothing in the NRF is intended to impact or impede the ability of any USG department or agency to take an issue of concern directly to the President or any member of the President's staff.

a. **Planning Considerations for Interorganizational Coordination.** DOD works closely with other USG departments and agencies, in particular DHS and its subordinate organizations, when planning for DSCA. DSCA plans shall be compatible with the NRF, NIMS, and DOD issuances. DSCA planning should consider C2 options that emphasize unity of effort. DOD organizations and agencies provide numerous LNOs to DHS and DHS components. DOD LNOs may represent organizations and specialties such as the Office of the Secretary of Defense (OSD), combatant commands (CCMDs), combat support agencies, intelligence organizations, or engineers.

(1) As the supported geographic combatant commanders (GCCs), Commander, United States Northern Command (CDRUSNORTHCOM), and Commander, United States Indo-Pacific Command (CDRUSINDOPACOM), are DOD's principal planning agents for DSCA and provide joint planning and execution directives for peacetime assistance rendered by DOD within their assigned areas of responsibility (AORs). In addition to participating in interagency steering groups and councils, DOD has responsibilities under the NRF.

(2) DOD coordinates with interagency partners and through the Chief, National Guard Bureau (CNGB), to states/territories on all matters pertaining to the NG to ensure DOD planning supports the needs of those requiring DSCA. Coordination will align with the NRF, NIMS, and interagency coordination guidelines provided in the Guidance for Employment of the Force (GEF) and Chairman of the Joint Chiefs of Staff Instruction (CJCSI) 3110.01, *(U) Joint Strategic Campaign Plan (JSCP)*.

(3) The domestic operating environment for DSCA presents unique challenges to the joint force commander (JFC). It is imperative commanders and staffs at all levels understand the relationships, both statutory and operational, among all USG departments and agencies involved in the operation. Moreover, it is equally important to understand DOD's role in supporting other USG departments and agencies. **DOD provides assistance to the primary agency upon request by the appropriate civil authority and upon approval by the President, SecDef, or a SecDef-delegated official (e.g., the supported CCDR).** There are also specific USNORTHCOM and USINDOPACOM domestic plans (e.g., DSCA, civil disturbance operations) where the responsibilities of various USG entities are described in detail.

b. **Elements for Interagency Coordination.** The CCMD interagency coordination process complements and supports strategic interagency coordination processes and may involve application of such key elements as joint interagency coordination groups (JIACGs) in campaign plans, operation plans, and concept plans (CONPLANs). Annex V (Interagency Coordination) is found in Chairman of the Joint Chiefs of Staff Manual (CJCSM) 3130.03, *Adaptive Planning and Execution (APEX) Formats and Guidelines*, and provides a single-source reference to request interagency activities and to lay the groundwork for interagency coordination. All are designed to enhance information sharing, enable effective joint and interagency planning, and maximize coordinated operations.

(1) **JIACG.** The JIACG is an interagency staff group that establishes regular, timely, and collaborative working relationships between civilian and military operational planners. The JIACG provides the CCDR with the capability to collaborate at the operational level with other USG departments and agencies. It is composed of USG civilian and military experts assigned to the CCDR and tailored to meet the requirements of that supported CCDR. It is the CCDR's primary interagency forum to share information, analyze ongoing activities, and anticipate future interagency actions, implications, and/or consequences.

(2) **Agency Representatives and Command Representatives.** Subject matter experts (SMEs) and LNOs from key partner agencies and commands facilitate effective two-way communication, coordination, and cooperation. A formally established liaison and representative link between the CCMD and the partner agency is beneficial to both organizations. Specific focus should be on agency or command LNOs whose organizations play a key part in successful and seamless execution of DSCA operations. Regardless of mission, having key partner agency and command representatives is essential for the CCDR conducting operations in a US territory. Equally important, CCMDs may locate a command representative or LNO at key partner agencies commensurate with their operational requirements. On-the-ground agency representatives and command LNOs should typically be located where they will be most useful, supportive of command activities and beneficial to their parent agency or command. However, they should also have an ongoing interface with the CCMD JIACG. This maximizes their participation in support of the interagency process and benefits their particular agency or command.

(3) **Joint Field Office (JFO).** The JFO is a temporary, federal, multiagency coordination center established locally to facilitate field-level domestic incident management activities related to prevention, preparedness, response, and recovery when activated by the Secretary of Homeland Security. The JFO provides a central location for coordination of federal, state, local, territorial, tribal, nongovernmental, and private-sector organizations with primary responsibility for activities associated with threat response and incident support. When multiple JFOs are established to support an incident, one of the JFOs may be identified (typically in the most heavily impacted area) to serve as the primary JFO and provide strategic leadership and coordination for the overall incident management effort, as designated by the Secretary of Homeland Security. The JFO organizational structure is built upon NIMS, but does not impede, supersede, or impact the incident command post ICS command structure.

CONSTANT IMPROVEMENT FOR DEFENSE SUPPORT OF CIVIL AUTHORITIES

The lessons learned on improving interagency coordination and command and control options from previous defense support of civil authorities (DSCA) operations, such as Hurricane Katrina, paid tremendous dividends during Hurricane Sandy in 2013. As Sandy made landfall, two of the affected states, New Jersey and New York, established dual-status commanders (DSCs) for response and recovery. Partnerships among

Federal Emergency Management Agency, the National Guard Bureau, the individual states, and US Northern Command resulted in a swift and coordinated response, to include prepositioned Title 10, US Code, resources in the region along with the immediate response of National Guard, state, and local resources. US Transportation Command and interagency partners executed strategic and ground movements of Department of Defense (DOD) assets and thousands of short tons of equipment, to include private/commercial power utility company trucks and personnel. The DSCs provided critical leadership to achieve greater unity of effort between federal and state military forces in preparing for and responding to the devastating effects of this hurricane. The federal government learned the importance of anticipation during Hurricane Sandy. 2017 brought even greater challenges, as DOD responded to an unusually high number of disasters. These included a trio of category 4 and 5 hurricanes (Harvey, Irma, and Maria) and wildland fires, as well as an earthquake in Mexico. The disasters of 2017 resulted in a thorough after action review process to ensure DOD capabilities are used most efficiently in complex disasters. Initial themes are focused on enabling common pictures across all levels of government for requesting, tasking, and understanding the execution of DOD capabilities throughout the disaster response. It is apparent the DOD recognition of DSCA as a key mission has resulted in the improved planning, training, exercising, and anticipation of key capabilities. A common thread throughout DSCA operations is the importance of partnerships and professional relationships that enable enhanced unity of effort for the accomplishment of DSCA missions.

Various Sources

For further reference, see JP 3-08, Interorganizational Cooperation, and the NRF.

7. Unity of Effort

The diplomatic, informational, military, and economic power of the US are applied in unified action to attain desired end states.

a. **Responsibilities.** Incidents are managed at the lowest level possible. Federal support is provided in response to requests from state or local officials through the state coordinating officer to the federal coordinating officer. The federal coordinating officer coordinates for DOD support through the defense coordinating officer (DCO) in the JFO. DOD may provide support to the LFA, which has the lead in managing the federal response to a domestic incident. DHS is responsible for domestic incident management and the framework for federal interaction with state, local, territorial, and tribal governments; the private sector; and NGOs in the context of incident preparedness, response, and recovery activities. DOD support to this response will be initiated through a formal RFA or mission assignment process or provided as directed by the President or SecDef. The integrity and

efficiency of this process is best ensured by either situating a senior NG representative or even the DSC in the JFC alongside the senior defense official or by ensuring that those individuals are provided timely visibility of all state NG assets that can be assigned the mission.

b. **Domestic Incident Management.** HSPD-5, *Management of Domestic Incidents*, states, to prevent, protect against, mitigate, respond to, and recover from terrorist attacks, major disasters, and other emergencies, the USG shall establish a single, comprehensive approach to domestic incident management. The objective of the USG is to ensure all levels of government across the nation have the capability to work efficiently and effectively together, using a national approach to domestic incident management. In these efforts, with regard to domestic incidents, the USG treats crisis management and chemical, biological, radiological, and nuclear (CBRN) response as a single, integrated function, rather than as two separate functions. DOD categorizes such support domestically as DSCA. Within DOD, there is also the use of the term “crisis management” and the use of other terminology that may be specific to the actual type of operation, such as CBRN consequence management.

c. Non-DOD participants, including local civil authorities and first responders, are frequently not familiar with US military terms, definitions, and doctrine. When working with non-DOD participants/partners, especially in an emergency situation, clear, effective, and mutually understandable communication is essential. DOD elements will be able to work much more seamlessly, efficiently, and productively by employing operational concepts and terms that other departments, agencies, and authorities already understand. The main sources of these concepts and language include the NRF and NIMS.

(1) The NRF defines incident management as how events are managed across all HS activities, including prevent, protect against, mitigate, respond to, and recover from terrorist attacks, major disasters, and other emergencies. This is consistent with the DOD view that incident management is a national comprehensive approach to prevent, prepare for, respond to, and recover from terrorist attacks, major disasters, and other emergencies. The NRF further defines emergency management as a subset of incident management, the coordination and integration of all activities necessary to build, sustain, and improve the capability to prepare for, protect against, respond to, recover from, or mitigate against threatened or actual natural disasters, acts of terrorism, or other man-made disasters.

(2) Historically, much of DOD’s DSCA mission set has involved operations responding to the consequences of natural or man-made incidents. Responses to hurricanes may include a joint task force (JTF) for DOD DSCA operations in support of another agency.

8. Department of Defense and Emergencies in the Homeland

a. DSCA is initiated by a request for DOD assistance from civil authorities or is authorized by the President or SecDef.

b. Title 32, USC, Section 317, states DSC-led JTFs should be the usual and customary C2 arrangement established in response to an emergency or major disaster within the US when both federal and state military forces are supporting the response.

c. Requests for DSCA should be written and include a commitment to reimburse DOD IAW the Stafford Act; Title 31, USC, Section 1535 (also known as the Economy Act of 1932); or other authorities, except requests for support for immediate response and mutual or automatic aid, IAW DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*. Unless approval authority is otherwise delegated by SecDef, all DSCA requests shall be submitted to the office of the Executive Secretary of DOD.

d. Civil authorities shall be informed that verbal requests for DOD assistance during emergency circumstances must be followed by a formal written RFA, which includes intent to reimburse DOD, at the earliest opportunity. Support may be provided on a non-reimbursable basis only if required by law or if both authorized by law and approved by the appropriate DOD official.

e. Civil authority requests for DOD assistance are evaluated for:

- (1) Legality (compliance with laws).
- (2) Lethality (potential use of lethal force by or against DOD forces).
- (3) Risk (safety of DOD forces).
- (4) Cost (including the source of funding and the effect on the DOD budget).
- (5) Appropriateness (whether providing the requested support is in the interest and within the capability of DOD).
- (6) Readiness (impact on DOD's ability to perform its primary mission).

f. DSCA plans will be compatible with the NRF, NIMS, and DOD issuances. DSCA planning will consider C2 options that emphasize unity of effort.

g. With limited exceptions (e.g., local requests for immediate and emergency response), initial RFAs will be directed to OSD, Executive Secretariat. SecDef-approved RFAs are assigned to the appropriate CCDR. The supported CCDR determines the appropriate level of C2 for each response and usually directs a senior military officer to deploy to the incident site. The DCO serves as DOD's single point of contact in the JFO. DSCA requests originated in the JFO will be coordinated and processed through the DCO with the exception of requests for United States Army Corps of Engineers (USACE) support or, in some circumstances, DOD forces in support of the Federal Bureau of Investigation (FBI) or the United States Secret Service (USSS).

9. Command and Control in United States Northern Command and United States Pacific Command Areas of Responsibility

a. **Supported CCDR.** For DSCA operations, SecDef designates a supported CCDR. Ordinarily, this will be CDRUSNORTHCOM for the continental United States (CONUS), Alaska, Puerto Rico, and the US Virgin Islands and CDRUSINDOPACOM for Hawaii, Guam, American Samoa, and the Northern Mariana Islands. The CJCS may publish, if required, a SecDef-approved execute order (EXORD) to further delineate support relationships, available forces, end state, purpose, and SecDef-approved scope of actions. The supported CCDR may elect to employ a JTF, lead functional component command, or other C2 structure IAW JP 3-0, *Joint Operations*.

b. **JTF.** If a JTF is designated, consistent with operational requirements, a C2 element, appropriate liaison, or interagency planning cell (IPC) may be co-located at the JFO to allow for coordination and unity of effort. A JTF IPC provides timely coordination to the DCO staffs to help determine the best use of JTF resources in fulfilling RFAs and developing mission assignments. The IPC also provides operations assessments input to the JTF headquarters. The collocation of the JFC's C2 element does not replace the requirement for a DCO as a part of the JFO coordination staff, and it will not coordinate an RFA from DOD. A JFC may be required to provide communications support to civil authorities in the impacted area.

(1) The Title 10, USC, response force could be formed from either a standing JTF or one configured for specific missions to provide emergency assistance across all lines of support. The Title 10, USC, JFC coordinates with NG JFHQ-State, through a dual-status command relationship, if a DSC is established, to achieve unity of effort between federal and state response forces.

(2) Designation of a DSC and/or JFC is not contingent on a request from the primary or coordinating federal agency.

(3) All types of DOD support may be required as outlined in mission assignments. Because of this, close coordination between the JFC and the DCO is essential.

c. **DCO.** The DCO is the DOD single point of contact at the JFO. RFAs are validated through the DCO and forwarded to designated DOD entities for approval and sourcing.

(1) United States Army, North (USARNORTH), DCOs are permanently aligned to each of the 10 FEMA regions (see Figure II-1). During an event requiring DOD response, additional DCOs may be activated to support multiple JFOs. USINDOPACOM DCOs (based in Hawaii and Guam) work closely with USARNORTH Region IX DCO via an MOA.

(2) C2 of DCOs is directed by the supported CCDR.

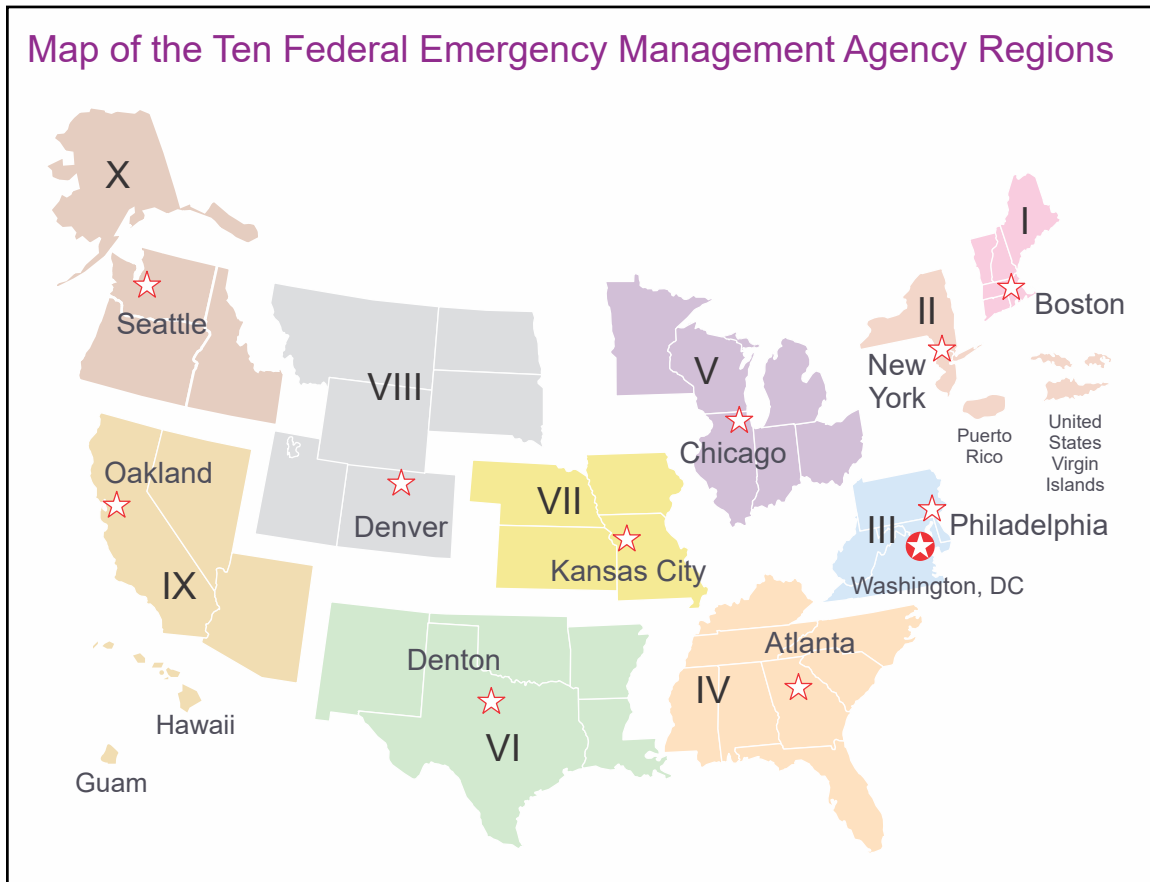


Figure II-1. Map of the Ten Federal Emergency Management Agency Regions

(3) The DCO is supported by the defense coordinating element (DCE), an administrative and support staff.

(4) Depending on severity of the event and the type of DOD response required, the DCE may also be augmented by specialty staff augmentees, additional personnel from the Services, and additional LNOs in the form of emergency preparedness liaison officers (EPLOs).

(5) Under exigent circumstances, the supported CCDR retains the option to employ DCOs in a C2 role.

For more information on DCO, refer to DODI 3025.23, Domestic Defense Liaison with Civil Authorities.

d. **EPLOs.** EPLO positions are authorized in each FEMA region and state from the Title 10, USC, reserve forces (see Figure II-1). Not all Services field state EPLOs. EPLOs provide DOD liaison with NG JFHQs-State and FEMA regional organizations and agencies; facilitate planning, coordination, and training for DSCA and national security emergency preparedness; advise federal agencies and organizations on DOD capabilities and resources; advocate mutual support required by DOD; and, on order, augment DOD response for DSCA. The EPLO program is established by DODI 3025.16, *Defense*

Emergency Preparedness Liaison Officer (EPLO) Programs. The EPLOs are aligned with the 10 DCEs and their associated FEMA regions.

(1) EPLOs are senior RC officers who are administered by, and report to, program managers within their respective Services responsible for organizing, training, and equipping personnel for a DSCA response.

(2) EPLOs are trained in emergency management and DSCA operations. EPLOs advise civil authorities on military resources and capabilities and facilitate coordination between civil authorities and DOD during state or federal exercises or DSCA operations.

(3) EPLOs are activated and employed by their Services at the request of the supported CCDR to support the DCO or as coordinated with the CCDR to facilitate Military Department response. EPLOs, provided in support to the DCO, will normally be under tactical control of the DCO. When in support of the Military Departments, EPLOs will be under OPCON to the appropriate military commander.

(4) Regional EPLOs normally support the DCO but can be located pre-event at the regional response coordination center and then moved forward to the JFO with the DCO.

(5) State EPLOs are aligned with the appropriate DCO but are oriented toward supporting the state emergency response team and the NG JFHQ-state.

(6) **Joint Regional Medical Planning Officer.** Joint regional medical planning officers provide direct medical planning and operations support to DCOs and liaise with ESF#8 (Public Health and Medical Services) authorities within designated operational areas when directed. They advise the joint force surgeons on the synchronization and integration of DOD medical assets with federal, state, and local medical assets.

For more information on EPLO, refer to DODI 3025.23, Domestic Defense Liaison with Civil Authorities.

10. Planning Considerations for Defense Support of Civil Authorities

To expedite planning and operational response during crisis situations, the CJCS publishes a DSCA EXORD and a CBRN response EXORD to allow prompt force deployment in support of domestic incidents. DOD planners work hand-in-hand with NG and civilian planners to develop tailored regional civil-military plans for DSCA. These plans inform local, territorial, tribal, state, and national planning efforts.

For further information, see CJCS DSCA EXORD; CJCS CBRN Response EXORD; USNORTHCOM CONPLAN 3500, Defense Support of Civil Authorities (DSCA); USNORTHCOM CONPLAN 3502, Civil Disturbance Operations; USINDOPACOM CONPLAN 5001, Defense Support of Civil Authorities (DSCA); JP 3-41, Chemical, Biological, Radiological, and Nuclear Response; and the NGB All Hazards Support Plan.

a. **Environmental Considerations.** Environmental considerations are an integral part of the mission planning and operational decision-making process. All joint operations within the US and territories should be conducted in compliance with applicable federal, state, territory, and local environmental regulatory guidance. Adverse environmental impacts should be avoided or mitigated when practicable, based on mission requirements and response to emergency situations.

For additional information on environmental considerations in DSCA operations, see JP 3-34, Joint Engineer Operations.

b. **Mission Assurance.** A process to protect or ensure the continued function and resilience of capabilities and assets—including personnel, equipment, facilities, networks, information and information systems, infrastructure, and supply chains—is critical to the performance of DOD mission-essential functions in any operating environment or condition. Mission assurance should leverage existing protection and resilience programs, such as antiterrorism, physical security, continuity of operations, CIP, operational energy, and cyber security and provide input to existing DOD planning, budget, requirements, and acquisition processes.

For further information, see JP 3-34, Joint Engineer Operations; JP 4-0, Joint Logistics; and DODD 4180.01, DOD Energy Policy.

c. **FP.** FP efforts in support of DSCA operations are central to achieving DOD mission assurance. FP includes preventive measures taken to mitigate hostile actions against DOD personnel (to include DOD family members), resources, facilities, and critical information in an all hazards environment. By conserving the force's operating capabilities so they can be applied at the decisive time and place, FP allows for the effective employment of the joint force in DSCA operations. USNORTHCOM and USINDOPACOM have antiterrorism and FP responsibilities for DOD forces operating within their respective AORs.

For further information, see USNORTHCOM Instruction 10-222, Force Protection Mission and Antiterrorism Program; USNORTHCOM CONPLAN 3500, Defense Support of Civil Authorities (DSCA); and USINDOPACOM Instruction 0536.2, USINDOPACOM Antiterrorism (AT) Program.

d. **Operations.** Disaster response is a core capability and, as such, DSCA operations will be considered alongside other DOD priority missions. The duration and scope of DOD involvement will be related to the severity and magnitude of the event.

e. **Communication Synchronization.** The US military plays an important supporting role in communication synchronization, primarily through information-related capabilities. Communication synchronization considerations should be included in all joint operational planning for military operations from routine, recurring military activities in peacetime through major operations.

For additional information, see JP 1, Doctrine for the Armed Forces of the United States; JP 3-0, Joint Operations; JP 5-0, Joint Planning; JP 3-13.2, Military Information Support Operations; and JP 3-61, Public Affairs.

f. **Facility Requirements.** DOD forces will rely on DOD facilities for support to the maximum extent possible. Short-term leasing may be a necessary option depending on location and duration. No occupation of private land or facilities is authorized without specific legal authority. Real property support may be obtained from the General Services Administration (GSA), USACE, Naval Facilities Engineering Command, Air Force Civil Engineer Center, or other USG departments and agencies.

For information on base support installation (BSI)/joint reception, staging, onward movement, and integration (JRSOI), refer to Appendix G, “Department of Defense Installations Supporting Defense Support of Civil Authorities,” and JP 3-35, Deployment and Redeployment Operations.

11. Phases of Defense Support of Civil Authorities

Phases are distinct in time, space, and/or purpose from one another but must be planned in support of each other and should represent a natural progression and subdivision of DSCA operations. Each phase should have a set of starting conditions that define the start of the phase and ending conditions that define the end of the phase. The ending conditions of one phase are the starting conditions for the next phase. Commanders determine the number and purpose of phases used during DSCA operations. The use of the phases provides a way to arrange activities. Within the context of these phases established by a higher-level JFC, subordinate JFCs and component commanders may establish additional phases that fit their CONOPS. JFCs should review and potentially consider aligning with the LFA phasing for DSCA operations.

For an example phasing construct in support of FEMA for disaster response, see Appendix J, “Example Phasing of Defense Support of Civil Authorities.”

For additional information, see JP 5-0, Joint Planning.

12. Assessing Defense Support of Civil Authorities

a. **Introduction.** Assessment is a continuous process that measures the overall effectiveness of employing joint force capabilities during military operations and the expected effectiveness of plans against contingencies as the operational environment changes. The purpose of assessment is to integrate relevant, reliable feedback into planning and execution, thus supporting the commander’s decision making regarding the adjustment of operations during execution. JFCs are the central driver for assessments as the ultimate stakeholders in the success of their command’s activities. However, the LFA and state, local, territorial, and tribal civil authorities are major stakeholders in the transition process. As such, the JFC should work with LFA and other civil authorities early in the DSCA response to establish transition criteria and the metrics used for assessment. The JFC must continually monitor the support rendered and assess the progress toward meeting RFAs from civil authorities. This operational picture should be shared with civil authorities to

establish and maintain a shared understanding of progress and the assessment of transition criteria.

b. **Immediate Response.** Under immediate response authority, local commanders must assess the situation and determine when the conditions are such that immediate response is no longer appropriate:

(1) The criteria to provide immediate response are no longer met (e.g., saving lives, protecting property, mitigating suffering under imminently serious conditions),

(2) The necessity giving rise to the response is no longer present (e.g., when there are sufficient resources available from State, local, and other federal departments and agencies to respond adequately and that agency or department has initiated response activities), or

(3) The initiating DOD official or a higher authority directs an end to the response.

c. **DSCA Response.** During planning, the JFC establishes conditions, objectives, or events for transitioning from one phase to another. Similarly, the JFC should assess progress and determine when objectives have been achieved and desired end states have been attained. Given the operational environment (i.e., homeland) and the fact that DOD is in support of an LFA, assessing DSCA differs in some ways. In the end, however, DOD support is initiated based on an assessment of the situation (usually from the LFA) and continues until a decision is made to transition all operations back to civil authorities. The JFC's staff must still determine if it is making progress and meeting the commander's intent and objectives. It is important to remember that there is no requirement to assess the entire DSCA response, only DOD's role in the response.

d. The assessment of DSCA as it progresses through the phases is about ensuring DOD meets the requirements requested in any RFA from civil authorities. Every incident or declared civil emergency event will be unique and a standardized assessment cannot be provided in this section. This generic discussion of assessment must be tailored to the specific situation. Success can be measured in a wide variety of ways. Assessment in DSCA events can be highly subjective due to the ever-changing situation.

(1) **Development of Assessment Metrics.** The JFC's staff develops metrics to determine whether operations are properly linked to the larger hierarchy of the LFA's objectives. Metrics can either be objective (using sensors or personnel to directly observe the situation) or subjective (using indirect means to ascertain results). Both qualitative and quantitative metrics should be used to avoid unsound or distorted results. Metrics can either be inductive (directly observing the operational environment and building situational awareness cumulatively) or deductive (extrapolated from what was previously known of the adversary and operational environment). Success is measured by indications that the effects created are influencing the situation in desired ways. Given the dynamic environment in which DSCA operations occur, a metric used one week may not be valid the subsequent week.

(2) **Assessment Tools.** There are numerous assessment models a JFC may utilize, depending on the complexity of the DSCA response. The following example is provided to illustrate the relationship between high-level objectives and the performance of tasks at the incident level.

(a) **Objective-based assessment.** The objective-based assessment framework assigns measures to the objective. It serves as an analytical foundation for assessing developed measures for each effect where we consider “Are we doing the right things?” The effects are then rolled up to provide an assessment of how well the response force is achieving its objectives.

1. The foundation of the objective-based assessment framework is the development of the measures. The key consideration is that the measures are to determine the impact of what DOD is doing with its resources under the conditions that exist.

2. The assessment of each measure is informed by knowledge of the tasks performed, the tools (organization, training, and equipment), the authorities, resources, and environment applied towards creating the effect. The results of the assessment are translated into recommendations towards sustaining objectives that have been successfully achieved and improving on objectives that have challenges. The assessment focuses on the high-level objectives by showing the current assessment, as well as the projected assessment for a given time period. The periodicity of assessment should maximize information sharing and decision making for the LFA and JFC.

3. Once objectives have been established, effects and measures can be assigned to each objective. See Figures II-2 and II-3. There may be one or multiple desired effects for each objective.

Example Defense Support of Civil Authorities Objective to Standard Assignment (Combatant Command)

Objective: Stabilize the Incident.

Effect: Initial, rapid response supports stabilization of the incident.

Measure: What is the contribution of pre-positioning of key enablers to the stabilization of the event?

Standards: Significantly contributed to stabilization.

Moderately contributed to stabilization.

Contributed little to stabilization.

Detracted from stabilization.

Figure II-2. Example Defense Support of Civil Authorities Objective to Standard Assignment (Combatant Command)

Example Defense Support of Civil Authorities Objective with Effect, Measure, and Standards

Objective: Rescue Trapped Survivors

Effect:	Lives are saved during search and extract operations. Citizens are rescued from search sites.
Measure:	Demand for Department of Defense support decreases due to successful completion of mission assignments.
Standards:	Begin urban search and rescue operations at designated location(s) on time. Affected areas searched to locate victims (include total number of located victims during the current reporting period). Injured victims medically triaged and treated.

Figure II-3. Example Defense Support of Civil Authorities Objective with Effect, Measure, and Standards

(b) **Sources of Assessment Information.** Once objectives are matched to effects, measures, and standards, the question becomes, “How do we gather the information to inform decision making?” There are numerous sources the staff can use, including: input from LFA (normally via DCO located at JFO), briefings/meetings in support of the LFA’s operational tempo (battle rhythm), open sources, and Web-based collaboration tools (e.g. Situational Awareness Geospatial and Global Adaptive Planning Collaborative Information Environment).

For additional information on assessment, see JP 5-0, Joint Planning, and ATP 5-0.3/MCRP 5-10.1/NTTP 5-01.3/AFTTP 3-2.87, Multi-Service Tactics, Techniques, and Procedures for Operation Assessment.

13. Multinational Forces Integration

a. If a foreign government indicates interest in supporting a US domestic response and has passed its request to support through DOS and is approved by FEMA, DOD will establish processes and procedures to integrate these foreign forces as a component of the military total force into the response. Initial discussions and coordination between potential non-US participants should address basic questions at the national strategic level. These senior-level discussions could involve international organizations such as the United Nations or the North Atlantic Treaty Organization, existing multinational forces, or individual nations. The result of these discussions should determine:

- (1) The nature and limits of the response.
- (2) The command structure of the response force.

(3) The essential strategic guidance for the response force to include objectives and the desired end states.

b. Much of the information and guidance provided for unified action and joint operations remains applicable to multinational operations. However, commanders and staffs consider differences in partners' laws, doctrine, organization, weapons, equipment, terminology, culture, politics, religion, language, and caveats on authorized military action throughout the entire operation. JFCs develop plans to align US forces, actions, and resources in support of the multinational plan, and in preparation for integrating multinational assistance in support of the US, in coordination with DOS.

c. When directed, designated US commanders participate directly with the armed forces of other nations in preparing bilateral plans. Commanders assess the potential constraints, security risks, and any additional vulnerabilities resulting from bilateral planning and how these plans impact the ability of the US to reach its end states. Bilateral planning involves the preparation of combined, mutually developed and approved plans governing the employment of the forces of two nations for a common contingency. Bilateral planning may be accomplished within the framework of a treaty or alliance or in the absence of such arrangements. Bilateral planning is accomplished IAW specific guidance provided by the President, SecDef, or the CJCS and captured in a bilateral strategic guidance statement signed by the leadership of both countries. An example of such a bilateral plan is the civil assistance plan (CAP) signed between CDRUSNORTHCOM and Commander, Canadian Joint Operations Command.

For more information, see JP 5-0, Joint Planning; JP 3-16, Multinational Operations; and the Canada-US Civil Assistance Plan.

CHAPTER III

SUPPORTING CIVILIAN LAW ENFORCEMENT AGENCIES

“DOD [Department of Defense] shall be prepared to support civilian LEAs [law enforcement agencies] consistent with the needs of military preparedness of the United States, while recognizing and conforming to the legal limitations on direct DOD involvement in civilian law enforcement activities.”

Department of Defense Instruction 3025.21, Defense Support of Civilian Law Enforcement Agencies

1. General

a. When requested, federal forces may provide support to federal, state, territory, tribal, insular areas, and local law enforcement organizations reacting to civil disturbances, conducting border security and counterdrug (CD) missions, preparing for antiterrorism operations, and participating in other related law enforcement activities. The requested support must be consistent with the limits Congress placed on military support to law enforcement through the PCA and other laws.

b. Upon approval of the governor, state NG forces may support state LEAs within their respective states and within the limits prescribed by state law. State NG forces from another state in state active duty status, or Title 32, USC, operating under the EMAC or a MOA between the states may only support civilian law enforcement as specified in a memorandum approved by both governors. Once federalized, NG forces in Title 10, USC, status have the same restrictions with respect to performing law enforcement functions.

2. The Posse Comitatus Act

a. The primary restriction on DOD participation in civilian law enforcement activities is the PCA. The United States Navy (USN) and United States Marine Corps (USMC) are included in this prohibition as a result of DOD policy articulated in DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*.

b. IAW DOD policy, unless specifically authorized by law, no DOD personnel in a Title 10, USC, status will become involved in direct civilian law enforcement activities, including, but not limited to, search, seizure, arrest, apprehension, stop and frisk, surveillance, pursuit, interrogation, investigation, evidence collection, security functions, traffic or crowd control, or similar activities, except in cases and under circumstances expressly authorized by the President, Constitution, or act of Congress.

“Whoever, except in cases and under circumstances expressly authorized by the Constitution or Act of Congress, willfully uses any part of the Army or Air Force as a posse comitatus or otherwise to execute the laws shall be fined under this title or imprisoned not more than two years, or both.”

Title 18, United States Code, Section 1385

c. These restrictions also apply to reserve members of the United States Army (USA), USN, United States Air Force (USAF), and USMC who are on active duty, active duty for training, or inactive duty training in a Title 10, USC, duty status.

d. The PCA does not apply to NG forces operating in state active duty or Title 32, USC, status. However, when the NG is operating under a Title 10, USC, status (federal status), they are subject to the PCA. The PCA does not restrict the USCG, even when operating under the USN, due to the USCG having inherent law enforcement authority under Title 14, USC.

e. Since commanders' initial uncertainty regarding the nature and extent of PCA restrictions may cause delays in what would be appropriate employment of federal forces, it is imperative that commanders likely to be assigned DSCA missions gain familiarity with such provisions.

3. Direct Assistance to Civilian Law Enforcement Agencies

a. Permissible Direct Assistance

(1) **Military Purpose.** There are several forms of direct assistance to civilian law enforcement by military personnel that are permitted under the Military Purpose Doctrine. The Military Purpose Doctrine provides that law enforcement actions that are performed primarily for a military purpose, even when incidentally assisting civil authorities, will not violate the PCA. The Military Purpose Doctrine requires a legitimate, independent military purpose for participating in law enforcement activities against civilians. DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*, provides guidance on the type of assistance DOD can provide to local authorities when it is primarily for a military purpose and does not violate the PCA. Support provided to civilian law enforcement must be incidental. DOD cooperation with civilian law enforcement officials includes:

(a) Investigations and other actions related to the enforcement of the Uniform Code of Military Justice.

(b) Investigations and other actions related to the commander's inherent authority to maintain law and order on a military installation or facility.

(c) Protection of classified military information or equipment.

(d) Protection of DOD personnel, DOD equipment, and official guests of DOD.

(e) Other actions that are undertaken primarily for a military or foreign affairs purpose.

(2) **Emergency Authority.** Emergency authority should not be confused with immediate response authority. Federal forces acting under immediate response authority are still bound by the PCA and may not participate directly in law enforcement. Emergency

authority and actions taken under the Insurrection Act are expressed exceptions to the PCA. These exceptions allow federal forces to perform actual law enforcement functions within the guidance of DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*. This directive states that federal military commanders shall not take charge of any function of civil government unless absolutely necessary under conditions of extreme emergency. Any commander who is directed, or undertakes, to control such functions shall strictly limit military actions to the emergency needs, and shall facilitate the reestablishment of civil responsibility at the earliest time possible.

(3) Title 10, USC, Chapter 15, Insurrection.

(a) This law authorizes the President to employ the Armed Forces of the United States, including the NG in federal status, within the US to support a request from a state legislature, or its governor if the legislature cannot be convened, to suppress an insurrection; suppress a rebellion against the authority of the US, which makes it impracticable to enforce the laws of the US by the ordinary course of judicial proceedings; and suppress, in any state, any insurrection, domestic violence, unlawful combination, or conspiracy, if it (1) hinders execution of state and US law protecting Constitutional rights and the state is unable, fails, or refuses to protect those rights, thereby denying equal protection of the law secured by the Constitution, or (2) opposes or obstructs execution of US law. Actions under this authority are governed by DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*.

(b) The President executes this authority by issuing a proclamation ordering the insurgents to disperse and retire peaceably to their homes within a limited time. **Any DOD forces employed in civil disturbance operations shall remain under federal military authority at all times.**

(c) Forces deployed to assist federal and local authorities during times of civil disturbance follow the rules for the use-of-force found in CJCSI 3121.01, *(U) Standing Rules of Engagement/Standing Rules for the Use of Force for US Forces*.

b. Prohibited Direct Assistance. Direct assistance and participation by military personnel in the execution and enforcement of the law is the heart of the prohibition of the PCA. Impermissible direct assistance by military personnel in civilian law enforcement activities is addressed in DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*. Prohibited direct assistance by military personnel includes, among other activities:

(1) Interdiction of a vehicle, vessel, or aircraft.

(2) A search or seizure.

(3) An arrest, apprehension, stop and frisk, interviews and questioning of potential witnesses, or similar activity.

(4) Use of military personnel for surveillance or pursuit of individuals or as undercover agents, informants, investigators, or interrogators.

(5) Using force or physical violence, brandishing a weapon, discharging or using a weapon, or threatening to discharge or use a weapon except in self-defense; in defense of other DOD persons in the vicinity; or in defense of non-DOD persons, including civilian law enforcement personnel, in the vicinity when directly related to an assigned activity or mission.

4. Other Permissible Types of Military Support to Law Enforcement Agencies

a. Training

(1) DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*, allows the Military Departments and DOD agencies to provide training that is not “large scale or elaborate” and does not permit a direct or regular involvement of military personnel in activities that are traditionally civilian law enforcement operations.

(2) Training assistance is limited to situations where the use of non-DOD personnel would be impractical because of time or cost.

(3) Training assistance cannot involve military personnel in a direct role in a law enforcement operation unless otherwise authorized by law, and this assistance will only be rendered at locations where law enforcement confrontations are unlikely.

b. **Expert Advice.** IAW Title 10, USC, Section 273, and DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*, SecDef has directed that Military Departments and DOD agencies may provide expert advice as long as military personnel are not directly involved in activities that are fundamentally civilian law enforcement operations.

c. **Equipment.** LEA requests for loans of equipment, maintenance, facilities, or personnel shall be made and approved IAW DOD policy and instructions for requesting DSCA and require SecDef approval.

d. **Use of DOD Personnel to Operate or Maintain Equipment.** DOD personnel made available under Title 10, USC, Section 274(b), may operate equipment for the following purposes:

(1) Detection, monitoring, and communication of the movement of air and sea traffic.

(2) Detection, monitoring, and communication of the movement of surface traffic outside of the geographic boundary of the US and within the US not to exceed 25 miles of the boundary if the initial detection occurred outside of the boundary.

(3) Aerial reconnaissance.

(4) Interception of vessels or aircraft detected outside the land area of the US for the purposes of communicating with such vessels and aircraft and directing such vessels and aircraft to a location designated by appropriate civilian officials.

(5) Operation of equipment to facilitate communications in connection with law enforcement programs specified in Title 10, USC, Section 274(b).

(6) DOD personnel may also be made available to operate equipment for the following additional purposes subject to joint approval by SecDef and the Attorney General (and the Secretary of State in the case of a law enforcement operation outside of the land area of the US).

(a) Transportation of civilian law enforcement personnel along with any other civilian or military personnel who are supporting or conducting a joint operation with civilian law enforcement personnel.

(b) Operation of a base of operations for civilian law enforcement and support personnel.

(c) Transportation of suspected terrorists from foreign countries to the US for trial (so long as the requesting federal LEA provides all security for such transportation and maintains custody of the suspect through the duration of the transportation).

e. **Other Permissible Assistance.** Under Title 10, USC, Section 271, the transfer of information acquired in the normal course of military operations to civilian LEAs is not a violation of the PCA. Additionally, DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*, provides that other actions that are approved by the Secretaries of the Military Departments or the directors of the DOD agencies that do not subject civilians to the regulatory, prescriptive, proscriptive, or compulsory use of military power are not a violation of the PCA.

(1) **Border Security and Immigration Enforcement Support.** DOD provides support to other federal agencies in border security and in the event of a mass migration emergency. Historically, this law enforcement support is in the form of technical assistance, services, and facilities and only on a temporary basis. GCCs can expect to be designated as the supported commander for support to DHS in mass migration operations. CDRUSNORTHCOM should expect to be designated as the supported commander for limited support to DHS collection relocation processing centers on DOD installations in CONUS. US Southern Command can be expected to be designated as the supported command for temporary mass migration operations at Guantanamo Bay, Cuba.

(2) **Counterterrorism Operations.** The US Attorney General, acting through the FBI and in cooperation with the heads of other federal departments, agencies, and military criminal investigative organizations (MCIOs), coordinates domestic intelligence collection and the activities of the law enforcement community to prevent, protect against, mitigate, respond to, and recover from terrorist attacks and to identify the perpetrators and bring them to justice in the event of a terrorist incident.

(a) If there is a credible threat, DOD may also be requested to support LEAs with the pre-positioning of forces. NG reaction forces can also be requested to support counterterrorism operations. In the case of an imminent threat to life or severe property

damage, DOD forces may take direct action until responsible authorities (e.g., DOJ, DHS) can respond.

(b) Under this type of support, specific rules for the use of force (RUF) must be established and approved. In the absence of preexisting RUF, requests for RUF for DSCA missions will be sent through the supported CCDR and the Assistant Secretary of Defense (Homeland Defense and Global Security) (ASD[HD&GS]) for development and to SecDef for approval. Mission-specific RUF may be required depending on the situation.

(c) Military responses to a credible threat and acts of terrorism may require incident management operations (that includes responding to the incident itself and law enforcement activities), which often overlap.

(d) The FBI manages counterterrorism operations through the Strategic Information and Operations Center (SIOC) and joint operations centers (JOCs). The SIOC is the FBI's worldwide operations hub and supports connectivity with other federal operations centers, such as the DHS national operations center, the DOD National Military Command Center, and National Counterterrorism Center, to rapidly gain and disseminate situational awareness and deploy resources as appropriate. This includes C2 of joint interagency investigative and domestic intelligence efforts led by the FBI on-scene commander (OSC) through its JOCs. The SIOC and FBI JOCs ensure effective coordination and liaison with partner agencies, strategic communications, and coordination and information sharing with other leaders, as appropriate and IAW classification and legal requirements, to manage the threat.

(e) An FBI JOC is a multijurisdictional, interagency investigative, and intelligence operations center led by the FBI OSC and supported by a multiagency command group. The FBI JOC is the place from which the FBI leads and coordinates law enforcement investigations, intelligence activities, and counterterrorism in response to terrorist threats or incidents. The FBI OSC establishes the JOC within a regional AOR; the OSC is the designated senior FBI representative responsible for leading and coordinating all law enforcement and investigative operations to prevent or resolve terrorist threats or incidents and for preserving evidence for subsequent criminal prosecution. Additionally, the FBI OSC has primary responsibility to conduct, direct, and oversee crime scenes, their security, and evidence management, including fatalities management, through all phases of the response, managed through an FBI JOC. For national special security events (NSSEs), the JOC is suspended in watch mode and is supported by an intelligence operations center. The intelligence operations center leads and coordinates the law enforcement intelligence activities and analysis to deter, detect, and prevent threats related to the security of an NSSE. The JOC is staffed by federal departments, state and local LEAs, private industry, and other entities as may be appropriate.

For more information on responses to domestic terrorism incidents, see the National Prevention Framework and the Terrorism Incident Law Enforcement and Investigation Annex.

(3) CD and Counter Transnational Organized Crime Support Operations.

CD operations in support of LEAs may be conducted under the following authorities:

(a) Title 10, USC, Section 124. This authority specifies that DOD shall serve as the single lead agency for detection and monitoring of aerial and maritime transit of illegal drugs into the US. Since this is a DOD mission, support requests are not required from LEAs.

(b) Title 10, USC, Section 284. DOD may provide support, upon proper request, to any federal LEA or any state, local, territorial, and tribal civil authorities or foreign LEA to combat transnational organized crime and CD activities.

(c) Title 10, USC, Section 274. DOD primarily provides CD/counter transnational organized crime support to an LEA under this authority on a non-reimbursable basis with a valid support request from an LEA. DOD may provide personnel, equipment, facilities, maintenance, training, and advice as outlined under this authority, which is implemented by CJCSI 3710.01, *DOD Counterdrug Support*. DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*, does not apply to counternarcotics operations.

(d) Title 10, USC, Section 271-274. This authority is implemented by DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*.

1. Title 10 USC, Section 271. DOD may provide information to an LEA that is relevant to drug interdiction and collected during the normal course of training or operations. The needs of an LEA should be taken into account in the planning and execution of such DOD training or operations.

2. Title 10, USC, Sections 272-274. DOD may provide personnel, equipment, facilities, maintenance, training, and advice as outlined under this authority and with a valid support request from an LEA. This support can be provided if reimbursed by an LEA or a waiver of reimbursement is granted by SecDef.

(e) SecDef may provide funds to the governor of a state to execute an approved state drug interdiction and CD activities plan using NG forces in a Title 32, USC, duty status IAW Title 32, USC, Section 112.

Refer to JP 3-07.4, Counterdrug Operations, and Title 10, USC, Section 124, for additional information.

(4) Explosive Ordnance Disposal (EOD). DOD EOD forces should maintain relationships with local, state, and other federal bomb disposal and/or LEA assets within their geographic locations. These relationships may include conferences and training exercises to increase the interoperability and integration with local EOD agencies, improve the response capabilities to civilian authorities when requested, and enhance the consolidated response capabilities. DOD EOD personnel may also conduct explosive hazards (e.g., improvised explosive devices [IEDs] and unexploded explosive ordnance

[UXO]) awareness and education programs that promote public safety and inform the public of the hazards associated with military munitions and explosive items.

(5) **Title 18, USC.** Under Title 18, USC, Section 831, the Attorney General may request that SecDef provide emergency assistance if civilian law enforcement is inadequate to address certain types of threats involving the release of nuclear materials, such as potential use of a nuclear or radiological weapon. SecDef may provide such assistance IAW Title 10, USC, Chapter 18, providing personnel under the authority of DOD.

5. Law Enforcement Considerations

a. Domestic law enforcement support requires expert legal advice to military leaders at every level. The command staff judge advocate should review plans and orders carefully. To avoid delays, proper preplanning is critical to mission support. Plans and orders should identify measures that require legal consultation, command approval, or both. Supporting commanders should plan for provision of additional liaison personnel and communications to the supported LEA. Commanders should educate their personnel on their chain of command and which LEA they are supporting. Federal military forces and NG forces may operate in proximity although they remain under separate chains of command. On the ground, however, commanders from both forces should co-locate so they can closely coordinate operations.

b. Just as in the military, civilian law enforcement operations rely on information to ensure success of the mission. Civilian LEAs comply with strict legal limits on information: who provides the information, what information is collected, how the information is collected, and how the information can be used. Military forces providing intelligence support to civilian LEAs must comply with intelligence oversight procedures and policy, as well as civilian LEA constraints. Military personnel performing law enforcement functions must comply with DODD 5200.27, *Acquisition of Information Concerning Persons and Organizations Not Affiliated with the Department of Defense*. Commanders must ensure laws, military regulatory authorities, and DOD policies are not violated. Employment of intelligence systems domestically remains a sensitive legal area, particularly when used in support of civilian LEAs.

c. Joint patrols involving NG and local law enforcement officers have proven to be highly effective and efficient in the aftermath of disasters and disturbances. Generally, NG members conduct security patrols in state active duty or Title 32, USC, status. Title 10, USC, members may conduct joint patrols as authorized IAW DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*.

d. Federal military forces supporting law enforcement often have severe restrictions and specific RUF. These rules have been approved by SecDef and are found in CJCSI 3121.01, *(U) Standing Rules of Engagement/Standing Rules for the Use of Force for US Forces*.

e. NG commanders in a Title 32, USC, or state active duty status should also ensure their personnel are briefed on applicable state RUF and issued an appropriate RUF card

prior to deploying from home station for a DSCA mission. There may also be a difference between the standing rules for the use of force (SRUF) and the RUF for each state's NG forces. Depending on the state, the state RUF may be more or less restrictive than the SRUF. NG forces serving in a Title 32, USC, duty status must follow state laws.

(1) Commanders should evaluate and plan for the use of nonlethal weapons in domestic operations. Additionally, commanders should plan for and conduct rehearsals of RUF to prepare their personnel for operations that may employ nonlethal weapons.

(2) Each Service has developed nonlethal weapons to address force application and FP requirements. Given the nature of the DSCA operation, nonlethal weapons—and their ability to provide precise and relatively reversible effects—are particularly relevant. Nonlethal weapons span a range of technologies (e.g., acoustic and optical devices to provide enhanced warnings, riot control agents and blunt impact munitions to deny access or move individuals, mechanical systems to deny access to vehicles, or electromagnetic systems to degrade/stop/disable personnel or materiel).

(3) Military personnel must be properly trained in the use of nonlethal weapons. The command staff judge advocate should also review all pertinent orders and instructions for their use. Use of nonlethal weapons, to include use of riot control agents, like the use of all weapons, will require approval from higher headquarters and/or authorization from appropriate authorities (state or federal). Care should be taken to ensure that orders and instructions for the use of nonlethal weapons are not more restrictive than those for lethal weapons or their utility in mitigating civilian casualties and collateral damage will be compromised.

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CHAPTER IV OTHER DOMESTIC ACTIVITIES AND SPECIAL EVENTS

1. General

There is a range of activities that do not fall into the category of response to a natural or man-made disaster or support to law enforcement but still leverage DOD resources. Examples include the following:

2. National Special Security Events

NSSE is a designation given to certain special events that, by virtue of their political, economic, social, or religious significance, may be the target of terrorism or other criminal activity. The Secretary of Homeland Security shall be responsible for designating special events as NSSEs.

a. When a special event is designated as an NSSE, the USSS, as part of DHS, assumes the role of primary agency for the design and implementation of the security plan. Events in this category are normally large events, generally with sufficient time for planning (except state funerals). Multiple federal and state agencies, to include NG forces, may be involved and will have operational areas. Planning for possible transition to disaster support is inherent in these operations.

b. Special events that will likely be designated as NSSEs include presidential inaugurations, State of the Union addresses, Group of Eight summit meetings, World Trade Organization meetings, United Nations General Assembly meetings, Democratic and Republican Party national conventions, and state funerals. Special events requiring DOD support include the following examples (note that any of these special events could also be designated as an NSSE): World's Fair, Super Bowl, Olympics, World Series, and NASCAR [National Association for Stock Car Auto Racing] events.

3. Community Support Activities

DOD assets may be requested to support community or public events through public affairs (PA) channels. DOD capabilities requests should be submitted to the Office of the Assistant Secretary of Defense for Public Affairs, Attn: Directorate for Community Relations and Public Liaison as Community Relations/Public Affairs support (DODD 5410.18, *Public Affairs Community Relations Policy*) using Department of Defense Form (DD) 2535, *Request for Military Aerial Support*, or DD 2536, *Request for Armed Forces Participation in Public Events*. Either form can also be submitted to USA, USN, USMC, or USAF PA offices for processing.

4. Sensitive Support Operations

Sensitive support to special activities is provided under DODD S-5210.36, *(U) Provision of DOD Sensitive Support to DOD Components and Other Departments and Agencies of the US Government*.

5. Military Training Exchanges

Military training exchanges can be provided incident to training as innovative readiness training under DODD 1100.20, *Support and Services for Eligible Organizations and Activities outside the Department of Defense*. Military training support can also be provided to local first responders by military mobile training teams or installation personnel or through preparation and conduct of exercises. Civil authorities can request that local installation commanders provide combat service support (e.g., medical, transportation, supply, maintenance) or combat support (e.g., engineering or security). Installations can provide support when it meets the requirements of innovative readiness training/support as incidental to military training (Title 10 USC, Section 2012). The NG is part of the DOD exercise program as directed by DODD 5105.83, *National Guard Joint Force Headquarters-State (NG JFHQ-State)*.

6. Specialized Support

a. Military Laboratory Support. Testing and evaluation in DOD facilities can be provided to civil authorities by agreement and is categorized as DSCA. However, clinical lab diagnostic testing of nonmilitary health care beneficiaries (e.g., civilians) may not always be considered DSCA.

b. Military working dog support can be provided per DODD 5200.31E, *DOD Military Working Dog (MWD) Program*.

c. DOD created the CBRN response enterprise to support civil authorities during response operations following a CBRN incident. The CBRN response enterprise includes state, territorial, and federal response forces. State and territorial forces include 57 weapons of mass destruction (WMD)-civil support teams, 17 CBRN enhanced response force packages, and 10 homeland response forces.

d. CBRN and WMD Technical Analysis. The Defense Threat Reduction Agency (DTRA) serves as the focal point for DOD's National Countering Weapons of Mass Destruction Technical Reachback Enterprise. DTRA's National Countering Weapons of Mass Destruction Technical Reachback Enterprise is a national countering WMD support element that provides time-sensitive access to a broad range of CBRN and high-yield explosives SMEs in a collaborative environment capable of supporting a DSCA effort with CBRN implications.

For additional details on DTRA capabilities, see DODD 5105.62, Defense Threat Reduction Agency (DTRA).

7. Support Provided to the United States Secret Service

Title 18, USC, Section 112 (Protection of foreign officials, official guests and internationally protected persons), authorizes the Attorney General to request the assistance of the Armed Forces to perform this function. For further information, see DODD 3025.13, *Employment of DOD Capabilities in Support of the US Secret Service (USSS)*, Department of Homeland Security (DHS), and DODI 3025.19, *Procedures for*

Sharing Information with and Providing Support to the US Secret Service (USSS), Department of Homeland Security (DHS).

8. Civil Air Patrol/Air Force Auxiliary Support

The Civil Air Patrol flies more than 85 percent of all federal inland SAR missions directed by the AFRCC. Outside CONUS, the Civil Air Patrol supports the joint rescue coordination centers in Alaska, Hawaii, and Puerto Rico. The Civil Air Patrol provides air and ground transportation and an extensive communications network. Volunteer members fly disaster-relief officials to remote locations and provide manpower and leadership to local, state, and national disaster relief organizations. Requests for support are submitted to and approved by First Air Force (CONUS, Puerto Rico, and the US Virgin Islands), Eleventh Air Force (Alaska), and Headquarters Pacific Air Forces (Hawaii) commanders for the assigned missions of damage assessment (e.g., observation, photography, hyper-spectral imaging), evacuation, monitoring, and light airlift in their AORs.

9. Incident Awareness and Assessment

IAA may be requested to support first responders and decision makers in the following eight mission areas: situational awareness, damage assessment, evacuation monitoring, SAR, CBRN assessment, hydrographic survey, dynamic ground coordination, and cyberspace incident response. SecDef approval of the DSCA EXORD may authorize traditional intelligence capabilities to conduct DSCA missions for non-intelligence purposes. Use of Title 10, USC, IAA assets designated to provide IAA for other than the eight IAA missions requires SecDef approval on a case-by-case basis. Questions on whether DOD intelligence capabilities may be utilized in a DSCA operation should be referred to the command judge advocate if the authorities, permissible operational parameters, and/or limitations are unclear. While the use of intelligence assets by the NG requires SecDef approval, the use of non-intelligence assets in a Title 32, USC, or state active duty status for IAA requires approval of the governor. NG complies with procedures and restrictions established in the CNGB Manual 2000.01, *National Guard Intelligence Activities*.

10. Civilian Critical Infrastructure Protection

a. Critical infrastructure can be described as those systems and assets, whether physical or virtual, so vital to the US that the incapacity or destruction of such systems and assets would have a debilitating impact on security, national economic security, national public health or safety, or any combination of those matters. In addition to critical infrastructure, key assets include symbols or historical attractions, such as prominent national, state, or local monuments and icons. In some cases, these include quasi-public symbols that are identified strongly with the US as a nation and fall completely under the jurisdiction of state and local officials or even private foundations. Key assets also include individual or localized facilities that deserve special protection because of their destructive potential or their value to the local community. DOD's portion of the critical infrastructure is the defense industrial base (DIB). The DIB sector is the worldwide industrial complex that enables research and development, as well as design, production, delivery, and

maintenance of military weapons systems, subsystems, and components or parts, to meet US military requirements. The DIB Sector-Specific Plan, developed in collaboration with industry and government security partners, provides sector-level critical infrastructure and key resources protection guidance. The DIB partnership consists of the DOD components and more than 100,000 DIB companies and their subcontractors, who perform under contract to DOD, and companies providing incidental materials and services to DOD, as well as government-owned/contractor-operated and government-owned/government-operated facilities. DIB companies include domestic and foreign entities, with production assets located in many countries. Contrary to common belief, the DIB sector does not include commercial infrastructure, such as communications, transportation, power, and other utilities. These commercial infrastructure assets are addressed by other sector-specific agencies.

b. NG CIP teams assess industrial sites and critical USG infrastructure for vulnerabilities to attack. These teams support DOD and DHS by conducting vulnerability assessments of prioritized DIB and DHS sites. The NG has three CIP teams located in the states of Colorado, New York, and West Virginia; additionally, DHS has 18 CIP assessment teams.

See DODD 3020.40, Mission Assurance (MA), and DODI 3020.45, DOD Instruction for Defense Critical Infrastructure Program (DCIP) Management, for additional information on roles and responsibilities for DOD components to assure DOD's critical assets and infrastructures are identified and managed.

11. Postal Services

During postal work stoppages or natural disasters and disruption of mail service on a national, regional, or local basis, DOD may be required to provide assistance pursuant to Title 39, USC, Section 411. This may take the form of materials, supplies, equipment, services, and personnel sufficient to permit the US Postal Service to safeguard, process, and deliver the mail in those areas in which normal mail service has been impaired. Legal authority for the employment of military resources to reestablish and maintain essential postal service is found in Title 39, USC, Section 411. DOD provides postal augmentation under an interdepartmental transfer of services. The declaration of a national emergency is a sufficient condition for the selective mobilization of RC forces to support the US Postal Service.

12. Explosive Ordnance Disposal Considerations

a. DOD EOD personnel may provide immediate response for EOD support in support of civilian authorities, when requested, IAW DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*, and the military munitions rule.

b. Explosives or munitions emergency response may include actions and assistance to civil authorities, when requested, in the mitigation, rendering safe, and disposal of suspected or detected UXO, damaged or deteriorated explosives or munitions, IEDs, other potentially explosive material or devices, or other potentially harmful military chemical

munitions or devices that create an actual or potential imminent threat to human health, including safety, or the environment, including property.

(1) The following will require an immediate EOD response: military munitions, discarded military munitions, and UXO in the unauthorized possession or realm of public officials or lands, including items that were illegally removed from military installations; military munitions that land off range, munitions located on property formerly leased or owned by DOD (to include manufacturing areas, pads, pits, basins, ponds, streams, burial sites, and other locations incident to such operations); transportation accidents involving military munitions; or public possession of unauthorized military munitions potentially presenting an imminent and substantial endangerment to the safety and health of the population and the environment. Military munitions found in these conditions should be considered extremely hazardous and should not be disturbed or moved until technically qualified EOD personnel assess and determine the hazard. DOD officials, including local military commanders, provide EOD support for military munitions, discarded military munitions, and UXO that have DOD origins, or appear to have DOD origins, to include foreign ordnance (Title 42, USC, Sections 6905, 6906, 6912, 6921-6927, 6930, 6934, 6935, 6937-6939, and 6974).

(2) Rendering safe and disposing of explosive hazards reported or discovered outside of DOD installations are primarily the responsibility of civil authorities. However, due to the potential lethality and danger to public safety, DOD EOD personnel may provide assistance upon request IAW DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*.

(3) When responding to RFAs from civilian authorities under immediate response authorities, the closest, capable EOD unit, regardless of Service, will provide support.

(4) Requests from civil authorities for non-immediate DOD EOD support are subject to approval by SecDef. Examples of non-immediate DOD EOD support include, but are not limited to, post-blast analysis, use of DOD material and equipment, and support of preplanned events.

(5) DOD EOD forces providing support under immediate response authorities will comply with applicable local, state, and federal laws and regulations, including environmental laws and regulations.

(6) The Bureau of Alcohol, Tobacco, Firearms, and Explosives is advised of the recovery and disposition of military munitions, as well as responses to nonmilitary munitions and explosives. The Services ensure reports are submitted within 72 hours to the Bureau of Alcohol, Tobacco, Firearms, and Explosives' US Bomb Data Center.

(7) Approvals from SecDef and Director, FBI; Federal Aviation Administration; Federal Communications Commission; and US Strategic Command are required for DOD EOD personnel to employ electronic countermeasures (ECM) in the US while conducting EOD support of civil authorities. Per the *National Strategy for Combating Terrorist Use*

of *Explosives in the US*, the FBI is the primary federal agency for domestic use of ECM. When the FBI requests DOD EOD support, the use of ECM equipment or devices must be addressed. All use of ECM equipment or devices while conducting EOD operations supporting civilian authorities is coordinated with the FBI's Strategic Information Operations Center and reported to the NJOIC.

See JP 3-42, Joint Explosive Ordnance Disposal, for additional information.

13. Urban Search and Rescue Program

The USACE Urban Search and Rescue Program deploys specially trained and equipped structural engineers (Structures Specialist Cadre) to augment FEMA urban SAR task forces, incident support teams, military technical rescue organizations, and other forces during structural collapse incidents and other disaster response missions. This rescue engineering capability provides technical support and advice to task force leaders and commanders to assess damage, mitigate hazards, enable safe entry, and assure mobility throughout a disaster site to enable rescue and life-saving operations. The Urban Search and Rescue Program develops doctrine, training programs, and national standards for structural collapse response operations and conducts initial training courses, advanced coursework, exercises and continuing education for all FEMA urban SAR structures specialists. On order, the program deploys its cadre to conduct heavy structural assessments in support of USACE responsibilities and other military and civil contingency requirements. USNORTHCOM and United States Transportation Command (USTRANSCOM) provide the following support to FEMA urban SAR: strategic and tactical airlift, logistics, C2, incident support team augmentation, and skilled and unskilled military forces augmentation. The USACE leads the training for structures specialists and maintains a cadre of structures specialists that are deployed as part of an incident support team engineering cell and urban SAR task forces.

14. Defense Support to Cyberspace Incident Response

a. It is DOD policy that it will remain postured to perform priority military missions in cyberspace at the direction of the President or SecDef. Defense support to cyberspace incident response will be provided within the framework of DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*. IAW PPD-41, *US Cyber Incident Coordination Policy*, and other appropriate laws and policies, DOD supports the LFA and other organizations as necessary for asset and threat response to cyberspace incidents outside the DOD information network.

b. When an LFA requests DOD cyberspace support, the CCMD, in coordination with the Service components, determine the most appropriate response force, which may include NG personnel in a Title 10 or Title 32, USC, status.

For more information, see DTM 17-007, Interim Policy and Guidance for Defense Support to Cyber Incident Response.

15. Other Defense Support of Civil Authorities Missions

Other DSCA missions include wildland firefighting, oil and hazardous material response, nuclear and radiological incident support, animal and plant disease response, medical countermeasures distribution, pandemic influenza and infectious disease response, mass migration, and civil disturbance operations.

For additional details, authorities, and references, see DODM 3025.01, Volumes 1-3, Defense Support of Civil Authorities.

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CHAPTER V

SUPPORTING AND SUSTAINING ACTIVITIES

1. General

In planning for DSCA, commanders and their staffs face ambiguities about how to prepare for and predict types of contingencies military forces will confront. US military forces are organized with personnel and equipment to perform specific functions, as well as to support their own units, but have inherent flexibility that may be useful in DSCA operations. For example, the C2 system inherent in military units provides a significant advantage when deployed in the austere environment created by a catastrophic event.

2. Personnel Services

a. **Personnel.** The objective of personnel operations is to maintain employed units at authorized strength and to be ready in all respects to carry out the CONOPS. The core functional responsibilities of a manpower and personnel directorate of a joint staff (J-1) are accomplished during DSCA operations.

(1) **Personnel Support.** The authorities and responsibilities for personnel support to DSCA operations are largely the same as those for any other DOD mission set.

(2) **Personnel Accountability.** Personnel accountability is a command responsibility. Personnel accountability, strength reporting, and manpower management are the focal points for a joint force J-1 during DSCA operations. DSCA operations pose specific challenges. One example is units that may deploy from their home stations instead of a designated port of debarkation (POD) or mobilization center. Another example is that out-of-state NG units remain under the control of their respective governors and can be recalled on short notice. Service personnel elements supporting home-station deployments should plan to accomplish all processing and reporting requirements prior to unit deployment. In most circumstances, the employing JTF will establish a joint personnel reception center to conduct personnel accountability and to ensure arriving units are ready for employment.

For detailed guidance on JRSOI, see JP 3-35, Deployment and Redeployment Operations, and Appendix G, “Department of Defense Installations Supporting Defense Support of Civil Authorities.”

(a) **Personnel Accountability in Conjunction with Disasters.** Attacks or disasters within the US can affect DOD personnel and their dependents. Service components account for and report the status of all DOD-affiliated military and civilian personnel and all family members immediately following a disaster or attack. Additionally, Service components, in conjunction with Service headquarters, should be prepared to report the number of Service members, DOD civilians, and their dependents requiring evacuation from an affected area. The Services will provide the necessary level of personnel accountability support to the GCC to ensure the GCC’s human resource visibility mission can be efficiently accomplished. See DODI 3001.02, *Personnel*

Accountability in Conjunction with Natural or Man-Made Disasters, and CJCSM 3150.13, *Joint Reporting Structure—Personnel Manual*, for specific direction.

(b) **Joint Personnel Status and Casualty Report (JPERSTAT).** Units supporting operations will use the JPERSTAT to report the number of personnel operationally employed in the GCC's AOR. The JPERSTAT is the means by which the GCC reports to the CJCS the number of personnel, by location, unit, and Service, permanently assigned or attached to the GCC. Afloat and ashore personnel will be counted. In addition, US DOD civilians and DOD contractors supporting the JTF or JTF component commands within the joint operational area will be counted. See CJCSM 3150.13, *Joint Reporting Structure—Personnel Manual*, for detailed direction.

(c) **Manning and Augmentation.** Manning and augmentation create continuing requirements for individual augmentation within unit organizational constructs so the Services are postured to add specific skill sets as required. See CJCSI 1301.01, *Joint Individual Augmentation Procedures*. Component commands must prepare joint manning documents listing the specific Service expertise required to meet their mission requirements.

(d) **Family Assistance.** During incidents or civil emergencies, family assistance centers and/or emergency family assistance centers may be established by the Services to support DOD families affected by man-made or natural disasters. JTF commanders may direct the establishment of an emergency family assistance center to coordinate family support between the Services and installations in the affected area.

For detailed guidance on personnel support, see JP 1-0, Joint Personnel Support.

b. **Religious Affairs.** During DSCA, religious support teams (RSTs) deploy for the purpose of providing religious support (RS) to authorized DOD personnel and advise the command on matters of morals, ethics, and religion. RSTs should understand the distinction and relationship between HD and DSCA and anticipate the potential for transition between these mission or simultaneous HD and DSCA operations. RSTs must consider how legal authorities and command responsibilities differ based upon mission area (i.e., Title 32, Title 14, and Title 10, USC, or state active duty status).

(1) Joint RS may include coordinating coverage across command and Service component lines to accommodate the religious needs of all authorized DOD personnel of the command. RSTs may also be responsible for providing RS to units without assigned chaplains and to personnel from low-density faith groups. An RST, when directed, may provide RS to NG personnel serving in state active duty or Title 32, USC, duty status during emergency or exigent circumstances. Likewise, IAW state law and when directed, an NG RST in state active duty or Title 32, USC, status may provide RS to AC personnel during emergency or exigent circumstances. Commands should coordinate joint area RS consistent with the RS plan.

(2) **Legal Considerations.** Current DOD legal guidance generally prohibits chaplains from providing RS to the civilian population, other than in specific emergency

situations. RSTs will not normally provide RS to persons unaffiliated with the US Armed Forces, absent explicit and unambiguous tasking from proper authority. Examples are traditional open services and authorized support to persons under the care, control, or custody of the Armed Forces of the United States. Chaplains, absent any explicit command prohibition to the contrary, may act in their personal capacity to provide incidental RS to persons not affiliated with the Armed Forces of the United States during the execution of an assigned mission under certain criteria. This specific criteria is known as “the four-pronged test” and is found in Joint Guide (JG) 1-05, *Religious Affairs in Joint Operations*.

See JG 1-05, Religious Affairs in Joint Operations, for more information.

For an updated list of national and state disaster relief organizations, see the National Voluntary Organizations Active in Disaster website at www.nvoad.org.

3. Intelligence Support

a. Introduction

(1) Commanders should expect FP to be integrated into domestic and domestic support operations due to a heightened awareness of threats. These needs and expectations pose unique issues in meeting the commander’s need for information to support DSCA operations. DOD intelligence components and any unit performing an intelligence function are governed by DODD 5240.01, *DOD Intelligence Activities*; DODM 5240.01, *Procedures Governing the Conduct of DOD Intelligence Activities*; DODD 5148, *Intelligence Oversight*; and DOD 5240.1-R, *Procedures Governing the Activities of DOD Intelligence Components that Affect United States Persons*. Other DOD personnel are subject to DODD 5200.27, *Acquisition of Information Concerning Persons and Organizations Not Affiliated with the Department of Defense*. IAW EO 12333, *United States Intelligence Activities* (as amended), and DOD policy, the only authorized mission sets for DOD intelligence components are defense-related foreign intelligence and counterintelligence. For these reasons, DOD intelligence component personnel are limited to the performance of only these mission sets. Any use of traditional DOD intelligence assets or capabilities for nontraditional uses must be expressly approved by SecDef.

(2) Intelligence is the product resulting from the collection, processing, integration, evaluation, analysis, and interpretation of available information concerning foreign nations, hostile or potentially hostile forces or elements, or areas of actual or potential operations. In DSCA operations, since much of this information will concern US persons, DOD intelligence organizations must take special care to follow the intelligence oversight regulations and privacy laws. In addition, to the extent that DOD intelligence components are authorized to collect within the US, they must do so in coordination with the FBI, which has primary responsibility for intelligence collection within the US.

(3) Whether DOD organizations are conducting an intelligence activity or a non-intelligence activity for domestic operations or domestic support operations, certain rules universally apply to data and imagery collected from overhead and airborne sensors. Geospatial data, commercial imagery, and data or domestic imagery collected and

processed by the National Geospatial-Intelligence Agency (NGA) is subject to specific procedures covering the request for its use. Judge advocates, intelligence, and inspector general personnel should ensure imagery collection and processing is in compliance with NGA policy on requests for geospatial data or imagery and its authorized use. Additionally, DODI 3115.15, *Geospatial Intelligence (GEOINT)*, requires mandatory security classification review of all data collected by airborne sensor platforms to determine whether it can be disseminated. Additionally, these intelligence oversight rules also apply to other sources of domestic imagery. Any domestic imagery captured must be accomplished IAW NGA National System for Geospatial-Intelligence Manual FA 1806, *Domestic Imagery*. Strict compliance with this regulatory document is necessary to ensure compliance with current intelligence oversight programs.

(4) When determining what types of DOD capabilities, assets, and products are required for a DSCA mission, planners need to also understand the various intelligence collection platforms, their sensors, and how they operate. Issues to consider include whether the sensor is fixed or moveable; whether the platform with the sensor can have its course altered during a mission; how the data is collected, transmitted, and processed; and the specific purpose of its mission. For example, an unmanned aircraft system (UAS) may transmit data by live feed only to a line-of-sight receiver or by satellite to a remote location. Additionally, units with weapon system video and tactical intelligence collection capabilities may collect imagery during formal and continuation training missions as long as the collected imagery is not for obtaining information about specific US persons or private property. Collected imagery may incidentally include US persons or private property without consent. For example, imagery could be collected of a private structure so the imagery can be used as a visual navigational aid or to simulate targeting during training. However, imagery may not be collected for the purpose of gathering any specific information about a US person or private entity, without consent, nor may stored imagery be retrievable by reference to a US person's identifiers. It is important to understand the distinction between visual information activities and other collection activities. Information documented under the auspices of visual information activities (such as still and motion imagery and video documentation in support of intelligence) support a variety of purposes. When collecting information specifically for one of these purposes, adhere to separate distinct policies, regulations, and rules. For further information on excluded activities, see DODI 5040.02, *Visual Information*. It is also important that DOD intelligence personnel assigned to support a DSCA mission understand the roles and responsibilities of interagency partners, as well as the assets, platforms, and analytical capabilities available through state and federal government organizations. Communication and collaboration between DOD intelligence personnel and personnel from other agencies and organizations during a domestic response are essential in developing unity of effort and eliminating duplicative operations. Evidence of a criminal act incidentally collected during an authorized mission using DOD intelligence capabilities shall be forwarded to the appropriate LEA. However, altering the course of an airborne sensor from an approved collection track to loiter over suspected criminal activities would no longer be incidental collection and could result in a PCA violation unless specifically approved in advance. Certain data contains classified metadata which may need to be stripped at a remote site before it can be disseminated in an unclassified manner. A DSCA operation using DOD capabilities, which includes support to LEAs, will require a separate mission authority

approval by SecDef and will need to consider whether the data is to be exclusively transmitted to the LEA and where the LEA agents are located to control or direct use of the assets to ensure compliance with the PCA and DOD policy, as reflected in DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*. Whether the collection platform and data transmission are wholly owned, operated, and received by a DOD intelligence organization, a DOD non-intelligence organization, or a combination of both will require careful consideration by judge advocates of the applicable rules and operational parameters and restrictions for the mission. As a CJCS-controlled activity, the Joint Intelligence, Surveillance, and Reconnaissance Operations Center leads global force management of intelligence, surveillance, and reconnaissance (ISR) to integrate national and DOD ISR capabilities in support of national or CCMDs' IAA requirements. The Joint Intelligence, Surveillance, and Reconnaissance Operations Center develops allocation recommendations for ISR and associated processing, exploitation, and dissemination capabilities to satisfy the strategic national and the CCMD strategic theater and operational IAA requirements. Per DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*, no DOD UAS will be used for DSCA operations without the express approval of SecDef. The only exception to this policy are SAR missions involving distress and potential loss of life that are coordinated by the AFRCC, or AKRCC. When requesting SecDef approval for use of an unmanned aircraft for DSCA, the request must include a proper use memorandum. Specifically, the following commanders may approve the use of DOD UAS on an AFRCC/AKRCC-coordinated mission with a properly issued SAR mission number after a determination that UAS would be the best platform to assist in the SAR mission and that its use would not interfere with the primary military duties of the unit concerned:

(a) CDRUSNORTHCOM, through the Commander, Air Forces Northern, in the delegated role of Inland SAR Operations Coordinator for the CONUS Search and Rescue Region; or

(b) CDRUSNORTHCOM, through the Commander, Alaskan Command, as SAR Operations Coordinator for the Elmendorf Search and Rescue Region, landmass of Alaska.

For further information, see JP 3-50, Personnel Recovery; DODI 3025.21, Defense Support of Civilian Law Enforcement Agencies; Deputy Secretary of Defense Policy Memorandum 15-002, Guidance for the Domestic Use of Unmanned Aircraft Systems, dated 17 February 2015; and ATP 3-28.1/MCRP 3-30.6/NTTP 3-57.2/AFTTP 3-2.67, Multi-Service Tactics, Techniques, and Procedures for Defense Support of Civil Authorities (DSCA).

b. Information Handling and the Role of DOD Non-Intelligence Components

(1) DOD non-intelligence components also have restrictions relating to the acquisition of information concerning the activities of persons and organizations not affiliated with DOD. This type of information is often needed when conducting DSCA. Within DOD, MCIOs have primary responsibility to gather and disseminate information about the domestic activities of US persons that threaten DOD personnel or property. DOD non-intelligence organizations may acquire information concerning the activities of

persons and organizations not affiliated with DOD only in the limited circumstances authorized by DODD 5200.27, *Acquisition of Information Concerning Persons and Organizations Not Affiliated with the Department of Defense*. DODD 5200.27 provides limitations on the types of information that may be acquired, processed, stored, and disseminated about the activities of persons and organizations not affiliated with DOD. Those circumstances include the acquisition of information essential to accomplish the following DOD missions: protection of DOD functions and property, personnel security, and operations related to civil disturbances. The directive is very explicit and should be referred to when determining authority for this type of information. Questions on whether DOD non-intelligence capabilities may be utilized in a DSCA operation should be referred to the command judge advocate if the authorities, permissible operational parameters, and/or limitations are unclear. The command judge advocate will provide the commander legal advice on permissible acquisition and dissemination of information on non-DOD affiliated persons and organizations, and legally acceptable courses of action.

(2) DSCA activities may require the disclosing of normally classified information to civilian personnel and/or offices. Disclosure should be made only when it is consistent with US policy and national security objectives. Disclosure of classified military intelligence will be made only when all of the applicable criteria are met. Criteria and procedures may be found in DODD 5230.09, *Clearance of DOD Information for Public Release*, and DODD 5210.50, *Unauthorized Disclosure of Classified Information to the Public*. Collectors should use releasable content, if possible, or in a form best facilitating sanitization to prevent delays in release. Sanitization is a procedure to provide essential elements of information while concealing sensitive information.

4. Meteorological Support

a. Meteorological and oceanographic (METOC) support for civil agencies and the general public is primarily provided by the Department of Commerce National Oceanographic and Atmospheric Administration, National Weather Service, and the Department of Transportation's Federal Aviation Administration. DOD forces receive METOC support from military providers. Military METOC forces have the mission-specific technical knowledge and security clearances necessary to support sensitive DOD operations and function as a direct SME liaison with local civil meteorological offices. In this capacity, military METOC forces ensure horizontal weather forecast, watch, advisory, and warning consistency between military and civilian METOC providers, to provide comprehensive and synchronized environmental threat awareness.

b. IAW CJCSI 3810.01, *Meteorological and Oceanographic Operations*, METOC support to DOD forces is provided by USAF, USN, and USMC METOC personnel who specialize in tailoring METOC information to the critical mission-limiting environmental thresholds of a wide variety of diverse DOD operations.

c. The CCMD senior METOC officer can provide assistance in coordinating appropriate Service METOC force taskings to support DSCA operations.

For more information, see JP 3-59, Meteorological and Oceanographic Operations.

5. Logistics

During times of crisis, DOD may provide vital logistics support to civil authorities.

a. Authorities and Responsibilities

(1) The authorities and responsibilities for logistics operations in support of DSCA are largely the same as logistics operations for any other DOD mission set. Some notable exceptions, as indicated in paragraph 5.b. “Logistics Support,” apply to DSCA operations within the land, airspace, and territorial waters of the US.

(2) The JP 4-0 series of publications for logistics support applies in DSCA. However, logistics planners consider both military and civil requirements and capabilities concurrently to avoid duplication and inappropriate uses. The Defense Logistics Agency (DLA) and the Services share responsibilities as suppliers to the joint force since both manage supplies in support of readiness requirements. In this shared role, they support the components of the joint force with equipment and supplies needed for sustained logistics readiness.

(3) When multiple logistics capabilities from many participating agencies, multinational partners, international organizations, NGOs, and private-sector entities are involved in DSCA operations, each is ultimately responsible for providing logistics support for their own forces. However, the GCC should strive to integrate efforts through the use of acquisition and cross-servicing agreements and associated implementing arrangements and any other vehicle necessary to provide logistics support. Optimizing the capabilities should result in greater flexibility, more options, and more effective logistics support.

b. Logistics Support. The primary focus of the combat service support effort is to sustain and assist DOD forces employed in DSCA operations. Responsibilities for support within logistics as described in existing joint doctrine apply to DSCA missions, except as noted below:

(1) **Supply.** When operating within the US and its territories, forces accomplishing DSCA missions will receive sustainment support from their respective owning Service. The ability for the Services to use home station stocks and existing contracts makes this the most effective method for sustaining the force. Care must be taken to coordinate any expansion of existing contracts or development of new supply contracts in the operational area so they do not adversely impact other federal, state, local, territorial, or tribal contracting efforts. All classes of supply will need to be considered. However, some classes, such as Class I (Subsistence), Class II (General Support Items), Class III (Petroleum, Oils, Lubricants), Class IV (Construction and Barrier Material), Class VI (Personal Demand Items), and Class VIII (Medical Material/Repair) will require close consideration. To facilitate support for US populations impacted by disasters, DLA may provide commodity support directly to FEMA upon receipt of a funded RFA or through existing interagency agreement.

(2) **Transportation.** With SecDef approval, DOD may provide transportation support.

(a) Airlift priorities for DSCA are outlined in CJCSI 4120.02, *List of Priorities – DOD Transportation Movement Priority System*. The national importance of the DSCA mission is reflected in the elevated movement priorities that can be applied for these missions as directed by the President or SecDef.

(b) The Adaptive Planning and Execution (APEX) enterprise execution functions are used to direct and control the movement of forces into and out of an operational area. The Joint Operation Planning and Execution System is the system of record for force movement under the APEX process. Force deployments will be time-phased to meet operational mission requirements per validated requirements and be IAW the Defense Transportation Regulation 4500.9-R, *Defense Transportation Regulations*, and supported CCMD guidance. The respective GCC is the validating authority under APEX and special assignment airlift missions' movement requirements within the AOR.

(c) The CCDR's joint deployment and distribution operations center (JDDOC) is composed of personnel from the CCMD and national partners (i.e., USTRANSCOM, DLA, the Services, and other organizations), as required. While the organizational construct will be situational based, it will operate under the direction of the supported CCMD. The JDDOC, in coordination with the LFA, will implement command movement priorities, anticipate and resolve transportation shortfalls, synchronize force flow and distribution, and provide in-transit visibility. JDDOC will coordinate with FEMA Headquarters Movement Coordination Center.

(d) The Integrated Data Environment/Global Transportation Network Convergence (IGC) is the designated DOD system for in-transit visibility during force movement. Accordingly, IGC will be used to capture, process, and transmit shipment information of forces deploying and redeploying into and out of an operational area.

(3) **Engineering.** In general, DOD engineer forces will be called upon when federal, state, local, territorial, or tribal contract resources are fully utilized, exhausted, or timely action is necessary to save lives and prevent further human suffering and loss of property.

(a) **Engineer Support.** DOD engineer forces may be tasked with short notice to assist civil authorities as a result of a natural or man-made disaster. DOD engineer forces may conduct DSCA operations as directed by the local commander under immediate response authority or in support of a primary agency. An example of DOD engineer support is to provide mobility support such as clearance of debris that is blocking road access and hindering emergency response.

1. Maximum consideration should be given to the use of locally available commercial services, facilities, and support structures. This should be followed by federal, state, tribal, and local resources before DOD engineers are used.

2. A broad force perspective for achieving engineering objectives is necessary. Engineer support may be garnered from federal, state, tribal, and local resources via a multitude of avenues or agreements. Non-federalized NG engineer forces may be

actively conducting DSCA operations within the joint operations area (JOA) along with Title 10, USC, engineer forces.

3. When required, DHS and USACE are designated the ESF primary agency for ESF #3 (Public Works and Engineering). USACE is the coordinating agency for ESF #3, and DOD is designated a supporting agency. USACE is a supporting agency for ESF #6 (Mass Care, Housing, and Human Services). USACE maintains LNOs at both USNORTHCOM and USINDOPACOM to assist in providing a common operating picture at the CCMD level and ensure close coordination between the USACE and the supported CDR on USACE operational roles and missions during disaster response. Under Title 33, Code of Federal Regulations, Part 203, USACE authority also includes response to flooding incidents.

(b) General Priority of Engineer Actions. Military engineer capabilities can be requested and presented to support USACE, a JTF at the state or regional level, or other USG departments or agencies. Based upon the type of mission and the requested support, the tasks may differ, but the general priority is:

1. Force beddown with FP considerations.
2. Emergency stabilization and repair of damaged critical infrastructure. Repairs/work-arounds to other critical public utilities, services, and facilities that will help restore the ability of the local authority to manage its own recovery efforts.
3. Emergency clearing of debris from streets, roads, bridges, airfields, ports, and waterways in support of recovery and humanitarian needs.
4. Immediate humanitarian needs of the dislocated populace, such as the construction of temporary shelters and support facilities.
5. Demolition of damaged structures and facilities that pose a significant risk to the public.

(c) Construction Policy. IAW FEMA doctrine and policy, construction in conjunction with domestic disaster response is normally performed by commercial contractors, and new construction during DSCA operations should not be expected as DOD is normally prohibited from performing services where viable commercial vendor support is available. However, when new construction is authorized, adherence to all federal, state, and local codes and standards should be anticipated. Use of Service construction standards, planning factors, development priorities, and cost estimates are encouraged. Expedient construction should be considered. Expedient construction includes several types of rapid construction techniques such as prefabricated buildings, inflatable buildings, and clamshell structures. These construction techniques can be selectively employed with minimum time, cost, and risk and offer deployed forces another source of required temporary facilities. Temporary facilities may be required or requested in certain cases during the initial phase of operations or in support of the federal agency with lead responsibility.

(d) **Contracted Support.** Contracted support will be the primary means used to accomplish engineer/construction requirements in DSCA. Ample commercial capacity in heavy equipment and materials should be available in the JOA. DOD engineer capabilities coupled with commercial sector and contracted support capabilities provide virtually unlimited engineering depth and breadth. Coordination between USACE and potential construction contracting agencies at federal, state, tribal, and local levels must be conducted to ensure efficient resource utilization and economies of scale when possible. Contracted support can be a significant force multiplier, but it is only one of numerous sources of support to the joint force. Operational contract support (OCS) is the process of planning for and obtaining supplies, services, and construction from commercial sources in support of joint operations. OCS provides tools and processes to manage the variety of services that may be required to support engineer operations as well as base operational support, transportation, food service, sanitation, and security. Contracted support and its associated contractor management challenges must be integrated early in the planning process. For additional information, see JP 4-10, *Operational Contract Support*. For detailed information on planning OCS, refer to CJCSM 4301.01, *Planning Operational Contract Support*.

(e) **Multinational Forces.** The availability and possible use of multinational force civil engineering forces should not be considered during mission planning. These forces may be made available to support operations, particularly if a DSCA event occurs in close proximity to national borders. However, DOD component planners should not plan to rely on international assistance as the basis for response and cannot accept military-to-military assistance to meet a DSCA RFA.

(f) **Environmental.** DOD forces employed in DSCA operations are responsible for protecting the environment. Commanders will employ environmentally responsible practices that minimize adverse impacts on human health and the environment. DOD goals are to initiate actions as soon as possible to curtail further environmental damage, resolve environmental impacts, and comply with all applicable laws to the maximum extent possible.

1. During all operations, plans will be developed to reduce or eliminate negative impacts on the environment. DOD will be in support of a primary agency, and environmental responsibilities will remain with the primary agency. However, this does not release DOD from responsibility to plan and conduct operations in a manner responsive to environmental considerations. Timely DSCA response in crisis circumstances may make it necessary to take immediate action without preparing the normal environmental planning documents. Environmental laws often have emergency exceptions. Consultation should be undertaken with staff judge advocates when establishing environmental guidelines when conducting DSCA under emergency conditions. Close coordination with federal, state, tribal, territorial, insular area, and local agencies during DSCA actions is needed to avoid negative environmental consequences.

2. Documenting conditions and actions as soon as possible before, during, and after operations in the JOA will facilitate resolution and closure of environmental issues. An active environmental review of DSCA operations should be

accomplished to identify possible environmental issues before a negative impact occurs. Close liaison and communication with the applicable DOD regional environmental coordinator will also aid in ultimate resolution of environmental issues with federal, state, local, territorial and tribal agencies. Environmental impacts will be addressed as soon as possible once operations have stabilized. Emergency exemptions may be needed for disposal of contaminated and hazardous material. DOD forces should direct their efforts to properly identify, contain, document, and transfer environmental issues to civil authorities as soon as possible.

For additional information on engineer organizations and Service assets, see JP 3-34, Joint Engineer Operations.

6. Public Affairs

During DSCA operations, military PA activities, military civil authority information support (CAIS) element activities, public information actions, and news media access to the DSCA operational area are subject to approval by the primary agency. The primary agency may establish a joint information center (JIC) to coordinate PA, CAIS, and public information actions. The DOD forces should coordinate PA activities and comply with PA guidance from the JIC and, if one is not set up, from the JFO.

a. **Media Access.** News media access to DSCA operational areas is determined by local or state authorities. The public's perception of the response depends to a great extent on traditional and social media reporting. This perception also influences the level of cooperation and coordination between military and civilian leaders. Positive public support facilitates mission accomplishment. Lack of public support, on the other hand, can seriously impede the effectiveness of military forces during the execution of DSCA operations. Additionally, the ability of today's media technologies to rapidly transmit information, often inaccurately or without proper context can shape the way the public views the role, use, value, and success of the military and ultimately impact public support of operations.

b. **DOD PA.** In fulfilling its DSCA role, the CCMD will be an active member of the federal response community. DOD PA officers operate in an interagency environment, with emphasis on cooperation, coordination, and unity of effort that is tailored to support the ESF #15 (External Affairs) requirement to provide accurate, coordinated, timely, and accessible information. It is critical that PA and visual information activities are planned, coordinated, and integrated across government and private organizations.

See JP 3-61, Public Affairs, for additional information.

c. **CAIS.** Psychological operations (PSYOP) forces can be employed domestically for CAIS under direction and authority of a designated LFA or civil authority. When executing CAIS activities, PSYOP forces are restricted by policy and SecDef guidance to only broadcasting and disseminating public information. When authorized for employment in this manner, PSYOP forces utilize their media development, production, and dissemination capabilities to deliver public or other critical information during

domestic emergencies. Their mission is strictly to inform, and all CAIS efforts should be coordinated with ongoing military and LFA PA efforts. The LFA is the approval authority for all products conveying the lead agency messages.

See JP 3-13.2, Military Information Support Operations, for additional information.

7. Health Services

a. **Health Services.** As a supporting agency to the Department of Health and Human Services, DOD will coordinate mission assignments involving health services through the DCO. DOD may receive RFAs submitted to OSD Executive Secretary prior to establishing a DCO. These RFAs are approved by SecDef and will be coordinated with the DCO once established. Additionally, the department of Health and Human Services may request assistance from DOD without going through FEMA and the multiagency contract process IAW the Economy Act of 1932. DOD employs and integrates the medical response through the following joint medical capabilities: first responder care, forward resuscitative care, en route care, theater hospitalization, and definitive care. The focus of DOD medical support is to save lives and support restoration of essential health services in collaboration with the state and local health authorities. The scope of the medical response will vary with the type and scale of emergency. A clear focus must remain on transition to other medical support organizations. The Military Health System will, in most cases, have a scaled response to DSCA emergencies: first, under immediate response authority and mutual-aid agreements with local and state health care systems; second, through the National Disaster Medical System (NDMS); and finally, through SecDef-approved mission assignments. DOD is responsible for health services to DOD forces responding to the event. Health services include, but are not limited to, the management of health services resources, such as manpower, monies, and facilities; preventive and curative health measures; evacuation of the wounded, injured, or sick; selection of the medically fit and disposition of the medically unfit; blood management; medical supply, equipment, and maintenance thereof; combat and operational stress control; and medical, dental, veterinary, laboratory, optometry, nutrition therapy, and medical intelligence services. DODI 3025.24, *DOD Public Health and Medical Services in support of Civil Authorities*, establishes policy for DOD public health and medical support to civil authorities and outlines the Defense Health Agency's role to support planning and preparedness activities for the Military Health System in response to natural disasters or man-made incidents.

For more details, see JP 4-02, Joint Health Services.

b. **NDMS.** DODI 6010.22, *National Disaster Medical System (NDMS)*, establishes policy for DOD participation in the NDMS, a joint federal, state, and local mutual-aid response system to provide a coordinated medical response, patient movement, and definitive patient care during a military health emergency, US national emergency, or US domestic disaster. NDMS also establishes DOD support to NDMS as outlined in Title 42, USC, the Pandemic and All-Hazards Preparedness Reauthorization Act, and the NDMS Federal Partners Memorandum of Agreement. Acute situations may require response prior to detailed DOD and Department of Health and Human Services coordination. Imminently serious conditions resulting from any civil emergency may require immediate action to

save lives, prevent human suffering, or mitigate great property damage and is covered under the immediate response authority provision in DOD policy.

For more details on federal coordinating centers, see the National Disaster Medical System Federal Coordinating Center Guide.

c. **Responsibilities.** The joint force surgeon advises the JFC on health services plans, policies, and procedures pertaining to and affecting military and civilian personnel in the AOR/JOA. The joint force surgeon's cell provides the central location for medical planning and operations. The staff monitors current and future operations and conducts required planning support. The joint force medical staff must maintain close contact with the geographic CCMD's joint regional medical planners and with the DCO to carry out ESF #8 (Public Health and Medical Services) activities. The military public health emergency officer shall function as the commander's primary public health advisor during an emergency. Some of the obstacles medical responders may face are:

(1) **Triage.** Often the first casualties to receive care are those least injured. Failure to triage and organize resources for more seriously injured could limit patient access to life-saving care. Health care services delivery should be prioritized at both the local and regional level.

(2) **Unequal Distribution of Casualties.** Casualties tend to be concentrated locally and travel to the nearest health care facility. This concentration of casualties may overwhelm some local facilities, while others in the same area may be under-utilized.

(3) **Multiple Casualty Entry Points.** Emergency medical services is the usual route of entry into the health care system for casualties. In mass casualty situations, casualties also access the system through non-emergency medical services means (e.g., privately owned vehicles and police transport). Casualty evacuations and casualty collection points produce additional and unusual demands for health care. Also, non-local responders may add to the overall confusion due to their unfamiliarity with the local health system.

(4) **Health Threat.** The purpose of the medical portion of the commander's estimate is to identify the health services and force health protection (FHP) requirements. Because there are so many variables that affect the need for FHP, an up-front analysis of multiple sources of intelligence or information, including information gathered by trained medical personnel on scene is required. Medical personnel must assess the safety of local food and water sources, the risk from vectors and environmental factors, and the adequacy of hygiene in lodging and public facilities as early as possible. Therefore, it is critical to have medical personnel on all survey or advance teams. Identifying health risk factors, medical capabilities available, and FHP requirements for military and civilian personnel are key factors when developing appropriate courses of action for the commander.

(5) **Damage to the Health Care Infrastructure.** The level of damage to the health care infrastructure and the level of involvement of the other civil medical organizations is a starting point when developing situational awareness for the

commander's estimate. Local or regional public health emergency officers, a federal coordinating center, or a medical treatment facility may be able to provide initial estimates of the situation based on local health system contacts. In general, requirements depend on population health issues and the impact on local health service capabilities.

(6) **Population at Risk.** Highest-priority health services include the most appropriate and effective interventions to reduce death and disease as determined by health estimate. Usually, the same groups who are most vulnerable in normal times are at most risk during emergencies and disasters. They include people whose health is already compromised (e.g., people with preexisting illness, serious chronic diseases, the very young, or the elderly). In situations where injuries are high, the elimination of on-scene health hazards, along with SAR and emergent surgical services, may be the highest priority. This type of support is generally short in duration due to patient survivability time limitations and the ability to rapidly build appropriate force levels for these tasks. In situations where casualties are low and displaced persons are high, preventive medicine measures will likely be the highest priority health services required (e.g., control of infectious or communicable diseases and sanitation).

For more information, see DODI 6200.03, Public Health Emergency Management within the Department of Defense.

d. Animal and Plant Disease Eradication. Under ESF #8 (Public Health and Medical Services) and ESF #11 (Agriculture and Natural Resources), DOD may provide assistance to the United States Department of Agriculture (USDA) to contain and eradicate an actual or imminent outbreak of plant or animal diseases. USDA's Administrator for Animal and Plant Health Inspection Service (APHIS) may request DOD assistance if an emergency arises from the introduction of a foreign animal or plant disease and/or pest.

(1) USDA and DOD signed an MOU that provides a mechanism for USDA to request and receive priority support if the presence of animal diseases or pests constitutes an emergency, as declared by USDA.

(2) Through a federal task force, USDA's APHIS coordinates, directs, and conducts the federal response to control and eradicate animal and plant diseases and pests, reimbursing DOD for actual costs incurred. GSA provides supplies and equipment. Given SecDef approval where required, ASD(HD&GS) coordinates requests with the CJCS, the commanders of the CCMDs with DSCA responsibilities in the matter, and Military Department Secretaries and other DOD officials as appropriate. ASD(HD&GS) also coordinates or consults, as appropriate, with DHS and other federal agencies on the development and validation of DSCA requirements. The Services and other supporting commanders may provide installations for bases of support, provide resources, and identify and provide technically qualified personnel to assist USDA as directed by the Joint Staff.

(3) Defense Health Agency, Veterinary Services Branch, appoints a veterinary support officer to coordinate with the regional animal disease eradication officer for veterinary support that may be available IAW an approved MOA. When directed by the appropriate supported commander, the Defense Health Agency, Veterinary Services

Branch, designates and deploys military specialists trained in foreign animal disease diagnosis, epidemiology, microbiology, immunology, entomology, pathology, and public health.

For more information, see JP 4-02, Joint Health Services.

8. Mortuary Affairs

While the GCCs coordinate DOD mortuary affairs operations within their AOR, the local, state, tribal, or territorial, medical examiner or coroner will most likely maintain jurisdiction over both military and civilian fatalities, including mass casualty events. In the domestic environment, the individual with jurisdiction has authority to order and perform an investigation, to include an autopsy or an appropriate medicolegal death examination on human remains. Jurisdiction varies depending on geographical area and is dependent upon federal, state, county, or local laws. When there is a death of a Service member, jurisdiction will almost always be concurrent. Concurrent jurisdiction means that a local medical examiner or coroner has the authority to conduct the medicolegal death investigation, including autopsy, but may waive jurisdiction to the military or request Armed Forces Medical Examiner (AFME) assistance. Investigation of deaths in areas of exclusive federal jurisdiction belong to the office of the AFME. Military bases are not necessarily under exclusive federal jurisdiction. The local staff judge advocate should identify the base's jurisdiction before an event or be consulted during early stages of the response phase. Federal law (Title 10, USC, Section 1471) ensures the AFME may conduct its own forensic pathology investigation to determine the cause or manner of death of a deceased active duty DOD person if such an investigation is determined to be justified. However, this activity may or may not occur in conjunction with local medicolegal authorities' investigation. If the AFME believes the local authority's medicolegal investigation was not sufficient for the needs of DOD, the remains may be transferred to the AFME before being released to the legal next of kin. Federal law also gives exclusive jurisdiction to the AFME for the President, the President's direct staff, and other key elected officials in the USG. Military mortuary affairs units can be deployed to search, recover, transport, and temporarily store remains in support of civil authorities. Few of these units are available in the force structure and they are best utilized to augment existing federal, state, local, tribal, and territorial capabilities to respond. DOD may also provide remains recovery, preliminary identification, DNA [deoxyribonucleic acid] identification of remains, autopsy services (if applicable), mortuary processing, family assistance center support, and remains transport. If applicable, USACE may provide temporary remains interment.

For more information, see JP 4-06, Mortuary Affairs.

9. Cyberspace Support

DSCA operations can include employment of DOD cyberspace forces, including NG or reserve forces, to assist the LFA in support of state, local, territorial, and tribal civil authorities during a significant cybersecurity incident. DOD cyberspace forces may also be requested to support a larger DSCA effort that requires responses throughout the

operational area through the creation of critical emergency telecommunication networks or other critical infrastructure, including the security and defense of these infrastructures. Per PPD-41, *US Cyber Incident Coordination Policy*, DHS has the primary responsibility for protecting all non-DOD USG information systems and coordinating the whole of government response to significant cyberspace incidents affecting non-USG information systems. This response is part of the NRF and is set forth in the National Cyber Incident Response Plan.

For more information on military support in cyberspace, see JP 3-12, Cyberspace Operations, and DTM 17-007, Interim Policy and Guidance for Defense Support to Cyber Incident Response.

10. Space Operations Support

Space support during DSCA operations is primarily focused upon saving lives, preventing suffering, and mitigating damage. Space-related products supporting these missions will be heavily concentrated on imagery, overhead persistent infrared, satellite communications, environmental monitoring, and SAR, as well as positioning, navigation, and timing.

For more information, see JP 3-14, Space Operations.

11. Other Support and Sustainment Considerations

a. International Support

(1) Guidance on carrying out responsibilities for international coordination in support of the USG's response to a domestic incident with an international component is provided by the International Coordination Support Annex of the NRF. Policies and procedures outlined in this annex are elaborated in the International Assistance System (IAS) CONOPS, a document jointly prepared by DHS, DOS, and USAID in the aftermath of Hurricane Katrina. The IAS CONOPS establishes the policies and standard operating procedures to manage the flow of international resources in the US, under the NRF, for a presidentially declared major disaster as described under the Stafford Act.

(2) Since the USG is usually in a position to be able to fulfill its disaster response needs domestically, the USG typically will not find it necessary to activate the IAS. Therefore, the IAS will not be automatically activated for every large domestic disaster. Exceptions may include particularly large or simultaneous disasters, for which very specific commodities or technical assistance might be requested and for which a foreign partner can provide needed goods in a timely manner.

(3) When activated, the IAS applies to the three primary IAS entities (FEMA, DOS, and USAID), as well as other federal departments and agencies that may be requested to provide assistance in expediting the flow of international resources during a domestic disaster declared under the Stafford Act (Customs and Border Protection, DOD, Department of Health and Human Services, USDA, and others). The IAS also applies to FEMA mission-assigned agencies that may request assistance through the IAS to obtain

international resources for disaster response activities. IAS support is only available for international assistance that has been specifically approved by FEMA and accepted under FEMA's gift acceptance authority under the Stafford Act.

(4) Outside the IAS, DOD does not require FEMA approval to accept foreign military assistance in support of its own operations; however, for a domestic response, there should be no support falling within the military-to-military category without coordination with DOS. Even if there are standing military-to-military agreements in place, any foreign military wishing to provide direct support should offer assistance through DOS, with DOD knowledge, for the response to be properly adjudicated and a timely response provided.

For detailed guidance on international support, see the International Coordination Support Annex of the NRF and the IAS CONOPS.

(5) **Canada-United States (CANUS) CAP.** The CANUS CAP provides a framework for the military forces of one nation to support those of the other, when providing military support to civil authorities. Global Affairs Canada and the US DOS are the LFAs that coordinate requests for and offers of assistance with their respective country's federal departments. Any execution of the CANUS CAP requires mission-specific legal authority, typically in the form of a CANUS exchange of diplomatic notes between Global Affairs Canada and US DOS.

b. **Financial Management (FM).** FM units provide the same capabilities during DSCA operations as they do for other operations. FM capabilities provide the following support: procurement, pay, disbursing, accounting, and banking. Costs incurred during DSCA operations are incremental and are reimbursable IAW the Economy Act of 1932 and Stafford Act, unless otherwise directed by the President. FM units must have processes in place to capture these incremental costs to facilitate reimbursement. See Appendix F, "Reimbursement for Defense Support of Civil Authorities," for details on reimbursement procedures for DSCA.

c. **Safety.** Safety planning and operational risk management are key factors in the prevention of accidental loss of life and resources used to carry out DSCA operations. Safety plans should be fully coordinated with other agencies and promote mission safety. Safety reporting will be through the respective owning Service. Required elements for reports, record keeping, and accident investigations are contained in DODI 6055.7, *Mishap Notification, Investigation, Reporting, and Record Keeping*.

d. **Legal.** DSCA involves numerous statutory, regulatory, and policy considerations. The commander and the staff judge advocate should be knowledgeable regarding the authority and responsibility of DOD, as well as that of the various other federal agencies. Inherent in these operations are the relationships between federal, state, local, territorial, and tribal authorities, as well as jurisdictional principles, security requirements, environmental requirements, and claims administration. The occurrence of an incident or civil emergency presents complex legal problems. Legal issues range from questions regarding jurisdiction and authority to exclude the general public from specific areas, to

payment of simple personal property claims. The response force organization should include a legal element to advise and assist in resolving these and other local legal issues. Whenever possible, NG legal support that is familiar with state, local, tribal, and territorial laws should be included. Specific tasks are to:

- (1) Advise the commander and staff on any matters related to the DSCA operation.
- (2) Coordinate technical legal matters with a higher authority, when required.
- (3) Coordinate legal issues with the principal legal advisors or other participating departments and agencies, as required.
- (4) Provide legal advice and assistance to other federal officials upon request, as permitted by the appropriate interagency service agreements.
- (5) Review proposed public statements for legal sufficiency and implications.
- (6) Advise on the legal issues relating to rules of engagement (ROE), RUF, and use of riot control agents.

APPENDIX A

NATIONAL INCIDENT MANAGEMENT SYSTEM OVERVIEW

1. General

Communities across the US experience a diverse set of threats, hazards, and events. The size, frequency, complexity, and scope of these incidents vary, but all involve a range of personnel and organizations to coordinate efforts to save lives, stabilize the incident, and protect property and the environment. Every day, jurisdictions and organizations work together to share resources, integrate tactics, and act collaboratively. Whether these organizations are nearby or are supporting each other from across the country, their success depends on a common, interoperable approach to sharing resources, coordinating and managing incidents, and communicating information. NIMS describes this comprehensive approach. NIMS guides all levels of government, NGOs, and the private sector to work together to prevent, protect against, mitigate, respond to, and recover from incidents. NIMS provides stakeholders across the whole community with the shared vocabulary, systems, and processes to successfully deliver the capabilities described in the National Preparedness System. NIMS defines operational systems, including the ICS, EOC structures, and multiagency coordination groups that guide how personnel work together during incidents. NIMS applies to all incidents, from traffic accidents to major disasters. The jurisdictions and organizations involved in managing incidents vary in their authorities, management structures, communication capabilities and protocols, and many other factors. NIMS provides a common framework to integrate these diverse capabilities and achieve common goals. The guidance contained in this document incorporates solutions developed over decades of experience by incident personnel across the US.

2. Overview of National Incident Management System Components

The components of NIMS were not designed to stand alone but to work together in a flexible, systematic manner to provide the national framework for incident management. NIMS is organized into three major components and they represent a building-block approach to incident management. Applying the guidance for all three components is vital to successful NIMS implementation.

a. **Resource Management.** NIMS resource management guidance enables many organizational elements to collaborate and coordinate to systematically manage resources (e.g., personnel, teams, facilities, equipment, and supplies). Most jurisdictions or organizations do not own and maintain all the resources necessary to address all potential threats and hazards. Effective resource management includes leveraging each jurisdiction's resources and private-sector resources, involving volunteer organizations, and encouraging further development of mutual aid agreements. These are standard mechanisms to systematically manage resources, including personnel, equipment, supplies, teams, and facilities, both before and during incidents in order to allow organizations to more effectively share resources when needed.

b. **Command and Coordination.** Local authorities handle most incidents using the communications systems, dispatch centers, and incident personnel within a single

jurisdiction. Larger and more complex incidents may begin in a single jurisdiction but rapidly expand to multi-jurisdictional and/or multidisciplinary efforts necessitating outside resources and support. Standard incident command and coordination systems allow the efficient integration of these outside resources and enable assisting personnel from anywhere in the US to participate in the incident management structure. The command and coordination component of NIMS describes the systems, principles, and structures that provide a standard national framework for incident management.

c. Communications and Information Management. Incident personnel rely on flexible communications and information systems to obtain and provide accurate, timely, and relevant information; establish and maintain situational awareness; and ensure accessibility and voice and data interoperability are the principal goals of the communications and information management component. Properly planned, established, and applied communications facilitate information dissemination among command and support elements and cooperating jurisdictions and organizations. To maintain situational awareness, incident personnel update incident information continually by gathering, collating, synthesizing, and disseminating incident information to and from all appropriate parties. This information flow is facilitated through developing and using common plans and interoperable equipment, processes, standards, and architectures. During an incident, this integrated, familiar approach links all incident personnel, whether on scene, in an EOC, or in another support location, to maintain communications connectivity and situational awareness. Communications and information management planning address the incident-related policies, equipment, data architecture, systems, standards, and training necessary to achieve interoperable communications.

3. National Incident Management System and its Relationship to the National Response Framework

The response protocols and structures described in the NRF align with NIMS. NIMS provides the incident management basis for the NRF and defines standard command and management structures. Standardizing national response doctrine on NIMS provides a consistent, nationwide template to enable the whole community to work together to prevent, protect against, mitigate, respond to, and recover from the effects of incidents regardless of cause, size, location, or complexity. The NIMS concepts of multiagency coordination and unified command are described in the command and management component of NIMS. These two concepts are essential to effective response operations because they address the importance of developing a single set of objectives; using a collective, strategic approach; improving information flow and coordination; creating a common understanding of joint priorities and limitations; ensuring no agency's legal authorities are compromised or neglected; and optimizing the combined efforts of all participants under a single plan.

a. Intended Audience

(1) The NRF is intended to be used by the whole community. This all-inclusive concept focuses efforts and enables a full range of stakeholders—individuals, families, communities, the private and nonprofit sectors, faith-based organizations, state and local

civil authorities and federal governments—to participate in national preparedness activities and to be full partners in incident response. Government resources alone cannot meet all the needs of those affected by major disasters. All elements of the community must be activated and integrated to respond to a major or catastrophic incident.

(2) Involving the whole community is essential to US success in achieving resilience and national preparedness. Individual and community preparedness is a key component to this objective. By providing equal access to acquire and use the necessary knowledge and skills, the whole community contributes to and benefits from national preparedness. This includes children; individuals with disabilities and others with access and functional needs; those from religious, racial, and ethnically diverse backgrounds; and people with limited English proficiency. Their contributions must be integrated into preparedness efforts, and their needs must be incorporated into planning for and delivering the response core capabilities.

(3) Although the NRF is intended to provide guidance for the whole community, it focuses especially on the needs of those who are involved in delivering and applying the response core capabilities defined in the national preparedness goal. This includes emergency management practitioners, community leaders, and government officials who must collectively understand and assess the needs of their respective communities and organizations to determine the best ways to organize and strengthen their resiliency.

b. Scope

(1) The NRF describes structures for implementing nationwide response policy and operational coordination for all types of domestic incidents. This section describes the scope of the response mission area, the guiding principles of response doctrine and their application, and how risk informs response planning.

(2) The response mission area focuses on ensuring the US is able to respond effectively to all types of incidents that range from those that are adequately handled with local assets to those of catastrophic proportion that require marshaling the capabilities of the entire nation. The objectives of the response mission area define the capabilities necessary to save lives, protect property and the environment, meet basic human needs, stabilize the incident, restore basic services and community functionality, and establish a safe and secure environment moving toward the transition to recovery.

(3) The NRF describes the principles, roles and responsibilities, and coordinating structures for delivering the core capabilities required to respond to an incident and further describes how response efforts integrate with those of the other mission areas. The NRF is always in effect, and elements can be implemented at any time. The structures, roles, and responsibilities described in the NRF can be partially or fully implemented in the context of a threat or hazard, in anticipation of a significant event, or in response to an incident. Selective implementation of NRF structures and procedures allows for a scaled response, delivery of the specific resources and capabilities, and a level of coordination appropriate to each incident.

(4) In this framework, the term incident includes actual or potential emergencies and disasters, resulting from all types of threats and hazards, ranging from accidents and natural disasters, to cyberspace intrusions and terrorist attacks. The NRF's structures and procedures address incidents where federal support to state and local governments is coordinated under the Stafford Act, as well as incidents where USG departments and agencies exercise other authorities and responsibilities.

(5) Nothing in the NRF is intended to alter or impede the ability of any state and local or USG department or agency to carry out its authorities or meet its responsibilities under applicable laws, EOs, and directives. See <https://www.fema.gov/media-library/assets/documents/148019> for additional information on NIMS, and for additional information on the NRF, see <https://www.fema.gov/media-library/assets/documents/32230>.

4. The Incident Command System

a. ICS is a standardized approach to the command, control, and coordination of on-scene incident management that provides a common hierarchy within which personnel from multiple organizations can be effective. ICS specifies an organizational structure for incident management that integrates and coordinates a combination of procedures, personnel, equipment, facilities, and communications. Using ICS for every incident helps hone and maintain skills needed to coordinate efforts effectively. ICS is used by all levels of government, as well as by many NGOs and private-sector organizations. ICS applies across disciplines and enables incident managers from different organizations to work together seamlessly. This system includes five major functional areas, staffed as needed for a given incident: command, operations, planning, logistics, and finance/administration.

(1) Incident command is responsible for the overall management of the incident. A single incident commander or unified command conducts the command function on an incident. Command and general staff support the incident command to meet the incident's needs.

(2) The incident command organizational structure develops in a top-down, modular fashion that is based on the size and complexity of the incident, as well as the specifics of the hazard environment created by the incident. The basic ICS organization is comprised of:

(a) Four general staff sections:

1. Operations,
2. Planning,
3. Logistics, and
4. Finance and administration.

(b) Three command staff sections:

1. Public information,
2. Safety, and
3. Liaisons.

(3) When needed, separate functional elements can be established, each of which may be further subdivided to enhance internal organizational management and external coordination.

(4) Responsibility for the establishment and expansion of the ICS modular organization ultimately rests with the incident commander based on the requirements of the situation. As incident complexity increases, the organization expands from the top down as functional responsibilities are delegated. Concurrently with structural expansion, the number of management positions expands to adequately address the requirements of the incident.

(5) Incident command may be transferred from one commander to a succeeding one. Transfers of incident command must include a transfer of command briefing (which may be oral, written, or both). A transfer of command occurs when a more qualified person assumes command; the incident situation changes over time, resulting in a legal requirement to change command (e.g., multijurisdictional or multiagency involvement); there is normal turnover of personnel on extended incidents; or the incident response is concluded and responsibility is transferred to the home agency.

b. Incident Management Teams (IMTs)

(1) IMTs are rostered groups of ICS-qualified personnel, consisting of an incident commander, other incident leadership, and personnel qualified for other key ICS positions. IMTs exist at regional, state, local, and national levels and have formal notification, deployment, and operational procedures in place. These teams are based on team members' qualifications and may be assigned to manage incidents or to accomplish supporting incident-related tasks or functions. When assigned to manage an incident or to support an incident-related task or function, IMTs are typically delegated the authority to act on behalf of the affected jurisdiction or organization.

(2) Incident Management Assistance Teams (IMATs)

(a) Some IMTs are referred to as IMATs to clarify that they support on-scene personnel and/or the affected jurisdiction(s). IMATs may have C2 over certain aspects of response and recovery efforts (e.g., the use of state/federal assets). Through participation in a unified command or a unified coordination group with representatives from state, and local governments, they ensure activities align with local priorities. IMATs exist at various levels of government and within the private sector. Regardless of who owns IMATs or their specific missions, IMATs operate using the principles and practices of ICS.

(b) FEMA IMATs deploy to incidents or incident-threatened venues, help identify and provide federal assistance, and coordinate and integrate inter-jurisdictional

response in support of an affected state or tribe. FEMA IMATs provide the federal government with an early presence at an incident, integrating FEMA's response capabilities into the existing community of emergency management functions.

c. Multiagency Coordination Systems

(1) The primary functions of multiagency coordination systems are:

- (a) Support incident management policies and priorities.
- (b) Facilitate logistics support and resource tracking.
- (c) Inform resource allocation decisions using incident management priorities.
- (d) Coordinate incident-related information.
- (e) Coordinate interagency and international issues regarding incident management policies, priorities, and plans.

(2) These functions define the operating characteristics, interactive management components, and organizational structure of supporting incident management entities at the federal, state, local, tribal, and regional levels through mutual-aid agreements and other assistance arrangements.

(3) When incidents cross disciplinary or jurisdictional boundaries, or involve complex incident management scenarios, a multiagency coordination entity, such as an emergency management agency, may be used to facilitate incident management and policy coordination. The situation at hand and the needs of the jurisdictions involved will dictate how these multiagency coordination entities conduct their business, as well as how they are structured.

(4) Multiagency coordination entities typically consist of principals (or their designees) from organizations and agencies with direct incident management responsibility or with significant incident management support or resource responsibilities. These entities are sometimes referred to as crisis action teams, policy committees, incident management groups, executive teams, or other similar terms.

(5) Direct tactical and operational responsibility for conducting incident management activities rests with the incident commander. Command authority does not reside in coordinating officers or coordinating entities although coordinating officers may be designated with command authority. In some instances, EOCs may serve a dual function as a multiagency coordination entity; in others, the preparedness organizations may fulfill this role. Regardless of the term or organizational structure used, these entities typically provide strategic coordination during domestic incidents.

(6) If constituted separately, multiagency coordination entities, preparedness organizations, and EOCs must coordinate and communicate with one another to provide

uniform and consistent guidance to incident management personnel. The JFO is the multiagency coordination center of primary interest to the CCDR or the JFC.

d. Public Information Systems. These refer to processes, procedures, and systems for communicating timely and accurate information to the public during crisis or emergency situations. Under the ICS, the public information officer (PIO) is a key staff member supporting the incident command structure.

(1) The PIO represents and advises the incident commander on all public information matters relating to the management of the incident. The PIO handles media and public inquiries, emergency public information and warnings, rumor monitoring and response, media monitoring, and other functions required to coordinate, clear with appropriate authorities and disseminate accurate and timely information related to the incident, particularly regarding information on public health and safety and protection. The PIO should have a basic understanding of several specific subjects, such as nonlethal weapons and CBRN effects, to answer questions appropriately and minimize reactions.

(2) The PIO also coordinates public information at or near the incident site and serves as the on-scene link to the joint information system. In a large-scale operation, the on-scene PIO serves as a field PIO with links to the JIC, which is typically co-located with the federal, regional, state, local, or tribal EOC tasked with primary incident coordination responsibilities.

(a) The joint information system provides the mechanism to integrate public information activities among JICs, across jurisdictions, and with the private sector and NGOs. During emergencies, the public may receive information from a variety of sources.

(b) The JIC provides a location for organizations participating in the management of an incident to work together to ensure timely, accurate, easy-to-understand, and consistent information is disseminated to the public. JICs include processes to coordinate and clear public communications. The JIC develops, coordinates, and disseminates unified news releases.

(3) News releases are cleared through the JFO coordination group to ensure consistent messages, to avoid release of conflicting information, and to prevent negative impact on operations. This formal approval process for news releases ensures protection of law enforcement-sensitive information or other sensitive but unclassified information. DOD supports the national-level JIC and contributes to the overall unified message. DOD and other agencies may issue their own news releases related to their policies, procedures, programs, and capabilities; however, these should be coordinated with the JIC.

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APPENDIX B

EMERGENCY SUPPORT FUNCTIONS

1. Overview

The ESFs provide the structure for coordinating federal interagency support for a federal response to an incident. They are mechanisms for grouping functions most frequently used to provide federal support to states and federal-to-federal support, both for declared disasters and emergencies, under the Stafford Act and for non-Stafford Act incidents. ESFs are not based on the capabilities of a single department or agency, and the functions for which they are responsible cannot be accomplished by any single department or agency. Instead, federal ESFs are groups of organizations that work together to deliver core capabilities and support an effective response.

2. Fourteen Emergency Support Functions

The 15 ESFs are described below with the coordinating agencies indicated in parentheses.

a. ESF #1 – Transportation (Department of Transportation): Provides support by assisting local, state, tribal, territorial, insular area, and federal governmental entities; voluntary organizations; NGOs; and the private sector in the management of transportation systems and infrastructure during domestic threats or in response to actual or potential incidents.

b. ESF #2 – Communications (DHS/National Communications System): Supports the restoration of communications infrastructure, coordinates communications support to response efforts, facilitates the delivery of information to emergency management decision makers, and assists in the stabilization and reestablishment of systems and applications during incidents.

c. ESF #3 – Public Works and Engineering (DOD/USACE): Coordinates and organizes the resources of the USG to facilitate the delivery of multiple core capabilities.

d. ESF #4 – Firefighting (USDA/Forest Service): Provides federal support for the detection and suppression of wildland, rural, and urban fires resulting from, or occurring coincidentally with, an all-hazard incident requiring a coordinated national response for assistance.

e. ESF #5 – Information and Planning (DHS/FEMA): Collects, analyzes, processes, and disseminates information about a potential or actual incident, and conducts planning activities to facilitate the overall activities in providing assistance to the whole community.

f. ESF #6 – Mass Care, Emergency Assistance, Temporary Housing, and Human Services (DHS/FEMA): Coordinates and provides life-sustaining resources, essential services, and statutory programs when the needs of disaster survivors exceed local, state, tribal, territorial, and insular area government capabilities.

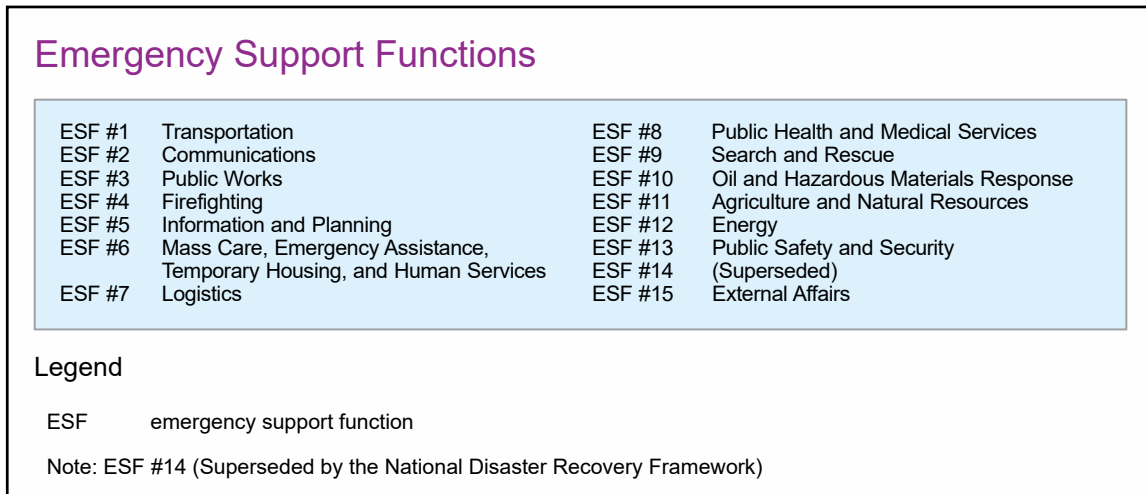


Figure B-1. Emergency Support Functions

g. ESF #7 – Logistics (GSA and DHS/FEMA): Integrates whole community logistics incident planning and support for timely and efficient delivery of supplies, equipment, services, and facilities. It also facilitates comprehensive logistics planning, technical assistance, training, education, exercise, incident response, and sustainment that leverage the capability and resources of federal logistics partners, public and private stakeholders, and NGOs in support of both responders and disaster survivors.

h. ESF #8 – Public Health and Medical Services (Department of Health and Human Services): Provides the mechanism for federal assistance to supplement local, state, tribal, and territorial resources in response to a disaster, emergency, or incident that may lead to a public health, medical, behavioral, or human service emergency, including those that have international implications.

i. ESF #9 – Search and Rescue (DHS/FEMA): Deploys federal SAR resources to provide life-saving assistance to state and local authorities, including local SAR coordinators and mission coordinators, when there is an actual or anticipated request for federal SAR assistance. DOD is one of four primary agencies for ESF #9 and CDRUSNORTHCOM serves as the DOD lead in the USNORTHCOM AOR for matters pertaining to planning and operations of ESF #9.

j. ESF #10 – Oil and Hazardous Materials Response (Environmental Protection Agency): Provides federal support in response to an actual or potential discharge and/or release of oil or hazardous materials, when activated.

k. ESF #11 – Agriculture and Natural Resources (USDA): Organizes and coordinates federal support for the protection of the nation’s agricultural and natural and cultural resources during national emergencies.

l. ESF #12 – Energy (Department of Energy): Provides support to DHS by assisting local, state, tribal, territorial, and USG entities; NGOs; and the private sector by coordinating government capabilities, services, technical assistance, and engineering expertise during disasters and incidents that require a coordinated federal response.

m. ESF #13 – Public Safety and Security (DOJ): Provides federal public safety and security assistance to local, state, tribal, territorial, and federal organizations overwhelmed by the results of an actual or anticipated natural/manmade disaster or an act of terrorism.

n. ESF #14 (Superseded by National Disaster Recovery Framework)

o. ESF #15 – External Affairs (DHS/FEMA): Provides accurate, coordinated, timely, and accessible information to affected audiences, including governments; media; the private sector; and the local populace, including children, those with disabilities, and others with access and functional needs and individuals with limited English proficiency.

For more information, see the Response Federal Interagency Operational Plan.

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APPENDIX C

STANDING RULES FOR THE USE OF FORCE FOR UNITED STATES ARMED FORCES

1. Purpose

US military forces may be required to assist civil authorities, which may require the use of force. The participation of the military in such scenarios is fraught with legal and political pitfalls that warrant clear and specific guidance on the use of force. Third parties may seek to exacerbate a situation for their own purposes by provoking an excessive use of force. The purpose of this appendix is to reference fundamental policies and procedures governing the SRUF by DOD forces during DSCA missions. These RUF do not apply to NG forces in state active duty and Title 32, USC, status. DODD 5210.56, *Arming and the Use of Force*, also applies.

2. Guidance

a. CJCSI 3121.01, *(U) Standing Rules of Engagement and Standing Rules for the Use of Force for US Forces*, establishes fundamental policies and procedures governing the actions to be taken by US commanders and their forces during all DOD DSCA operations and routine military department functions occurring within the US territory or US territorial seas. SRUF also apply to land HD missions occurring within US territory on federal property only.

b. SecDef approves and the CJCS promulgates standing rules of engagement (SROE) and SRUF for US forces. The Joint Staff J-3 [Operations Directorate], in coordination with OSD, maintains the SROE/SRUF. Commanders at all levels establish ROE/RUF for mission accomplishment that comply with the ROE/RUF of senior commanders, the law of war, applicable international and domestic law, and the CJCS SROE/SRUF. It is critical that commanders consult with their command judge advocates when establishing ROE/RUF.

c. Unless otherwise directed by a unit commander (IAW CJCSI 3121.01), military personnel have the right, under law, to use force that is reasonably necessary under the circumstances to defend themselves against violent, dangerous, or life-threatening personal attack. In addition, military personnel are authorized to use force to discharge certain duties.

d. Nothing in this appendix alters or limits military commanders' inherent right and obligation to exercise unit self-defense in response to a hostile act or demonstrated hostile intent. Unit self-defense includes the defense of other DOD forces in the vicinity.

e. Commanders at all levels are to train their personnel to understand and properly utilize the SRUF. In this regard, it is critical that legal advisors be available to assist in this training and to advise commanders at all levels of the applicable rules.

f. When DOD forces are detailed to other federal agencies, mission-specific RUF will be used. These RUF must be approved by SecDef and the federal agency concerned.

g. DOD units under USCG control and conducting law enforcement support operations or maritime HS support operations will follow the USCG use of force policy, Commandant Instruction (COMDTINST) M16247.1, *US Coast Guard Maritime Law Enforcement Manual (MLEM)*, for employing warning shots and disabling fire and follow the SROE/SRUF and/or mission-specific use-of-force rules for all other purposes. However, DOD forces under USCG control retain the right of self-defense.

h. When DOD forces under DOD control operate in coordination with other federal agencies, the applicable RUF will be coordinated with the on-scene federal agency personnel.

i. CCDRs may augment these SRUF, as necessary, by submitting requests for mission-specific RUF to the CJCS, for approval by SecDef (IAW CJCSI 3121.01, *[U] Standing Rules of Engagement and Standing Rules for the Use of Force for US Forces*).

j. There may be a difference between the Title 10, USC, SRUF and the RUF for each state's NG forces. The state RUF may be more or less restrictive than the SRUF. DOD Title 10, USC, forces will comply with the DOD SRUF.

k. The separate states and territories promulgate separate RUF. Commanders in a Title 32, USC, or state active duty status must ensure that, prior to conducting any domestic operation, all personnel are briefed on the applicable RUF. NG RUF were developed to support domestic operations and are constrained or limited by federal, state, and local laws. There are no preexisting, overall, stand-alone RUF for domestic disaster relief. Staff officers and military leaders need to understand the legal, policy, and practical limitations for use.

3. Procedures

Normally, force is to be used only as a last resort and should be the minimum necessary. The use of force must be reasonable in intensity, duration, and magnitude based on the totality of the circumstances to counter the threat. If force is required, nonlethal force is authorized and may be used to control a situation and accomplish the mission or to provide self-defense of DOD forces, defense of non-DOD persons in the vicinity if directly related to the assigned mission, or in defense of the protected property, when doing so is reasonable under the circumstances. Lethal force is authorized only when all lesser means have failed or cannot reasonably be employed and the circumstances otherwise justify the use of lethal force.

a. General direction regarding the appropriate use of force comes from a construct known as the use of force continuum. The use of force continuum is generally seamless and does not require movement from one level to the next in sequential order. The use of force continuum can be divided into five broad categories related to the objectives of the military units providing support and the behavior of subject audience: warn/control, deny/obstruct/impede, disorient/distract, disable/incapacitate, and cause death/serious injury.

(1) **Warn/Control.** In most cases, the subject audience will comply with the verbal instructions or commands. When time and circumstances permit, the individual(s) or group should be warned and given the opportunity to withdraw with the objective of preventing the escalation of force. Verbal commands used with firmness and tact should be sufficient to control the situation. Additionally, the military unit's resolve can be implied by mere presence, donning protective gear, or forming into riot control formations. The use of nonlethal weapons (e.g., range acoustic devices and optical systems) can provide enhanced warnings, thereby increasing decision time and helping to discern intent.

(2) **Deny/Obstruct/Impede.** At this level, the subject audience usually exhibits simple resistance or refusal to obey instructions and there is no immediate danger of a physical confrontation. The use of tactics, techniques, and procedures to deny the subject audience presence in or access to an area, or to obstruct or impede their movement, is authorized. Examples of the methods short of physical contact include the use of concertina wire, concrete barriers, spike strips, or other means to barricade or isolate an area.

(3) **Disorient/Distract.** At this level, actual physical resistance may be encountered. Resistance is commonly manifested by continued refusal to comply with directions coupled with threatening behavior, shouting, and open defiance. The use of nonlethal weapons that cause disorientation and distraction may be authorized by the designated approval authority.

(4) **Disable/Incapacitate.** This is the level at which military personnel are in imminent danger of bodily injury. It is generally characterized by the subject audience using physical attacks or other combative actions to prevent apprehension or otherwise frustrate military operations. The use of Service-approved, unit-issued nonlethal weapons that cause physical discomfort, physical incapacitation, or blunt trauma is authorized. Detailed guidance for use of riot control agents by DOD personnel is governed by CJCSI 3110.07, *(U) Guidance Concerning Employment of Riot Control Agents and Herbicides*. Units employing riot control agents should be fully trained so as to properly assess reasonableness under the circumstances and to minimize unintended fatalities.

(5) **Cause Death/Serious Injury.** In the final level of the use-of-force continuum, the subject audience behaves in a manner that is combative and poses an imminent threat of death or serious bodily harm. In such cases, DOD forces may respond with deadly force. While deadly force is to be used only when all lesser means have failed or cannot reasonably be employed, deadly force is authorized when:

(a) DOD unit commanders reasonably believe there is an imminent threat of death or serious bodily harm to their units and other DOD persons in the vicinity.

(b) Needed to defend non-DOD persons in the vicinity, when directly related to the assigned mission.

(c) Deadly force reasonably appears to be necessary to prevent the actual theft or sabotage of assets vital to national security when the President has determined such

theft or sabotage would seriously jeopardize the fulfillment of a national defense mission and would create an imminent threat of death or serious bodily harm.

(d) Deadly force reasonably appears to be necessary to prevent the actual theft or sabotage of inherently dangerous property. Property is considered inherently dangerous if, in the hands of an unauthorized individual, it would create an imminent threat of death or serious bodily harm. On-scene DOD commanders are authorized to classify property as inherently dangerous.

(e) Deadly force reasonably appears to be necessary to prevent the sabotage of national critical infrastructure, as designated by the President. The President must determine that such sabotage would create an imminent threat of death or serious bodily harm.

b. Consequently, when directly related to the assigned mission, deadly force is authorized when deadly force reasonably appears to be necessary to:

(1) Prevent the commission of a serious offense that involves imminent threat of death or serious bodily harm, including the defense of other persons, where deadly force is directed against the person threatening to commit the offense. Examples include murder, rape, and aggravated assault.

(2) Prevent the escape of a prisoner, provided there is probable cause to believe that person has committed or attempted to commit a serious offense (i.e., one that involves imminent threat of death or serious bodily harm) and would pose an imminent threat of death or serious bodily harm to DOD forces or others in the vicinity.

(3) Arrest or apprehend a non-compliant suspect who is presenting the imminent threat of serious bodily harm or death to the arresting official or others, provided there is probable cause to believe that such person has committed a serious offense (as defined in the preceding subparagraph).

c. Units with assigned weapons may deploy with weapons stored; however, weapons will not be carried during DSCA operations unless authorized by SecDef or except as authorized by DODD 5210.56, *Arming and the Use of Force*.

APPENDIX D

DEPARTMENT OF DEFENSE DUAL-STATUS COMMANDER

1. General

a. This appendix establishes procedures, assigns responsibilities, and provides instructions for the designation, employment, and training of DSCs for use in DSCA pursuant to the legal authorities.

b. A DSC is a commissioned officer of the regular USA or USAF or a federally recognized Army National Guard (ARNG) or Air National Guard (ANG) officer authorized, pursuant to Title 32, USC, Section 315 or 325, by SecDef, with the consent of the applicable governor of a state, to exercise command on behalf of, and receive separate orders from, a federal chain of command and exercise command on behalf of, and receive separate orders from, a state chain of command.

c. A DSC is an intermediate link in two distinct, separate chains of command flowing from different federal, territorial, and state governments (see Figure D-1). Although the DSC is empowered to exercise command on behalf of, and may receive orders from, two separate chains of command, those chains of command must recognize and respect the DSC's duty to exercise all authority in a completely mutually exclusive manner (i.e., either in a federal or state capacity), giving orders on behalf of or relaying orders from the federal chain of command to federal military forces and giving orders on behalf of or relaying orders from the state chain of command to state military forces but never relaying federal orders to state military forces or state orders to federal military forces.

d. Appointment of a DSC does not apply to civil disturbance operations, HD operations, federal military commanders providing DSCA under "immediate response authority," mutual or automatic aid agreements between communities and military installations, or federal military commanders supporting DOJ in emergency situations involving WMD.

2. Operational Area

a. For the activation of a DSC, the support request process can begin with the governor providing their consent to have a pre-identified and qualified officer appointed as DSC. The process is coordinated in the military chain of command from the state TAG to CNGB, with either CDRUSNORTHCOM or CDRUSINDOPACOM for approval of the DSC to SecDef via the CJCS.

b. **USNORTHCOM.** In USNORTHCOM's AOR, DSCs may be appointed in any of the 48 contiguous states, Alaska, the District of Columbia, and the territories of Puerto Rico and the US Virgin Islands.

c. **USINDOPACOM.** In USINDOPACOM's AOR, DSCs may be appointed in the state of Hawaii and the territory of Guam.

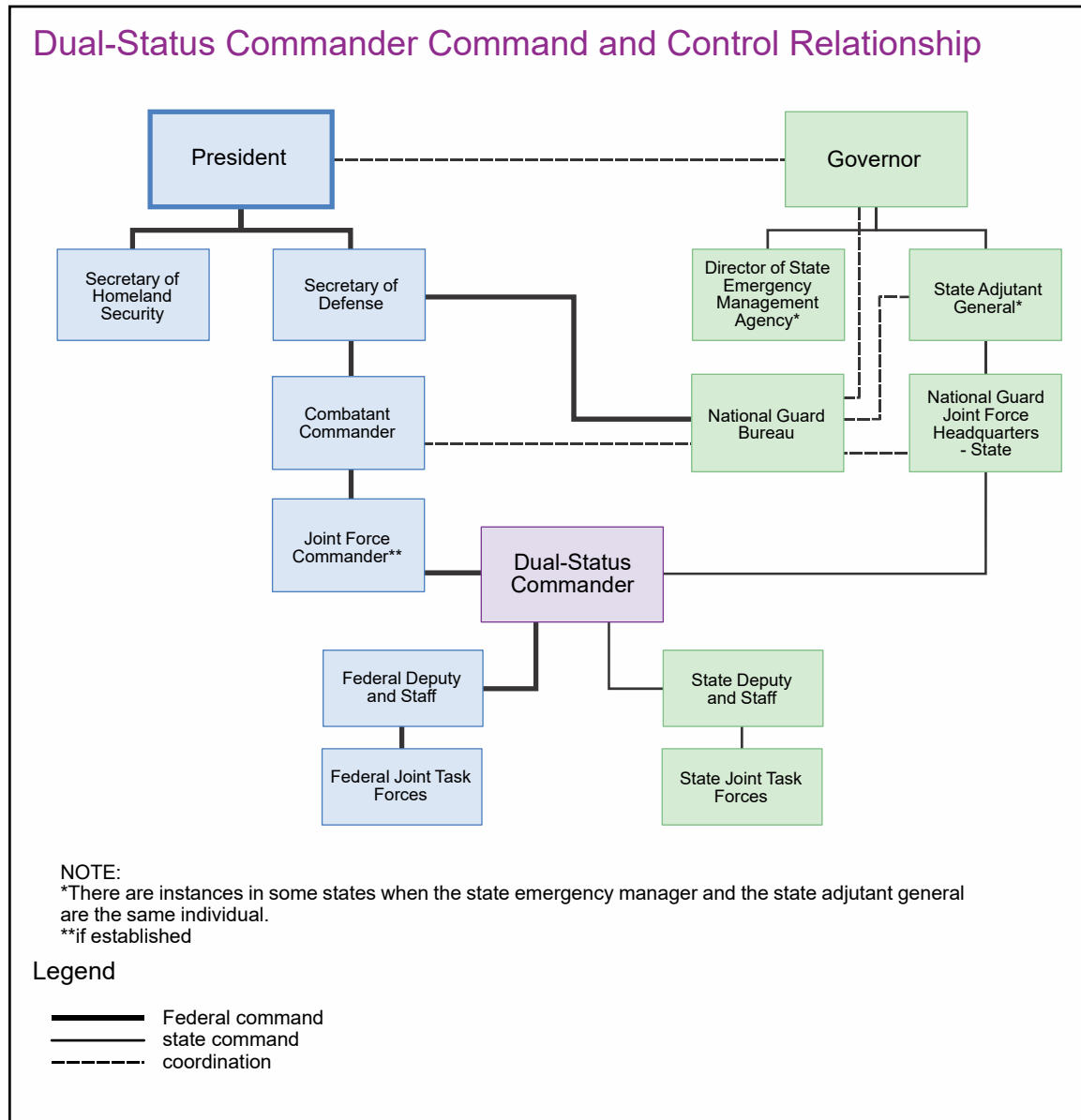


Figure D-1. Dual-Status Commander Command and Control Relationship

3. Requirements

a. The enacting governor and President (or SecDef), with the advice of the supported CDR, must mutually agree that establishment of a DSC is necessary and proper.

b. In the event that a single state has multiple, large-scale events simultaneously and/or geographically separated similar events, employment of multiple DSCs may be required.

4. Legal Considerations

a. The DSC must comply with all applicable state and federal laws appropriate to the assigned mission while executing his duties. If the DSC perceives that orders provided by

the state or federal chains of command may violate state or federal law or create a potential conflict of interest in policy or process, he or she must refrain from executing such orders until he or she has consulted with a judge advocate from both the state and federal chains of command. If after such consultation, the DSC perceives that the problem has not been resolved, he or she will notify both chains of command and request appropriate guidance.

b. DOD forces can only be placed under the command of Title 10, USC, authorities. NG forces can only be placed under the command of state authorities while operating in a Title 32, USC, or state active duty status. DOD collection of information on non-DOD persons is restricted by EO, federal law, and DOD policy. Military justice issues concerning state NG personnel will be determined IAW state code. Military justice issues concerning federal military personnel will be determined IAW the Uniform Code of Military Justice as implemented by applicable military department regulatory guidance.

5. Key Documents

Several key documents should be in place before a DSC is established to command both state and federal military forces. The documents listed below are required for the establishment of a DSC.

a. Nomination Letters. TAGs, with the approval of their governors, will submit nomination letters to the CNGB. The NGB Domestic Operations and Force Development Directorate will verify with NGB eligibility of nominated general officers or O-6s and schedule approved personnel, in coordination with the North American Aerospace Defense Command (NORAD) and USNORTHCOM Directorate for Training and Exercises, for DSC-required training.

b. Certificate of Qualification. Upon completion of required training, NGB Domestic Operations and Force Development Directorate and NORAD and USNORTHCOM Directorate for Training and Exercises will coordinate certificates of qualification signed by the CNGB and CDRUSNORTHCOM.

c. Preplanned MOAs Between the State and DOD for the Use and Establishment of a DSC. Preplanned MOAs for the use and establishment of a DSC have been coordinated and signed between DOD and all 50 states, Puerto Rico, Guam, and the US Virgin Islands. In the case that a state may prefer to establish an MOA for each unique event or incident, every effort will be made to pre-coordinate an MOA that can be quickly signed and executed.

d. State and DOD Appointment Memorandums. State and DOD appointment memorandum templates are contained in all preplanned and signed MOAs between DOD and all 50 states, Puerto Rico, Guam, and the US Virgin Islands to expedite the establishment of a DSC. ASD(HD&GS) will ensure SecDef's authorization and signature for the DOD memorandum and that the state, Joint Staff, NGB, USNORTHCOM, and USINDOPACOM receive a copy. The CNGB will coordinate with TAG to ensure the governor's consent and signature for the state memorandum and that OSD, Joint Staff, and USNORTHCOM receive a copy.

e. Commissioned Officer of the Regular USA or Regular USAF Orders. The supported CCMD will process the orders packet through its applicable Service component (USA or USAF). The supported CCMD's Service component will provide the fund cite for the orders.

f. ARNG or ANG Officer Orders. The NGB General Officer Management Office will process the orders packet through the supported geographic CCMD's applicable Service component (USA or USAF). The supported geographic CCMD's Service component will provide the fund cite for the orders.

g. Commission in the State's NG. The enacting state will tender (or reserve) a commission in its state NG for the designated DSC. Additionally, the DSC will hold a commission as an officer of the regular USA or USAF.

6. Responsibilities

a. CJCS:

(1) Advises SecDef on the training and certification, designation, and use of DSCs.

(2) Formulates DSC training and certification policies for the members of the Armed Forces in coordination with the Under Secretary for Personnel and Readiness.

(3) Validates DSC training and certification requirements.

(4) Addresses DSC training and certification program deficiencies and trends.

b. CDRUSNORTHCOM and CDRUSINDOPACOM:

(1) Recommends to SecDef, through the CJCS, and in coordination with the CNGB, operational requirements for DSCs for DSCA.

(2) Recommends to SecDef, through the CJCS, in coordination with the CNGB, whether to designate, and who to designate, as the successor DSC, should the designated DSC become incapacitated or is relieved of duty as the DSC. A successor DSC may be designated in advance of the planned event or incident response or upon the incapacitation or relief from duty of the designated DSC.

(3) In coordination with the CNGB, maintains and manages the program for training and certifying officers of the ARNG and ANG and commissioned officers of the regular USA and USAF to be designated to serve as a DSC.

(4) Selects and schedules regular USA and USAF officers for training and certification to be designated to serve as a DSC.

(5) In coordination with the CNGB, issues a certificate of qualification to qualified officers satisfactorily completing the required training.

(6) Ensures a sufficient number of regular USA and USAF officers are trained and certified to serve as a DSC.

(7) In coordination with the CNGB, ensures each state has the opportunity to train and certify at least one ARNG or ANG officer to be designated to serve as a DSC.

(8) Maintains and updates, every six months, a list of qualified officers trained and certified to be designated to serve as a DSC.

(9) To the extent practicable, exercises DSC employment by leveraging existing exercise programs, including federal exercises linked to the National Exercise Program and, in coordination with the CNGB, state exercises.

(10) When necessary, and in coordination with the CJCS, recommends SecDef grant a one-time waiver for the training and certification required by a regular USA or USAF officer to be designated to serve as a DSC.

(11) When requested, and in coordination with the CJCS and the CNGB, advises SecDef on the granting of a one-time waiver requested by a governor for the training and certification required for an ARNG or ANG officer to be designated to serve as a DSC.

c. The CNGB, under the authority, direction, and control of SecDef, normally through the CJCS:

(1) Serves as the channel of communications for all matters pertaining to the NG between DOD components and the states IAW DODD 5105.77, *National Guard Bureau (NGB)*.

(2) Serves as an advisor to the CCDRs on NG matters pertaining to the CCMD missions, and support planning and coordination for DSCA activities as requested by the CJCS or the CCDRs.

(3) In coordination with CDRUSNORTHCOM or CDRUSINDOPACOM, as appropriate, maintains and manages the program for training and certifying qualified officers to be designated to serve as a DSC.

(4) In coordination with CDRUSNORTHCOM or CDRUSINDOPACOM, as appropriate, verifies the eligibility of ARNG and ANG officers approved by their governors for training and certification to be designated to serve as a DSC by confirming that the nominated officer is federally recognized and eligible for authority to command federal military forces.

(5) In coordination with CDRUSNORTHCOM or CDRUSINDOPACOM, as appropriate, schedules ARNG and ANG officers approved by their governors and verified as eligible for training and certification to be designated to serve as a DSC.

(6) In coordination with TAG and CDRUSNORTHCOM or CDRUSINDOPACOM, as appropriate, ensures each state has the opportunity to train and certify at least one NG officer to be designated to serve as a DSC.

(7) In coordination with CDRUSNORTHCOM or CDRUSINDOPACOM, as appropriate, issues a certificate of qualification to qualified officers satisfactorily completing the required training.

(8) When requested, and in coordination with the CJCS and CDRUSNORTHCOM or CDRUSINDOPACOM, as appropriate, advises SecDef on the granting of a one-time waiver requested by a governor for the training and certification required for an ARNG or ANG officer to be designated to serve as a DSC.

(9) Ensures NGB (once SecDef has approved the designation of a DSC) enters the designated NG DSC's information into the appropriate automated system to expedite the issuing of Title 10, USC, orders.

7. Dual-Status Commander

USNORTHCOM and/or USINDOPACOM, in coordination with the NGB, conducts sufficient planning, preparation, and coordination such that appointment and employment of a DSC is an option capable of immediate implementation should the President or SecDef and governor of the affected state(s) so agree. This option should improve unity of effort and ensure a rapid response to save lives, prevent human suffering, and mitigate great property damage for designated planned events or in response to an emergency or major disaster within the US.

a. USNORTHCOM's training program, in coordination with USINDOPACOM and NGB, should:

(1) Produce trained DSC officers who are qualified and certified to lead military forces (state and federal) in advance of, or in response to, a federally declared disaster or emergency.

(2) Establish a cadre of trained Title 10, USC, officers, trained to assume duties as deputy commanders within USNORTHCOM and USINDOPACOM organizations, to support DSCs.

(3) Utilize the trained, experienced, and deployable staff officers that reside within USNORTHCOM or USINDOPACOM organizations to support the DSC.

(4) Pre-coordinate required documentation and establish the approval process in advance to facilitate the appointment of a DSC for an incident as quickly as possible.

(5) Exercise the DSC concept within the existing exercise construct, including participation of the Title 10, USC, deputy commander and staff officers in state planning efforts, training events and exercises, when feasible.

(6) Establish effective C2 and coordinating relationships to allow effective coordination with the JFO during single-state and multi-state incidents.

b. Specialized training to command US federal military forces in support of civil authorities is essential. The initial individual training program shall consist of:

(1) The Web-based Joint Domestic Operations Course.

(2) JTF Commander Training Course.

(3) DSC orientation visit with senior leaders from key organizations, to include USNORTHCOM, USARNORTH, US Air Forces Northern, DHS, FEMA, NGB, Joint Staff, and OSD.

c. Additional Training Opportunities. USNORTHCOM, in close coordination with the NGB, is committed to providing and facilitating continued training opportunities to both sustain and improve this concept. USNORTHCOM's current additional training opportunities include:

(1) The DSCA Executive Course,

(2) The DOD DSCA Phase II Course (in addition, there is the availability to perform the duties as senior mentor for this course), and

(3) Opportunities for DSCs to gain experience as a deputy director at USNORTHCOM by serving a three-to-seven-week tour filling in for a USNORTHCOM deputy director on an extended temporary duty.

d. Nomination Criteria

(1) Title 32, USC, or State Active Duty Officers. A state's TAG may nominate an ARNG officer or ANG officer (federally recognized O-6 or general officer) to their respective governor for approval as a DSC nominee. Approved nominees will be scheduled for training through an NGB-established training sequence roster. TAGs are encouraged to nominate more than one candidate to ensure availability of a trained DSC in their state.

(2) Title 10, USC, Officers. CDRUSNORTHCOM or CDRUSINDOPACOM may nominate a regular USA or regular USAF general officer, in coordination with NGB and Joint Staff, to SecDef for approval as a DSC nominee. Approved nominees will complete the qualification and certification described in this document. Using a Title 10, USC, DSC is not the preferred method but could be appropriate when an event occurs on federal property or within the established National Capital Region JOA or in the event a state does not have a qualified and certified DSC and the governor consents to and the President/SecDef authorizes the appointment.

e. Qualification and Certification. Specialized training to command US federal military forces in support of civil authorities is essential for the DSC concept to improve

unity of effort and ensure a rapid response to save lives, prevent human suffering, and mitigate great property damage in the US. The NGB, in coordination with state military departments and NORAD and USNORTHCOM Directorate of Joint Training and Exercises, will establish a training sequence roster to develop a coordinated plan that ensures each state has the opportunity to qualify at least two officers as a DSC. USNORTHCOM will offer DSC training courses on a quarterly basis in support of the training sequence roster.

8. Deputy Dual-Status Commander

Title 10, USC, Deputy Commanders. A cadre of regular USA, USAF, USN, USMC, and USCG officers are nominated and selected to support designated DSCs. This includes ensuring execution of the DSC's orders to federal military forces and acting as an advisor to the DSC on federal military matters. The Title 10, USC, deputy commander, also coordinates with the NG deputy commander, if appointed, to achieve unity of effort and purpose within the JTF's total force operations. Each designated Title 10, USC, deputy commander, will be prepared to support five to six states, with each state belonging to a different FEMA region, to account for the impact of multi-state incidents. The purpose is to ensure that, during a multistate/regional incident, when multiple DSCs are used, the benefit of the established relationships is not lost due to overlap of assignments. Title 10, USC, deputy commanders will establish relationships within their assigned states through the state NG, to include TAG, DSCs, NG deputy commanders (if appointed), appropriate state emergency management operation managers, and FEMA regional representatives. Each cadre member will also establish relationships with key Title 10, USC, stakeholders to include USNORTHCOM, USNORTHCOM component commands, appropriate DCOs, and the USNORTHCOM regional desk officers.

a. Selection Criteria

- (1) Nominated by directorate, component, or subordinate and assigned to USNORTHCOM staff, component, or subordinate;
- (2) Title 10, USC, officer O-6 or O-5 selected for promotion to O-6;
- (3) Command experience preferred (O-5 command [e.g., squadron or battalion], or deputy commander/executive officer at O-6-level command);
- (4) One year or more remaining in assignment to USNORTHCOM; and
- (5) Experience in DSCA operations and working with interagency partners.

b. Certification Requirements

- (1) Joint Domestic Operations Course,
- (2) DSCA Phase II Course,
- (3) JTF Commander Training Course,

(4) DSC Orientation Course,

(5) State orientation visits (NG JFHQ-State, state EOC), and

(6) Interview with the Deputy Director of the Domestic Operations Directorate within the Operations Directorate at USNORTHCOM.

c. NG deputy commanders, if appointed by the state(s), will be offered the same training opportunities as the designated DSC and Title 10, USC, deputy commander. The NG deputy commander, if appointed, will be employed IAW state direction.

9. Appointment Process

When it is anticipated that a DSC will be necessary and proper, coordination will immediately commence between key military leaders (TAG, CNGB, GCC, Joint Staff, and OSD), on behalf of their principal (governor or SecDef). For requests initiated from the affected state, TAG will notify the CNGB and CDR of the state's desire to seek appointment of its nominated DSC. The CNGB and CDR will coordinate with the CJCS and ASD(HD&GS) to verify the qualification and certification of the nominee and provide SecDef a recommendation on the appointment of the DSC. ASD(HD&GS) will determine whether a signed MOA exists between the state and DOD or if there is a need to establish one for this specific event or incident and prepare it for signature by the principals. Additionally, ASD(HD&GS) will ensure the pre-coordinated DOD appointment memorandum is ready for SecDef's signature, and NGB will ensure the state has the state appointment memorandum ready for the governor's signature. When time does not permit, a conference call will be arranged between the governor and SecDef to discuss the appointment of a DSC and with the governor's consent and SecDef's authorization, the MOA will be verbally executed based on oral agreement with signatures of the appointment memorandums to be obtained as soon as possible. Upon SecDef's authorization, the CJCS will communicate the decision, via order or memorandum, to the supported commander and supporting commanders.

a. For requests initiated from DOD, a similar process will occur, but the request will be initiated by CDRUSNORTHCOM, with SecDef's consent.

b. For requests that occur during principal level discussions (governor and President/SecDef), which key military leaders (SecDef, CJCS, CNGB, CDRUSNORTHCOM, TAG) are unaware, it is imperative that the immediate dissemination and coordination occur to inform all parties of the oral agreement and ensure that signatures are obtained as soon as possible. (A governor may request approval via SecDef verbal authority in an emergency situation.)

10. District of Columbia

a. The District of Columbia, a federal district, is unique. Although the District of Columbia has an NG, the District of Columbia has no governor. Instead, the District of Columbia NG reports to the President of the United States.

b. When active duty forces and the NG are employed simultaneously in support of civil authorities in the District of Columbia, designation of a DSC should be the typical C2 arrangement.

c. IAW with Title 32, USC, Sections 315 and 325, only a federally recognized officer of the ARNG or ANG or a commissioned officer of the regular USA or regular USAF may serve as a DSC in the District of Columbia.

APPENDIX E

KEY LEGAL AND POLICY DOCUMENTS

1. National Guidance

a. **HSPD-5, *Management of Domestic Incidents*.** HSPD-5 assigns the Secretary of Homeland Security as the principal federal official for domestic incident management to coordinate the USG's resources utilized to prepare for, respond to, or recover from terrorist attacks, major disasters, or other emergencies. The USG assists state and local authorities when their resources are overwhelmed or when federal interests are involved. HSPD-5 directs that SecDef shall provide support to civil authorities for domestic incidents as directed by the President or when consistent with military readiness and appropriate under the circumstances and the law. SecDef retains command of military forces providing DSCA. Additionally, HSPD-5 directs the Secretary of Homeland Security to lead and manage the development of NIMS to provide a consistent nationwide approach for federal, state, and local governments to work effectively and efficiently together to prepare for, respond to, and recover from domestic incidents.

b. **PPD-8, *National Preparedness*.** PPD-8 is aimed at strengthening the security and resilience of the US through systematic preparation for the threats that pose the greatest risk to the security of the nation, including acts of terrorism, cyberspace attacks, pandemics, and catastrophic natural disasters. National preparedness is the shared responsibility of all levels of government, the private and nonprofit sectors, and individual citizens. Everyone can contribute to safeguarding the nation from harm. As such, while this directive is intended to galvanize action by the USG, it is also aimed at facilitating an integrated, all-of-nation, capabilities-based approach to preparedness.

c. **NSHS.** Prepared for the President by the Office of Homeland Security, this document lays out the strategic objectives, organization, and critical areas for HS. The strategy identifies critical areas that focus on preventing terrorist attacks, reducing the nation's vulnerabilities, minimizing the damage, and recovering from attacks that do occur.

d. **The Homeland Security Act of 2002.** This act established DHS to coordinate all federal HS activities to protect the nation against threats to the homeland. To better facilitate the overarching HS mission, Congress established DHS by merging numerous agencies into a single department.

e. **The Robert T. Stafford Disaster Relief and Emergency Assistance Act (Title 42, USC, Chapter 68, Section 5121).** This act sets the policy of the USG to provide an orderly and continuing means of supplemental assistance to state and local governments in their responsibilities to alleviate the suffering and damage that result from major disasters or emergencies. It is the primary legal authority for federal participation in domestic disaster relief. Under the Stafford Act, the President may direct federal agencies, including DOD, to support disaster relief. DOD may be directed to provide assistance in one of three different scenarios: a presidential declaration of a major disaster, a presidential order to perform emergency work for the preservation of life and property, or a presidential declaration of emergency.

f. **The Economy Act of 1932 (Title 31, USC, Section 1535).** The Economy Act of 1932 permits one federal agency to request the support of another provided that the requested services cannot be obtained more cheaply or conveniently by contract. Under this act, a federal agency with lead responsibility may request the support of DOD without a presidential declaration of an emergency as required by the Stafford Act.

g. **Armed Forces (Title 10, USC).** Title 10, USC, provides guidance pertaining to the Armed Forces of the United States. Guidance is divided into five subtitles: one on general military law and one each for the USA, USN and USMC, the USAF, and the RC. Chapter 15 (Sections 271-282) of Title 10, USC, governs military support for civilian LEAs.

h. **PCA (Title 18, USC, Section 1385).** This federal statute places strict limits on the use of the USA and the USAF for law enforcement. Enacted in 1878, the PCA prohibits the willful use of the USA (and later, the USAF) to execute the laws, except as authorized by the Congress or the US Constitution. Although the PCA, by its terms, refers only to the USA and USAF, DOD policy extends the prohibitions of the act to USN and USMC forces as well. DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*, implements the PCA for DOD components. Additionally, federal courts have recognized exceptions to the PCA. The most notable are the “military purpose doctrine” and the “indirect assistance” to civilian law enforcement exceptions. Exceptions and/or circumstances not falling under PCA include, but are not limited to:

(1) Actions taken for the primary purpose of furthering a military or foreign affairs function of the US.

(2) Federal troops acting pursuant to the President’s Constitutional and statutory authority to respond to civil disorder.

(3) Actions taken under express statutory authority to assist officials in executing the laws, subject to applicable limitations.

(4) CD operations authorized by statute.

i. **Title 32, USC, Section 502 (National Guard).** Title 32, USC, establishes the basis for federal oversight of the NG and provides the authority for the NG to conduct activities in a federal duty status, subject to state control, while accomplishing federal missions and purposes. The majority of activities conducted pursuant to Title 32, USC, directly relate to training or other readiness requirements established by the USA and the USAF to prepare the NG for its warfighting mission. Any operational missions approved by the President or SecDef and otherwise permitted by law may be accomplished in federal duty status under Title 32, USC (e.g., DSC; employment of NG civil support teams; and other domestic operational use of the NG pursuant to Title 32, USC, Section 502[f]).

2. Representative DOD Guidance

a. **Unified Command Plan (UCP).** The UCP establishes the missions, responsibilities, and geographic AORs for commanders of CCMDs.

(1) The GEF is a SecDef document that provides CCMDs with regional and functional aspects of planning that include assumptions and end states.

(2) CJCSI 3110.01, *(U) Joint Strategic Campaign Plan (JSCP)*, is a CJCS document that supports and complements the GEF, provides additional planning guidance, and addresses DSCA.

b. **Strategy for HD and DSCA.** This document provides the strategy for defense of the homeland and support of civil authorities.

c. **CJCSI 3121.01, *(U) Standing Rules of Engagement/Standing Rules for the Use of Force for US Forces*.** SRUF provide operational guidance and establish fundamental policies and procedures governing the actions taken by DOD forces performing DSCA missions (e.g., military assistance to civil authorities and military support for civilian LEAs) and routine Service functions (including antiterrorism/FP duties) within US territory (including US territorial waters). The SRUF also apply to DOD forces, civilians, and contractors performing law enforcement and security duties at all DOD installations (and off-installation, while conducting official DOD security functions), within or outside US territory, unless otherwise directed by SecDef. Additional examples of these missions, within the US, include protection of critical US infrastructure both on and off DOD installations; military assistance and support to civil authorities; DOD support during civil disturbance; and DOD cooperation with federal, state, and local law enforcement authorities, including CD support.

d. **CJCSI 3125.01, *Defense Response to Chemical, Biological, Radiological, and Nuclear (CBRN) Incidents in the Homeland*.** This instruction provides CJCS policy guidance and operational instructions for DOD response to CBRN incidents in the homeland. For the purposes of this instruction, response refers to those actions necessary to save lives, protect property and the environment, and meet basic human needs after a CBRN incident has occurred.

e. **CJCSI 3710.01, *DOD Counterdrug Support*.** This instruction promulgates SecDef delegation of authority to approve certain CD operational support missions. It also provides, IAW each fiscal year's national defense authorization act, instruction on authorized types of DOD (Title 10, USC) CD support to the federal agency with lead responsibility, other government agencies, and foreign nations.

f. **CJCSI 3110.05, *Military Information Support Operations Supplement to the Joint Strategic Capabilities Plan*.** This instruction authorizes the use of military information support operations (MISO) capabilities and units to conduct CAIS in response to natural disasters or security crises within the US and its territories. It specifies that the joint force may employ PSYOP forces and equipment to conduct CAIS as a subset of DSCA, using all available media when authorized by SecDef or a designated representative, IAW DODD 3025.18, *Defense Support of Civil Authorities (DSCA)* (JP 3-13.2, *Military Information Support Operations*, expands this to include support to other US civil authorities, as well as federal agencies). During CAIS, PSYOP forces do not conduct MISO and CAIS activities that do not follow any MISO program. The approval authority

for themes, messages, products, and all incident-related information disseminated by PSYOP forces is the designated federal agency, consistent with DOD regulations, instructions, and policies that prohibit the influencing of US audiences. CJCSI 3110.05, *Military Information Support Operations Supplement to the Joint Strategic Capabilities Plan*, also outlines how the deployment of PSYOP forces in support of CAIS is requested, approved, and designated for C2.

g. **CJCS DSCA EXORD.** This order delegates limited approval authority to CDRUSNORTHCOM and CDRUSINDOPACOM, who have DSCA responsibilities in order to provide a rapid and flexible DOD response to requests for assistance.

APPENDIX F

REIMBURSEMENT FOR DEFENSE SUPPORT OF CIVIL AUTHORITIES

1. General

a. DSCA is provided on a reimbursable basis unless otherwise directed by the President. Cost reimbursement for DSCA is always IAW the Economy Act of 1932 or the Stafford Act.

See JP 1-06, Financial Management Support in Joint Operations, for more information.

b. DOD components are not funded to train, equip, and exercise specifically for DSCA operations; therefore, they ordinarily provide DSCA on a cost-reimbursable basis.

c. DOD components shall comply with legal and accounting requirements for the loan, grant, or consumption of DOD resources for DSCA, as necessary, to ensure reimbursement of costs to the DOD components under the Stafford Act, as amended, or other applicable authority.

(1) Reimbursable Activities. Commanders use automatic reimbursements to augment available funds using a special accounting program code. Incremental costs that directly result from disaster relief are considered eligible for reimbursement.

- (a) Pay of personnel hired specifically for disaster relief.
- (b) Overtime.
- (c) Travel and per diem for military personnel under a mission assignment.
- (d) Cost of consumables requisitioned for issue to support disaster operations.
- (e) Transportation of personnel, supplies, and equipment.
- (f) Cost to pack and crate supplies and equipment.
- (g) Cost of petroleum, oils, and lubricants, to include aviation fuel.
- (h) Cost of supplies and equipment lost, destroyed, or damaged as a result of DSCA operations (except aircraft, motor vehicles, and water craft).
- (i) Cost of aircraft flight hours.
- (j) Cost of port (air, ocean, inland-waterway) loading, off-loading, and handling.
- (k) Cost to repair or recondition nonconsumable items returned (providing allocation of the percentage of repair costs attributable to the support).

- (l) Replacement costs of supplies and equipment furnished and not returned.
- (m) Cost of parts used to repair end-items used in disaster relief (excluding depot or field maintenance on a time-compliance basis).

- (n) All USACE district labor charges, including overhead rates.

(2) Nonreimbursable Activities (except under the authorities of the Economy Act of 1932). The following items are not considered reimbursable expenses in the context of providing DSCA:

- (a) Regular pay and allowances of military and civilian personnel.
- (b) Charges for use of military vehicles and watercraft.
- (c) Aircraft, vehicles, or watercraft damaged, lost, destroyed, or abandoned.
- (d) Administrative overhead.
- (e) Annual and sick leave, retirement, and other benefits.
- (f) Cost of telephone, telegram, or other transmissions used to requisition items in a disaster area to replenish depot stocks.

d. DOD components shall not procure or maintain any supplies, materiel, or equipment exclusively for providing DSCA, unless otherwise directed by SecDef.

e. DOD components shall not perform any inherently governmental function of civil government unless directed by the President. Any commander who is directed to perform such functions shall facilitate the reestablishment of civil authority at the earliest time possible.

2. Reimbursement Process

DOD support is provided on a reimbursable basis, unless otherwise directed by the President. Title 10, USC, Section 277, requires reimbursement from LEAs, unless SecDef elects to waive reimbursement. The reimbursement process requires the DOD components to capture and report total and incremental costs IAW applicable DOD FM regulations. Supported agencies should also maintain records of support received from DOD. To distinguish these costs from those related to training or normal operating expenses, which are not reimbursed, resource managers must maintain accountability throughout an operation for equipment and material costs associated with operational support. Organizational record keeping needed to support cost capturing must begin at the start of the operation and at the lowest functional level. Since DSCA funding processes can initially confound commanders and staffs, care must be taken to gain early process familiarization and to promptly follow up preliminary voice coordination with properly staffed documentation.

Additional guidance can be found in DOD 7000.14-R, Department of Defense Financial Management Regulation.

3. Legal Considerations

a. **The Economy Act of 1932.** Title 31, USC, Section 1535, the Economy Act of 1932, permits federal agencies to provide goods and services to other federal agencies on a reimbursable basis for total costs.

b. **The Stafford Act.** Title 42, USC, Chapter 68, Section 5121, The Robert T. Stafford Disaster Relief and Emergency Assistance Act, provides for reimbursement for the incremental costs of providing support (approval authority and reporting requirements vary, depending upon the duration and type of support requested), but the President may direct DOD (or any other USG department or agency) to undertake missions and tasks on either a reimbursable or non-reimbursable basis under the Stafford Act for specified items only and with specified caps.

c. **DOD Guidelines.** DOD 7000.14-R, *Department of Defense Financial Management Regulation*; USNORTHCOM CONPLAN 3501, *Defense Support of Civil Authorities (DSCA)*; and USNORTHCOM CONPLAN 3502, *Civil Disturbance Operations*, require operating agencies and supported CCDRs to recover all costs for civil disturbance operations. The operating agency and supported CCDR are responsible for collecting costs for civil disturbance operations of all Service components and DOD agencies, preparing cost reports for the executive agency, consolidating billings, forwarding bills to DOJ, and distributing reimbursements to Service components and DOD agencies.

4. Service-Specific Considerations

Service-specific regulations provide FM guidance governing funding, reimbursement procedures, cost reports, travel entitlements, and finance pay support for military personnel participating in domestic support operations.

a. Reimbursement procedures must conform to the requirements of the legal authority relied on for provision of support.

b. Installations, agencies, and departments providing support must maintain records, receipts, and documents to support claims, purchases, reimbursements, and disbursements.

c. Payment of military and civilian personnel remains a Defense Finance and Accounting Service (DFAS) responsibility.

d. Installations should establish separate accounting process codes to record the cost of the operation. Installations use project codes, management decision packages, and functional cost accounts furnished by DFAS-Indianapolis to record the costs of the operation.

e. Planning and warning orders do not automatically authorize fund expenditures for DSCA operations.

5. Disaster Relief Costs

Disaster relief participation is an unprogrammed requirement for the Services for which funds have not been budgeted. Service component commands may be required to initially fund the cost of DSCA operations. Such operations are undertaken with the understanding that additional operating expenses may be reimbursed by the requesting agencies. Costs should be recorded using unique accounting codes IAW Service regulations and guidance.

6. Financial Management—Support

Military FM units provide finance and resource management support for personnel supporting DSCA. FM elements of one Service may provide support to other Services and for the entire DSCA operation, as directed.

a. **Contracts.** Paying for contracts and other local procurement is a critical function. FM personnel should deploy early enough to support logistics contracting elements. This support includes providing funds to paying agents.

b. **Individual Support.** FM elements may provide individual support, to include check cashing, casual pay, inquiries, and travel payments.

APPENDIX G

DEPARTMENT OF DEFENSE INSTALLATIONS SUPPORTING DEFENSE SUPPORT OF CIVIL AUTHORITIES

1. General

DOD installations may be used as federal operating areas to support federal personnel and resources, when requested (e.g., incident support base, federal staging area, federal team staging area facility, modular airborne fire-fighting systems operating base). Installations may also be designated as BSIs to support DOD operations IAW existing Service regulations. Designation as one of these federal operating areas or a BSI requires a CCDR-validated and approved RFA and the concurrence of the appropriate Military Department Secretary.

2. Concept of Operations

Support concepts are based on the proximity of the designated BSI and its capabilities, which are:

a. **Major Installation.** If a designated BSI is a major installation within a reasonable travel time from the incident area, then that installation may augment task force common-user support to responding forces within the limits of existing capability/capacity for that installation without impacting other ordered requirements. Additional capabilities for that installation must be requested through appropriate processes and procedures by the supported CCDR. This will enable the responding task force to focus on the DSCA mission.

b. **Austere Installation.** Depending on the location of the catastrophic event, the BSI may be designated in an area that is not in close proximity to a major DOD installation. In these instances, the commander, joint task force (CJTF), will complete an estimate of the situation and request either contract support or submit a request for forces to mitigate logistics capability shortfalls due to limited personnel, equipment, facilities, or interrupted or extended lines of communications between the BSI and those DOD elements operating at the incident site.

3. Base Support Installation Considerations

The BSI-designated installation will provide general support for common-user logistics (food, life-support, medical support, and fuels) to all proximate DOD forces, as well as JRSOI as required. Commanders and their staffs conduct mission analysis to meet logistics requirements and to coordinate the potential use of a military installation for base support of DOD forces during DSCA. Considerations include:

- a. A concise concept of purpose and description of the functions the BSI will support.
- b. Forces required to support the operation and phasing for induction of logistics elements.

- c. FEMA mobilization location.
- d. Length of time the BSI will provide support.
- e. Transportation suitability (reception and staging capabilities, condition, maximum on ground, material handling equipment, medical evacuation capability, etc.)
- f. Adequate supply, maintenance, transportation, engineering, medical, and other service support at the BSI.

For additional information and guidance, refer to the Standing CJCS DSCA EXORD.

4. Department of Defense Installation Responsibilities for Defense Support of Civil Authorities

a. **BSI.** A BSI is a military installation of any Service or DOD agency that provides specified, integrated resource support to DSCA response efforts.

(1) A BSI is normally a DOD federal installation or leased facility of any Service or agency. BSI is normally located outside of, but proximate to, the incident area. BSI must have utilities, communications, and access to open-road networks.

(2) BSIs are the primary logistics hubs during a DSCA response. Their capabilities are augmented through contracting, either by expanding existing installation contracts, utilizing GSA schedules, utilizing existing DOD contracts, or using other federal contracts. In general, time does not allow the letting of new, large contracts during a DSCA response by DOD.

(3) BSIs serve in general support, which is to provide for the supported DOD force as a whole and not to any particular Service involved in DSCA operations.

(4) Support provided by the designated BSI may include, but is not limited to, general supply and maintenance; transportation; contracting; communications; reception of DOD forces; staging equipment; civil engineering; medical and FHP; and other life-support services, to include billeting, food service, and FP.

(5) The BSI may also serve additional sustainment functions such as ports of embarkation (POEs), PODs, intermediate staging bases, forward operating bases (FOBs), and/or JRSOI sites. The BSI will need to support movement of forces from the POD to the reception site on the BSI and movement of equipment from the POD to staging areas on the BSI. Types and quantity of support equipment will be based on the time-phased force and deployment data. The BSI will also have to assist in the retrograde of equipment from BSI to POE and movement of forces to the POE as they redeploy.

(6) BSI supporting DOD forces may simultaneously support FEMA or other federal agencies (when requested and approved) to stage federal teams or as a federal incident support base. Priority of support is to the federal agency.

(7) BSI responsibilities rest with the senior commander for the installation relying on the installation staff and tenant units via established host-tenant agreements, MOAs/MOUs, and Service ADCON of tenant units.

b. Incident Support Base

(1) Supporting one or more non-DOD federal departments or agencies as a logistics staging facility for a DSCA response.

(2) The normally requested installation support as an incident support base includes covered warehouse space and secure (fenced) hard stand parking areas where commercial semi-trailers loaded with commodities can be staged prior to being directed forward to supply state staging facilities, shelters, or PODs. The incident support base may also be requested to provide airfield facilities to accept the arrival of federal-owned commodities and trans-load from aircraft to truck for further shipment. Material handling equipment is a necessity for any incident support base support mission.

5. Joint Reception, Staging, Onward Movement, and Integration

a. General. JRSOI for DSCA operations is characterized by three overarching principles: unity of effort, synchronization, and balance of unit flow into the operational area in support of DSCA. While sharing many similarities of conventional JRSOI operations as described in JP 3-35, *Deployment and Redeployment Operations*, the CJTF must plan for some unique considerations when responding to DSCA missions.

(1) The JTF headquarters will most likely have to perform JRSOI functions primarily with internal resources and assistance from the designated BSI.

(2) Responding DOD units may not necessarily flow into the operational area through designated PODs when responding to catastrophic events. Units may have to stage and move directly from their home station installations to the operational area or may have to use one or more intermediate staging bases to coordinate flow of support. Intermediate staging bases provide flexibility to a response event by enabling the staging and configuration of assets in an area outside of the immediate event zone. Multiple lines of communications may be used by units responding to DSCA operations.

(3) Deploying forces will undergo some form of reception, staging, onward movement, and integration. The JTF must have a well-planned and carefully managed process that has a robust command, control, and communications infrastructure that is able to effectively manage the dynamic flow of prepared and ready forces into the operational area. Critical to effectively managing the flow is the establishment of a consolidated movement control section within the JTF with responsibility for analyzing forces and support in the area, to include non-DOD entities, and making recommendations to the event commander on priority of movement within the event area.

b. Reception operations include all those functions required to receive and clear unit personnel, equipment, and materiel through the POD. During reception operations, it is essential the JTF control and coordinate the deployment flow. A dedicated movement

control element within the JTF headquarters is vital to unity of effort and synchronization. Component support plans will address how personnel will report to the CJTF regardless of the POD that units use for reception and staging.

c. **Staging operations** includes the assembling, temporary holding, and organizing of arriving personnel, equipment, and materiel in preparation for onward movement. Staging areas provide the necessary facilities, sustainment, and other required support to enable units to become mission capable prior to onward movement into the JOA. The personnel, equipment, and materiel to be employed for DSCA operations within the US may stage within the confines of their respective home installation. Reliable communications and well-understood reporting requirements are essential for the JTF to effectively manage the building of capability for the CJTF.

d. **Onward movement operations** include movement of personnel and accompanying material from reception facilities and staging areas to a designated unit FOB within the JOA. If units and forces employed in DSCA missions within the US are geographically close to the JOA, the unit FOB may be located at the unit's home installation. Depending on the location of the BSI in relation to the incident site, a FOB could also be located at a designated BSI.

e. **Integration operations** encompass the synchronized hand-off of units to an operational commander prior to mission execution. DSCA operations within the US often combine Title 10, USC; Title 32, USC; and state active duty forces. The CJTF's C2 and communication and coordination possibilities are extensive and special attention to integration should be emphasized.

For more information, refer to JP 3-35, Deployment and Redeployment Operations.

APPENDIX H

DEFENSE SUPPORT OF CIVIL AUTHORITIES PLANNING FORMAT (NOTIONAL)

Below is a sample format that a joint force staff can use as a guide when developing a joint OPLAN. The exact format and level of detail may vary somewhat among joint commands, based on theater-specific requirements and other factors. However, joint OPLANs/CONPLANs contain the basic five paragraphs (such as paragraph 3, “Execution”) and their primary subparagraphs (such as paragraph 3a, “Concept of Operations”). The JPEC typically refers to a joint contingency plan that encompasses more than one major operation as a campaign plan, but JFCs prepare a plan for a campaign in joint contingency plan format.

- a. Copy Number
- b. Issuing Headquarters
- c. Place of Issue
- d. Effective Date-Time Group
- e. OPERATION PLAN: (Number or Code Name)
- f. USXXXXCOM OPERATIONS TO . . .

g. References: (List any maps, charts, and other relevant documents deemed essential to comprehension of the plan.)

1. Situation

a. **General.** Describe the situation that requires DSCA. Identify the support category or categories of effort: domestic emergencies, law enforcement support or other domestic activities. (DSCA categories and mission types may overlap and/or occur simultaneously depending on scenario).

b. **Area of Concern**

- (1) **AOR.** Outline the commander’s operational area.
- (2) **Area of Interest.**
- (3) **Operational Area.**

c. **Deterrent Options.** (If applicable)

d. **Adversarial/Environmental Factors.** Describe threat actors and/or other conditions affecting DSCA operations.

e. **Friendly.** Identify DOD, non-DOD federal entities and support capabilities of regional, state and local civil governments in the operational area. Also include nongovernmental entities.

f. **Assumptions.** List the assumptions on which DSCA planning is based. Examples are:

(1) Federal, regional, or state and local civil policies/plans regarding this type of operation.

(2) Ability of federal, regional, state and local civil government(s) to provide this assistance.

(3) Impact of existing cooperative national, regional, state and local civil-military agreements. (e.g., EMACs).

(4) Ability to conclude agreements (MOUs/MOAs) with federal, regional, state, and local entities.

(5) Level of required AC and/or RC support.

(6) Impact of COAs.

(7) Availability of local resources.

(8) Communications gaps that will/will not exist.

g. **Legal Considerations.** Identify the legal basis for DSCA effort (e. g., USC Titles 10, 14, 18, 32, state, territorial, and local statutes).

2. Mission

3. Execution

a. CONOPS

(1) Commander's Intent

(a) **Purpose and End State**

(b) **Objectives**

(c) **Effects**, if discussed

(2) **General.** Describe the operation by phase.

(a) **Phase I**

1. Commander's Intent
2. Timing
3. Objectives and Desired Effects
4. Risk
5. Execution
6. Employment
7. Transition/Termination Criteria

(b) **Remaining Phases.** Describe each phase using the same format.

b. **Tasks.** List the tasks assigned to each element of the supported and supporting agencies and/or commands. Each task should be a concise statement of an activity to be performed and include all key elements.

(1) Supported Federal, Regional, state and local civil governments/Agencies/Commands.

(2) Supporting Commands/Units.

(3) Supporting Combat Support Agencies.

(4) Other USG Departments and Agencies (e.g., DHS, FEMA).

(5) Non USG department and agencies (e.g., national, regional, state and local civil governments, NGOs/international organizations, and private sector elements).

c. **Coordinating Instructions.** List the instructions applicable to the whole command, its elements, and agencies or entities external to the command. (Refer to Annex V, Interagency Coordination). Areas, events or items requiring coordination for DSCA Operations may include, but are not limited to:

(1) Liaison arrangements with federal, regional, state and local civil governments.

(2) Liaison arrangements with allied forces, if applicable.

(3) Establishment of operational boundaries.

(4) EMACs.

- (5) Public announcements to be issued.
- (6) Emergency measures for security of civilian population.

4. Administration and Logistics

a. **Concept of Sustainment.** Identify policies, guidance, and procedures to support DSCA/NGCS.

b. **Logistics.** Illustrate functions, sustainment categories, priorities and resources, support bases, priority of movement and timing, and contracted support.

c. **Personnel.** Describe personnel support functions. Establish deployability criteria unique to the operation. List RS.

d. **Resource Management.** Illustrate financial requirements, sourcing, acquisition and distribution of funds, fiscal policy and monitoring execution. Note management controls and procedures.

e. **Health Service Support.** Identify medical capabilities and functions such as casualty response, emergency life-saving steps and patient evacuation.

f. **Reports.** Establish administrative reporting requirements.

5. Command and Control

a. Command

(1) **Command Relationships.** Describe the federal, state or other chain(s) of command supporting DSCA operations. Identify the civilian and military organizational structure expected to exist. List any changes to major C2 organizations and time of expected shift (e.g., shifts that may occur during transition from DSCA to HD or vice-versa and among federal, regional, state, or local entities). (Refer to Annex J, Command Relationships.)

(a) Outline existing command arrangement agreements (CAAs), MOUs, and MOAs.

(b) Note CAAs, MOUs and MOAs requiring development.

(2) **Command Posts.** List the designation and location of headquarters involved in plan execution.

(3) **Succession to Command.** Designate, in order of succession, the authorities responsible for assuming command.

b. Control

(1) **C2 and Communications Systems.** Note the scope of C2 and communications systems and/or procedures required to support the mission.

[Signature]

[Name]

[Rank/Service]

Commander

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APPENDIX J

EXAMPLE PHASING OF DEFENSE SUPPORT OF CIVIL AUTHORITIES

DSCA is generally provided in the following phases: phase 1 pre-incident, (1a) normal operations, (1b/1c) elevated/credible threat (for a notice event), phase 2 response, (2a) immediate response, (2b) deployment of resources and personnel, (2c) sustained response, and phase 3 recovery and transition. These phases align with FEMA's CONOPS and deviate from the notional phasing construct. During planning, the JFC establishes conditions, objectives, or events for transitioning from one phase to another. Phases are designed to be conducted sequentially, but some activities may begin in a previous phase and continue into subsequent phases. In many incidents, no clear transition exists from one phase to the next, and phases may run concurrently. Additionally, during incidents that affect multiple states and/or FEMA regions, different jurisdictions may transition through the phases at various paces depending on the impact to the respective geographical area. It is helpful for DOD to align DSCA phases to the phasing construct of the LFA. The following example phases align with the FEMA phasing model:

1. Phase 1 (Pre-Incident)

Phase 1 is continuous situational awareness and preparedness. Actions in this phase include interagency coordination, planning, identification of gaps, exercises, and public affairs outreach. This phase sets the conditions for expanded interoperability and cooperation with interagency partners.

a. **Phase 1a (Normal Operations).** During phase 1a, local civil authorities and state and federal entities, including Title 10 and Title 32, USC, military personnel, determine existing logistics and resource capabilities, develop plans and procedures, and conduct training and exercises to validate existing plans. In addition, continuity operations and planning need to be incorporated to facilitate the performance of response core capabilities during all hazards emergencies or other situations that may disrupt normal operations. Actions taken during phase 1a are focused on awareness and national preparedness goals: prevent, protect against, mitigate, respond to, and recover.

b. **Phase 1b (Elevated Threat).** During a notice incident, there may be an elevated threat that allows for further coordination and planning. Plans should be revised based on the current situation. Situational reports should be analyzed and addressed to plan for the potential activation of federal, state, local, tribal, and territorial coordination structures, including DCO/EPLOs. Additional stakeholders should be identified into planning efforts, as appropriate.

c. **Phase 1c (Credible Threat).** During a notice incident, there may be a credible threat that again allows for further assessment of the situation. Plans should continue to be updated and revised. Additional stakeholders should be incorporated into planning efforts, as appropriate. Pre-positioning other selected response forces to facilitate quicker response after coordination with the LFA should also be considered.

Note that because phases 1b and 1c may not occur (i.e., a no-notice incident), there should not be any specific tasks assigned within phases 1b or 1c.

2. Phase 2 (Response)

Response begins when DOD receives, or expects to receive, an RFA from an LFA for DOD support, or the President or SecDef direct support in a federal response to a disaster or emergency in support of a state or tribal government(s) or to support another USG department or agency for specifically authorized events. Phase 2 ends when the situation is stabilized to the point where DOD support is no longer required to support life-saving and life-sustaining activities. The following sub-phases of response assist with prioritizing and organizing activities: initial response, deployment of resources and personnel, and sustained response operations.

a. **Phase 2a (Initial Response).** Phase 2a begins when DOD receives, or expects to receive, an RFA from an LFA for DOD support or the President or SecDef direct support in a federal response to a disaster or emergency in support of a state or tribal government(s) or to support another federal agency for specifically authorized events. Key activities during this phase are activation of emergency management structures, assessment of the situation, and the movement of pre-planned DOD resources. Local commanders may also exercise immediate response authority during this phase upon request from an appropriate civil authority. DSCA is based on RFAs, which will be made at different times and for missions that will be completed at different times. Consequently, forces will likely deploy into and out of the affected area throughout the duration of the civil emergency or period of rendered support.

b. **Phase 2b (Deployment of Resources and Personnel).** Phase 2b begins when life-saving operations have started in the impacted area and federal resources begin JRSOI at intermediate staging bases. Key activities during this phase are to: locate the affected population, evacuation, and provide life-sustaining support services; stabilize the situation to the point at which communications and channels connecting responders and the public are in place and operational; characterize the incident and deploying federal resources; and initiate individual and public assistance programs. Phase 2b success is achieved when forces are deployed with sufficient capability to support civil authorities.

c. **Phase 2c (Sustained Response).** Phase 2c begins when all survivors, having been evacuated, are being sustained through mass-care and recovery efforts. SAR operations have transitioned to the search for and the recovery of human remains. Phase 2c ends when survivors have been sheltered or given the approval to return home; wherever possible, the restoration of critical infrastructure and key resources and essential services has been completed; and senior leaders have made preliminary decisions about the initial recovery plan for the impacted area.

3. Phase 3 (Recovery and Transition)

Phase 3 begins when the life-saving and life-sustaining activities for the affected population have been stabilized to the point where local, state, and federal resources are

sufficient to continue without DOD response tasks and ends upon determination by civil authorities that recovery tasks have been completed. DOD does not generally support recovery tasks; however, in certain instances, it is possible DOD could be tasked to support specific aspects of the recovery. Transition begins when all operational aspects of mission assignments are complete and redeployment of remaining DOD forces commences. Phase 3 ends when all federal response forces have been relieved and redeployed, C2 is transferred to their respective commands, and DOD forces have transitioned all operations back to civil authorities.

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APPENDIX K POINTS OF CONTACT

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JOD Americas
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NIPR: js.pentagon.j3.list.j35-ddro-jod-americas@mail.mil

Lead Agent/United States Northern Command (USNORTHCOM)/J52

Civil Support Strategy, Policy and Doctrine Branch
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NIPR: n-nc.peterson.n-ncj5.list.j52-dl@mail.mil

Office of the Assistant Secretary of Defense (Homeland Defense and Global Security) (ASD[HD&GS])

Office of the Deputy Assistant Secretary of Defense for Homeland Defense
Integration and Defense Support of Civil Authorities
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NIPR: osd.pentagon.ousd-policy.list.hdgs-domestic-ct-team@mail.mil

United States Northern Command (USNORTHCOM)/J35

Civil Support Branch
Comm: 719-556-8227
NIPR: n-nc.peterson.ncj3.list.ncj35-dl2@mail.mil

United States Indo-Pacific Command (USINDOPACOM)/J57

HD/DSCA/PEID Plans and Policy
Comm: 808-477-9287

National Guard Bureau (NGB)/J37

Comm: 703-607-3218
NIPR: ng.ncr.ngb-arng.list.nggb-j37@mail.mil

United States Army, North (USARNORTH) G5

Comm: 210-221-2536
NIPR: usarmy.jbsa.arnorth.list.g5-tpwg@mail.mil

APPENDIX L REFERENCES

1. General

- a. EO 12333, *United States Intelligence Activities*, as amended.
- b. EO 12656, *Assignment of Emergency Preparedness Responsibilities*, as amended.
- c. EO 13470, *Further Amendments to Executive Order 12333, United States Intelligence Activities*.
- d. HSPD-5, *Management of Domestic Incidents*.
- e. PPD-8, *National Preparedness*.
- f. PPD-14, *US Policy on International Counternarcotics in the Western Hemisphere*.
- g. PPD-21, *Critical Infrastructure Security and Resilience*.
- h. PPD-25, Enclosure A, *Domestic Guidelines (U)*.
- i. PPD-41, *US Cyber Incident Coordination Policy*.
- j. Homeland Security Act of 2002.
- k. *National Security Strategy*.
- l. *National Defense Strategy*.
- m. *National Military Strategy*.
- n. *Guidance for Employment of the Force*.
- o. *National Disaster Recovery Framework*.
- p. *National Strategy for Homeland Security*.
- q. *National Response Framework*.
- r. *National Incident Management System*.
- s. *DOD Cyber Strategy*.
- t. *National Cyber Incident Response Plan*.
- u. The North American Aerospace Defense Command Agreement and Terms of Reference and the Canadian/US Basic Security Document.

- v. Title 10, USC.
- w. Title 14, USC.
- x. Title 18, USC.
- y. Title 31, USC.
- z. Title 32, USC.
- aa. Title 42, USC.
- bb. *Unified Command Plan*.
- cc. Federal Interagency Operational Plan.
- dd. Response Federal Interagency Operational Plan.
- ee. National Prevention Framework.
- ff. National Response Plan, Terrorism Incident Law Enforcement and Investigation Annex.

2. Department of Defense Publications

- a. DODD 1100.20, *Support and Services for Eligible Organizations and Activities Outside the Department of Defense*.
- b. DODD 3000.03, *DOD Executive Agent for Non-Lethal Weapons (NLW), and NLW Policy*.
- c. DODD 3020.40, *Mission Assurance (MA)*.
- d. DODD 3025.13, *Employment of DOD Capabilities in Support of the US Secret Service (USSS), Department of Homeland Security (DHS)*.
- e. DODD 3025.14, *Evacuation of US Citizens and Designated Aliens from Threatened Areas Abroad*.
- f. DODD 3025.18, *Defense Support of Civil Authorities (DSCA)*.
- g. DODD 3150.08, *DOD Response to Nuclear and Radiological Incidents*.
- h. DODD 3160.01, *Homeland Defense Activities Conducted by the National Guard*.
- i. DODD 5105.77, *National Guard Bureau (NGB)*.
- j. DODD 5105.83, *National Guard Joint Force Headquarters-State (NG-JFHQs-State)*.

- k. DODD 5148.13, *Intelligence Oversight*.
- l. DODD 5200.27, *Acquisition of Information Concerning Persons and Organizations Not Affiliated with the Department of Defense*.
- m. DODD S-5210.36, *(U) Provision of DOD Sensitive Support to DOD Components and Other Departments and Agencies of the US Government*.
- n. DODD 5210.56, *Arming and the Use of Force*.
- o. DODD 5240.01, *DOD Intelligence Activities*.
- p. DODD 5410.18, *Public Affairs Community Relations Policy*.
- q. DODD 5500.07, *Standards of Conduct*.
- r. DODI 3001.02, *Personnel Accountability in Conjunction with Natural or Manmade Disasters*.
- s. DODI 3020.52, *DOD Installation, Chemical, Biological, Radiological, and Nuclear and High-Yield Explosive (CBRNE) Preparedness Standards*.
- t. DODI 3025.16, *Defense Emergency Preparedness Liaison Officer (EPLO) Programs*.
- u. DODI 3025.19, *Procedures for Sharing Information with and Providing Support to the US Secret Service (USSS), Department of Homeland Security (DHS)*.
- v. DODI 3025.20, *Defense Support of Special Events*.
- w. DODI 3025.21, *Defense Support of Civilian Law Enforcement Agencies*.
- x. DODI 3025.22, *The Use of the National Guard for Defense Support of Civil Authorities*.
- y. DODI 3025.23, *Domestic Defense Liaison with Civil Authorities*.
- z. DODI 5154.06, *Armed Services Medical Regulating*.
- aa. DODI 6010.22, *National Disaster Medical System (NDMS)*.
- bb. DODI 6055.17, *DOD Emergency Management (EM) Program*.
- cc. DODM 3025.01, Volumes 1-3, *Defense Support of Civil Authorities*.
- dd. DODM 5240.01, *Procedures Governing the Conduct of DOD Intelligence Activities*.

ee. DOD 5240.1-R, *Procedures Governing the Activities of DOD Intelligence Components That Affect United States Persons*.

ff. *Strategy for Homeland Defense and Civil Support*.

gg. USNORTHCOM CONPLAN 3407, *Defense Support to Prevent a CBRNE Attack in the Homeland*.

hh. USNORTHCOM CONPLAN 3500, *Defense Support of Civil Authorities*.

ii. USNORTHCOM CONPLAN 3502, *Civil Disturbance Operations*.

jj. USINDOPACOM CONPLAN 5001, *Defense Support of Civil Authorities (DSCA)*.

kk. USINDOPACOM CONPLAN 5002, *Homeland Defense*.

ll. USINDOPACOM CONPLAN 5003, *Pandemic Influenza and Infectious Diseases*.

3. Joint Publications

a. JP 1, *Doctrine for the Armed Forces of the United States*.

b. JP 1-0, *Joint Personnel Support*.

c. JP 1-06, *Financial Management Support to Joint Operations*.

d. JP 2-0, *Joint Intelligence*.

e. JP 2-01.3, *Joint Intelligence Preparation of the Operational Environment*.

f. JP 3-0, *Joint Operations*.

g. JP 3-07.2, *Antiterrorism*.

h. JP 3-07.4, *Counterdrug Operations*.

i. JP 3-08, *Interorganizational Cooperation*.

j. JP 3-11, *Operations in Chemical, Biological, Radiological, and Nuclear Environments*.

k. JP 3-12, *Cyberspace Operations*.

l. JP 3-13.2, *Military Information Support Operations*.

m. JP 3-27, *Homeland Defense*.

n. JP 3-29, *Foreign Humanitarian Assistance*.

- o. JP 3-33, *Joint Task Force Headquarters*.
- p. JP 3-34, *Joint Engineer Operations*.
- q. JP 3-35, *Deployment and Redeployment Operations*.
- r. JP 3-40, *Countering Weapons of Mass Destruction*.
- s. JP 3-41, *Chemical, Biological, Radiological, and Nuclear Response*.
- t. JP 3-59, *Meteorological and Oceanographic Operations*.
- u. JP 3-61, *Public Affairs*.
- v. JP 4-0, *Joint Logistics*.
- w. JP 4-02, *Joint Health Services*.
- x. JP 4-05, *Joint Mobilization Planning*.
- y. JP 4-06, *Mortuary Affairs*.
- z. JP 4-10, *Operational Contract Support*.
- aa. JP 5-0, *Joint Planning*.
- bb. JP 6-0, *Joint Communications System*.

4. Chairman of the Joint Chiefs of Staff Publications

- a. *Domestic Operational Law (DOPLAW) Handbook for Judge Advocates*.
- b. CJCSI 3110.01J, (U) *2015 Joint Strategic Capabilities Plan (JSCP)*.
- c. CJCSI 3110.05F, (U) *Military Information Support Operations Supplement to the Joint Strategic Capabilities Plan*.
- d. CJSCI 3110.07D, (U) *Guidance Concerning Employment of Riot Control Agents and Herbicides*.
- e. CJCSI 3121.01B, (U) *Standing Rules of Engagement/Standing Rules for the Use of Force for US Forces*.
- f. CJCSI 3125.01D, *Defense Response to Chemical, Biological, Radiological, and Nuclear (CBRN) Incidents in the Homeland*.
- g. CJCSI 3710.01B, *DOD Counterdrug Support*.
- h. CJCSI 3810.01E, *Meteorological and Oceanographic Operations*.

i. CJCSI 4120.02D, *List of Priorities-DOD Transportation Movement Priority System*.

j. CJCSM 4301.01, *Planning Operational Contract Support*.

5. Multi-Service Publications

a. ATP 3-22.40/ Marine Corps Tactical Publication 10-10A/NTTP 3-07.3.2/AFTTP 3-2.45/Coast Guard Tactics, Techniques, and Procedures 3-93.2, *Multi-Service Tactics, Techniques, and Procedures for the Employment of Nonlethal Weapons*.

b. ATP 3-28.1/Marine Corps Warfighting Publication 3-36.3/NTTP 3-57.2/AFTTP 3-2.67, *Multi-Service Tactics, Techniques, and Procedures for Defense Support of Civil Authorities (DSCA)*.

c. ATP 5-0.3/MCRP 5-1C/NTTP 5-01.3/AFTTP 3-2.87, *Multi-Service Tactics, Techniques, and Procedures for Operation Assessment*.

6. United States Air Force

a. Air Force Instruction (AFI) 10-801, *Defense Support of Civil Authorities*.

b. AFI 10-2501, *Air Force Emergency Management Program*.

c. Air Force Policy Directive 10-8, *Defense Support of Civil Authorities (DSCA)*.

7. United States Army

a. Army Doctrine Publication 3-28, *Defense Support of Civil Authorities*.

b. Army Doctrine Reference Publication 3-0, *Operations*.

8. United States Coast Guard

a. COMDTINST M16247.1, *US Coast Guard Maritime Law Enforcement Manual (MLEM)*.

b. Coast Guard Publication 3-28, *Incident Management and Crisis Response*.

9. National Guard Bureau

a. CNGB Instruction 2000.01B, *National Guard Intelligence Activities*.

b. CNGB Manual 2000.01, *National Guard Intelligence Activities*.

c. *All Hazards Support Plan*.

10. Canada

Canada-United States Civil Assistance Plan.

11. Other

JG 1-05, *Religious Affairs in Joint Operations*.

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APPENDIX M

ADMINISTRATIVE INSTRUCTIONS

1. User Comments

Users in the field are highly encouraged to submit comments on this publication using the Joint Doctrine Feedback Form located at: https://jdeis.js.mil/jdeis/jel/jp_feedback_form.pdf and e-mail it to: js.pentagon.j7.mbx.jedd-support@mail.mil. These comments should address content (accuracy, usefulness, consistency, and organization), writing, and appearance.

2. Authorship

a. The lead agent for this publication is USNORTHCOM. The Joint Staff doctrine sponsor for this publication is the Joint Staff J-3.

b. The following staff, in conjunction with the joint doctrine development community, made a valuable contribution to the revision of this joint publication: lead agent, Mr. Mark Clements, US Northern Command; Joint Staff doctrine sponsor, MAJ Bryan Peterson, Joint Staff, J-33; Mr. Robert Brodel, Joint Doctrine Analysis Division; and Lt Col Mark Newell, Joint Staff J-7, Joint Doctrine Division.

3. Supersession

This publication supersedes JP 3-28, *Defense Support of Civil Authorities*, 31 July 2013.

4. Change Recommendations

a. To provide recommendations for urgent and/or routine changes to this publication, please complete the Joint Doctrine Feedback Form located at: https://jdeis.js.mil/jdeis/jel/jp_feedback_form.pdf and e-mail it to: js.pentagon.j7.mbx.jedd-support@mail.mil.

b. When a Joint Staff directorate submits a proposal to the CJCS that would change source document information reflected in this publication, that directorate will include a proposed change to this publication as an enclosure to its proposal. The Services and other organizations are requested to notify the Joint Staff J-7 when changes to source documents reflected in this publication are initiated.

5. Lessons Learned

The Joint Lessons Learned Program (JLLP) enhances joint force readiness and effectiveness by contributing to improvements in doctrine, organization, training, materiel, leadership, development and education, personnel, facilities, and policy. The Joint Lessons Learned Information System (JLLIS) is the DOD system of record for lessons learned and facilitates the collection, tracking, management, sharing, collaborative resolution, and dissemination of lessons learned to improve the development and readiness of the joint

force. The JLLP integrates with joint doctrine through the joint doctrine development process by providing insights and lessons learned derived from operations, events, and exercises. As these inputs are incorporated into joint doctrine, they become institutionalized for future use, a major goal of the JLLP. Lessons and lessons learned are routinely sought and incorporated into draft JPs throughout formal staffing of the development process. The JLLIS Website can be found at <https://www.jllis.mil> (NIPRNET) or <http://www.jllis.smil.mil> (SIPRNET).

6. Distribution of Publications

Local reproduction is authorized, and access to unclassified publications is unrestricted. However, access to and reproduction authorization for classified JPs must be IAW DOD Manual 5200.01, Volume 1, *DOD Information Security Program: Overview, Classification, and Declassification*, and DOD Manual 5200.01, Volume 3, *DOD Information Security Program: Protection of Classified Information*.

7. Distribution of Electronic Publications

a. Joint Staff J-7 will not print copies of JPs for distribution. Electronic versions are available on JDEIS Joint Electronic Library Plus (JEL+) at <https://jdeis.js.mil/jdeis/index.jsp> (NIPRNET) and <https://jdeis.js.smil.mil/jdeis/index.jsp> (SIPRNET), and on the JEL at <http://www.jcs.mil/Doctrine> (NIPRNET).

b. Only approved JPs are releasable outside the combatant commands, Services, and Joint Staff. Defense attachés may request classified JPs by sending written requests to Defense Intelligence Agency (DIA)/IE-3, 200 MacDill Blvd., Joint Base Anacostia-Bolling, Washington, DC 20340-5100.

c. JEL CD-ROM. Upon request of a joint doctrine development community member, the Joint Staff J-7 will produce and deliver one CD-ROM with current JPs. This JEL CD-ROM will be updated not less than semi-annually and when received can be locally reproduced for use within the combatant commands, Services, and combat support agencies.

GLOSSARY

PART I—ABBREVIATIONS, ACRONYMS, AND INITIALISMS

AC	Active Component
ADCON	administrative control
AFI	Air Force instruction
AFME	Armed Forces Medical Examiner
AFRCC	Air Force Rescue Coordination Center
AFTTP	Air Force tactics, techniques, and procedures
AKRCC	Alaska Rescue Coordination Center
ANG	Air National Guard
AOR	area of responsibility
APEX	Adaptive Planning and Execution
APHIS	Animal and Plant Health Inspection Service (USDA)
ARNG	Army National Guard
ASD(HD&GS)	Assistant Secretary of Defense (Homeland Defense and Global Security)
ATP	Army techniques publication
BSI	base support installation
C2	command and control
CAIS	civil authority information support
CANUS	Canada-United States
CAP	civil assistance plan
CBRN	chemical, biological, radiological, and nuclear
CCDR	combatant commander
CCMD	combatant command
CD	counterdrug
CDRUSINDOPACOM	Commander, United States Indo-Pacific Command
CDRUSNORTHCOM	Commander, United States Northern Command
CIP	critical infrastructure protection
CJCS	Chairman of the Joint Chiefs of Staff
CJCSI	Chairman of the Joint Chiefs of Staff instruction
CJCSM	Chairman of the Joint Chiefs of Staff manual
CJTF	commander, joint task force
CNGB	Chief, National Guard Bureau
COMDTINST	Commandant instruction (USCG)
CONOPS	concept of operations
CONPLAN	concept plan
CONUS	continental United States
DCE	defense coordinating element
DCO	defense coordinating officer
DD	Department of Defense (form)
DFAS	Defense Finance and Accounting Service

DHS	Department of Homeland Security
DIB	defense industrial base
DLA	Defense Logistics Agency
DOD	Department of Defense
DODD	Department of Defense directive
DODI	Department of Defense instruction
DODM	Department of Defense manual
DOJ	Department of Justice
DOS	Department of State
DSC	dual-status commander
DSCA	defense support of civil authorities
DTM	directive-type memorandum
DTRA	Defense Threat Reduction Agency
ECM	electronic countermeasures
EMAC	emergency management assistance compact
EO	executive order
EOC	emergency operations center
EOD	explosive ordnance disposal
EPLO	emergency preparedness liaison officer
ESF	emergency support function
EXORD	execute order
FBI	Federal Bureau of Investigation (DOJ)
FEMA	Federal Emergency Management Agency (DHS)
FHP	force health protection
FIOP	federal interagency operational plan
FM	financial management
FOB	forward operating base
FP	force protection
GCC	geographic combatant commander
GEF	Guidance for Employment of the Force
GSA	General Services Administration
HD	homeland defense
HS	homeland security
HSPD	homeland security Presidential directive
IAA	incident awareness and assessment
IAS	International Assistance System
IAW	in accordance with
ICS	incident command system
IED	improvised explosive device
IGC	Integrated Data Environment/Global Transportation Network Convergence

IMAT	incident management assistance team
IMT	incident management team
IPC	interagency planning cell
ISR	intelligence, surveillance, and reconnaissance
J-1	manpower and personnel directorate of a joint staff
JDDOC	joint deployment and distribution operations center
JFC	joint force commander
JFO	joint field office
JG	joint guide
JIACG	joint interagency coordination group
JIC	joint information center
JOA	joint operations area
JOC	joint operations center
JP	joint publication
JPERSTAT	joint personnel status and casualty report
JRSOI	joint reception, staging, onward movement, and integration
JTF	joint task force
LEA	law enforcement agency
LFA	lead federal agency
LNO	liaison officer
MCIO	military criminal investigative organization
MCRP	Marine Corps reference publication
METOC	meteorological and oceanographic
MISO	military information support operations
MOA	memorandum of agreement
MOU	memorandum of understanding
NDMS	National Disaster Medical System (DHHS)
NG	National Guard
NGA	National Geospatial-Intelligence Agency
NGB	National Guard Bureau
NG JFHQ-State	National Guard joint force headquarters-state
NGO	nongovernmental organization
NIMS	National Incident Management System
NJOIC	National Joint Operations and Intelligence Center
NORAD	North American Aerospace Defense Command
NRF	National Response Framework
NSHS	National Strategy for Homeland Security
NSSE	national special security event
NTTP	Navy tactics, techniques, and procedures
OCS	operational contract support

OPCON	operational control
OSC	on-scene commander
OSD	Office of the Secretary of Defense
PA	public affairs
PCA	Posse Comitatus Act
PIO	public information officer
POD	port of debarkation
POE	port of embarkation
PPD	Presidential policy directive
PSYOP	psychological operations (forces)
RC	Reserve Component
RFA	request for assistance
ROE	rules of engagement
RS	religious support
RST	religious support team
RUF	rules for the use of force
SAR	search and rescue
SecDef	Secretary of Defense
SIOC	Strategic Information and Operations Center (FBI)
SME	subject matter expert
SROE	standing rules of engagement
SRUF	standing rules for the use of force
TAG	the adjutant general
UAS	unmanned aircraft system
UCP	Unified Command Plan
USA	United States Army
USACE	United States Army Corps of Engineers
USAF	United States Air Force
USAID	United States Agency for International Development
USARNORTH	United States Army, North
USC	United States Code
USCG	United States Coast Guard
USDA	United States Department of Agriculture
USG	United States Government
USINDOPACOM	United States Indo-Pacific Command
USMC	United States Marine Corps
USN	United States Navy
USNORTHCOM	United States Northern Command
USSS	United States Secret Service (DHS)
USTRANSCOM	United States Transportation Command
UXO	unexploded explosive ordnance

WMD weapons of mass destruction

PART II—TERMS AND DEFINITIONS

base support installation. A Department of Defense Service or agency installation within the United States and its territories tasked to serve as a base for military forces engaged in either homeland defense or conducting defense support of civil authorities. Also called **BSI**. (Approved for incorporation into the DOD Dictionary.)

catastrophic event. Any natural or man-made incident, including terrorism, which results in extraordinary levels of mass casualties, damage, or disruption severely affecting the population, infrastructure, environment, economy, national morale, and/or government functions. (DOD Dictionary. Source: JP 3-28)

civil authorities. Those elected and appointed officers and employees who constitute the government of the United States, the governments of the 50 states, the District of Columbia, the Commonwealth of Puerto Rico, the United States Virgin Islands, Guam, insular areas, and political subdivisions thereof. (Approved for incorporation into the DOD Dictionary.)

civil emergency. Any occasion or instance for which, in the determination of the President, federal assistance is needed to supplement state and local efforts and capabilities to save lives and to protect property and public health and safety or to lessen or avert the threat of a catastrophe in any part of the United States. (Approved for incorporation into the DOD Dictionary.)

complex catastrophe. Any natural or man-made incident, including cyberspace attack, power grid failure, and terrorism, which results in cascading failures of multiple, interdependent, critical, life-sustaining infrastructure sectors and causes extraordinary levels of mass casualties, damage, or disruption severely affecting the population, environment, economy, public health, national morale, response efforts, and/or government functions. (Approved for incorporation into the DOD Dictionary with JP 3-28 as the source JP.)

coordinating agency. An agency that supports the incident management mission by providing the leadership, staff, expertise, and authorities to implement critical and specific aspects of the response. (DOD Dictionary. Source: JP 3-28)

crisis management. Measures, normally executed under federal law, to identify, acquire, and plan the use of resources needed to anticipate, prevent, and/or resolve a threat or an act of terrorism. (Approved for incorporation into the DOD Dictionary.)

critical infrastructure protection. Actions taken to prevent, remediate, or mitigate the man-made or natural risks to critical infrastructure and key assets. Also called **CIP**. (Approved for incorporation into the DOD Dictionary.)

defense coordinating element. Staff and military liaison officers who assist the defense coordinating officer in facilitating coordination and support to activated emergency support functions. Also called **DCE**. (Approved for incorporation into the DOD Dictionary.)

defense coordinating officer. Department of Defense single point of contact for domestic emergencies who is assigned to a joint field office to process requirements for military support; forward mission assignments through proper channels to the appropriate military organizations; and assign military liaisons, as appropriate, to activated emergency support functions. Also called **DCO**. (Approved for incorporation into the DOD Dictionary.)

emergency preparedness. Measures taken in advance of an emergency to reduce the loss of life and property and to protect a nation's institutions from all types of hazards through a comprehensive emergency management program of preparedness, mitigation, response, and recovery. Also called **EP**. (DOD Dictionary. Source: JP 3-28)

emergency preparedness liaison officer. A senior reserve officer who represents their Service at the appropriate joint field office conducting planning and coordination responsibilities in support of civil authorities. Also called **EPLO**. (DOD Dictionary. Source: JP 3-28)

emergency support functions. Government and certain private-sector capabilities grouped into an organizational structure to provide the support, resources, program implementation, and services that are most likely to be needed to save lives, protect property and the environment, restore essential services and critical infrastructure, and help victims and communities return to normal, when feasible, following domestic incidents. Also called **ESFs**. (Approved for incorporation into the DOD Dictionary.)

federal military forces. Army, Navy, Marine Corps, and Air Force personnel (including Reserve Component personnel) on federal active duty. (Approved for inclusion in the DOD Dictionary.)

homeland. The physical region that includes the continental United States, Alaska, Hawaii, United States territories, and surrounding territorial waters and airspace. (DOD Dictionary. Source: JP 3-28)

hostile act. An attack or other use of force against the United States, United States forces, or other designated persons or property to preclude or impede the mission and/or duties of United States forces, including the recovery of United States personnel or vital United States Government property. (DOD Dictionary. Source: JP 3-28)

immediate response. Any form of immediate action taken in the United States and territories to save lives, prevent human suffering, or mitigate great property damage in response to a request for assistance from a civil authority, under imminently serious conditions when time does not permit approval from a higher authority. (DOD Dictionary. Source: JP 3-28)

incident. An occurrence, caused by either human action or natural phenomena, that requires action to prevent or minimize loss of life or damage to, loss of, or other risks to property, information, and/or natural resources. (Approved for incorporation into the DOD Dictionary.)

incident awareness and assessment. The processing, analysis, and dissemination of information collected or acquired through the authorized use of intelligence, surveillance, and reconnaissance, and other intelligence, intelligence-related, and/or non-intelligence capabilities, during defense support of civil authorities and National Guard domestic operations. Also called **IAA**. (Approved for incorporation into the DOD Dictionary.)

incident command system. A standardized on-scene emergency management construct designed to aid in the management of resources during incidents. Also called **ICS**. (DOD Dictionary. Source: JP 3-28)

incident management. A national comprehensive approach to preventing, preparing for, responding to, and recovering from terrorist attacks, major disasters, and other emergencies. (DOD Dictionary. Source: JP 3-28)

joint field office. A temporary multiagency coordination center established at the incident site to provide a central location for coordination of federal, state, local, tribal, nongovernmental, and private-sector organizations with primary responsibility for incident oversight, direction, or assistance to effectively coordinate protection, prevention, preparedness, response, and recovery actions. Also called **JFO**. (DOD Dictionary. Source: JP 3-28)

law enforcement agency. Any of a number of agencies (outside the Department of Defense) chartered and empowered to enforce United States laws in a state or territory (or political subdivision) of the United States, a federally recognized Native American tribe or Alaskan Native Village, or within the borders of a host nation. Also called **LEA**. (Approved for incorporation into the DOD Dictionary.)

mission assignment. The vehicle used by the Department of Homeland Security/Emergency Preparedness and Response/Federal Emergency Management Agency to support federal operations in a declared Stafford Act major disaster or emergency declaration that orders immediate, short-term emergency response assistance when an applicable state or local government is overwhelmed by the event and lacks the capability to perform, or contract for, the necessary work. (Approved for incorporation into the DOD Dictionary.)

National Capital Region. A geographic area encompassing the District of Columbia and 11 local jurisdictions in the State of Maryland and the Commonwealth of Virginia. Also called **NCR**. (Approved for incorporation into the DOD Dictionary.)

national emergency. A condition declared by the President or Congress by virtue of powers previously vested in them that authorize certain emergency actions to be undertaken in the national interest. (Approved for incorporation into the DOD Dictionary.)

national operations center. The primary national hub for domestic incident management operational coordination and shared situational awareness. Also called **NOC**. (Approved for incorporation into the DOD Dictionary.)

national special security event. A designated event that, by virtue of its political, economic, social, or religious significance, may be the target of terrorism or other criminal activity. Also called **NSSE**. (DOD Dictionary. Source: JP 3-28)

nonlethal weapon. Weapon, device, or munition that is explicitly designed and primarily employed to incapacitate personnel or materiel immediately, while minimizing fatalities, permanent injury to personnel, and undesired damage to property in the target area or environment. Also called **NLW**. (Approved for incorporation into the DOD Dictionary.)

primary agency. The federal department or agency assigned primary responsibility for managing and coordinating a specific emergency support function in the National Response Framework. (DOD Dictionary. Source: JP 3-28)

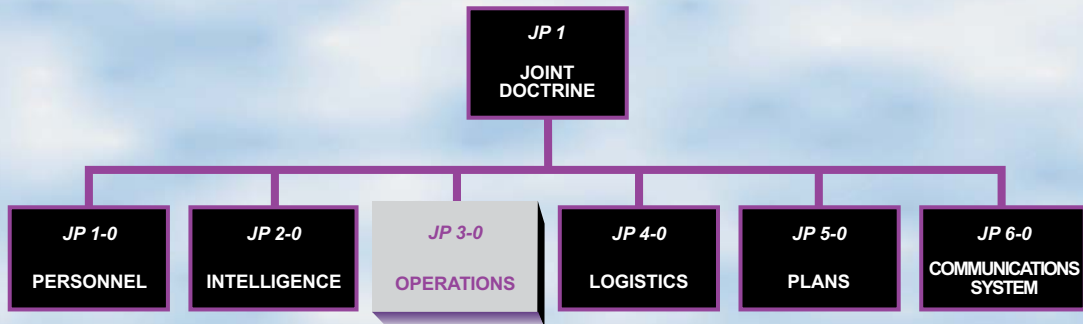
regional response coordination center. A standing facility that is activated to coordinate regional response efforts until a joint field office is established and/or the principal federal official or coordinating officer can assume their National Response Framework coordination responsibilities. Also called **RRCC**. (Approved for incorporation into the DOD Dictionary.)

request for assistance. A request based on mission requirements and expressed in terms of desired outcome formally asking the Department of Defense to provide assistance within the United States or United States territories to a local, state, tribal, or other federal agency. Also called **RFA**. (Approved for incorporation into the DOD Dictionary.)

standing rules for the use of force. Preapproved directives to guide United States forces on the use of force during various operations. Also called **SRUF**. (DOD Dictionary. Source: JP 3-28)

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JOINT DOCTRINE PUBLICATIONS HIERARCHY



All joint publications are organized into a comprehensive hierarchy as shown in the chart above. **Joint Publication (JP) 3-28** is in the **Operations** series of joint doctrine publications. The diagram below illustrates an overview of the development process:

